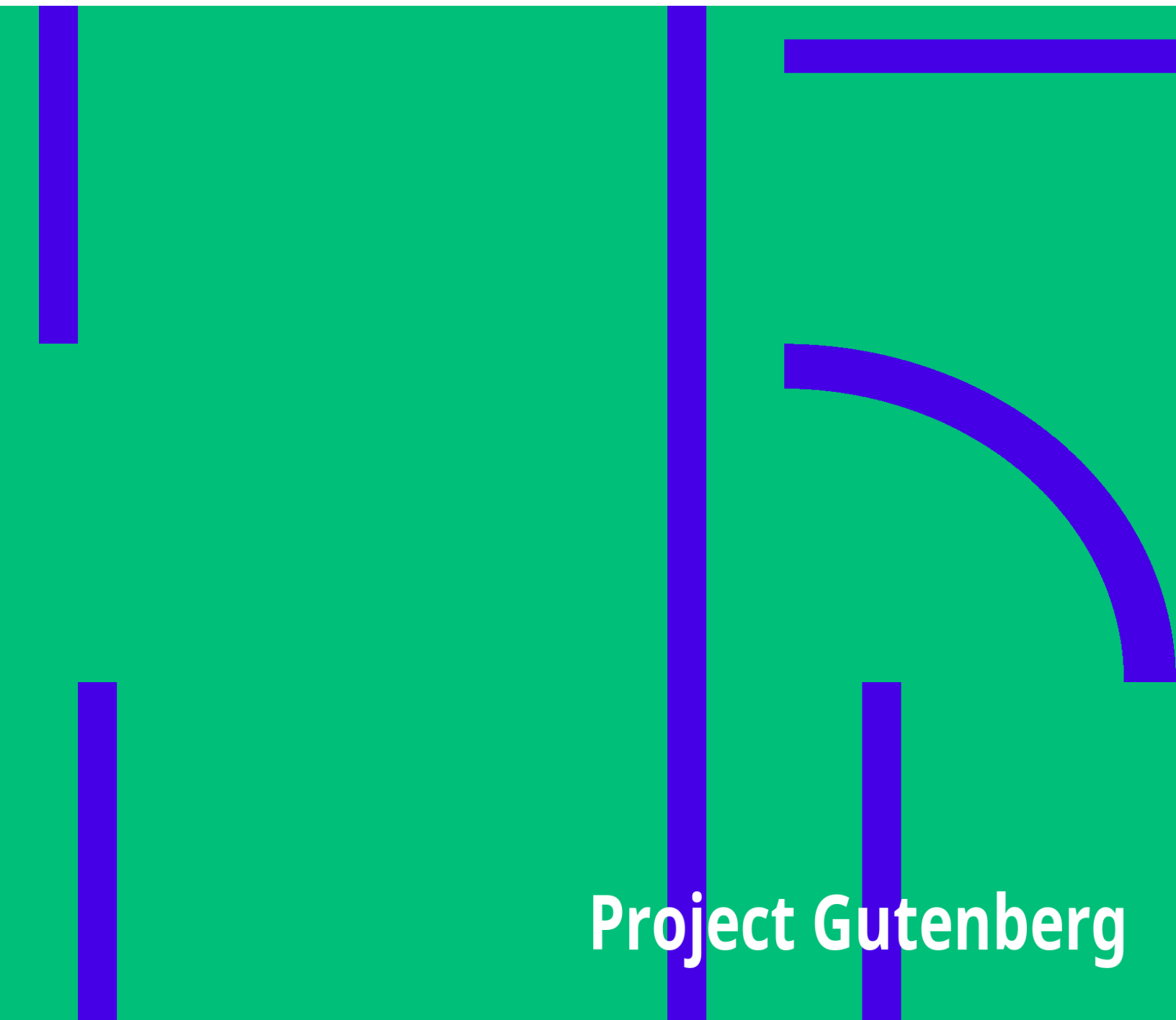


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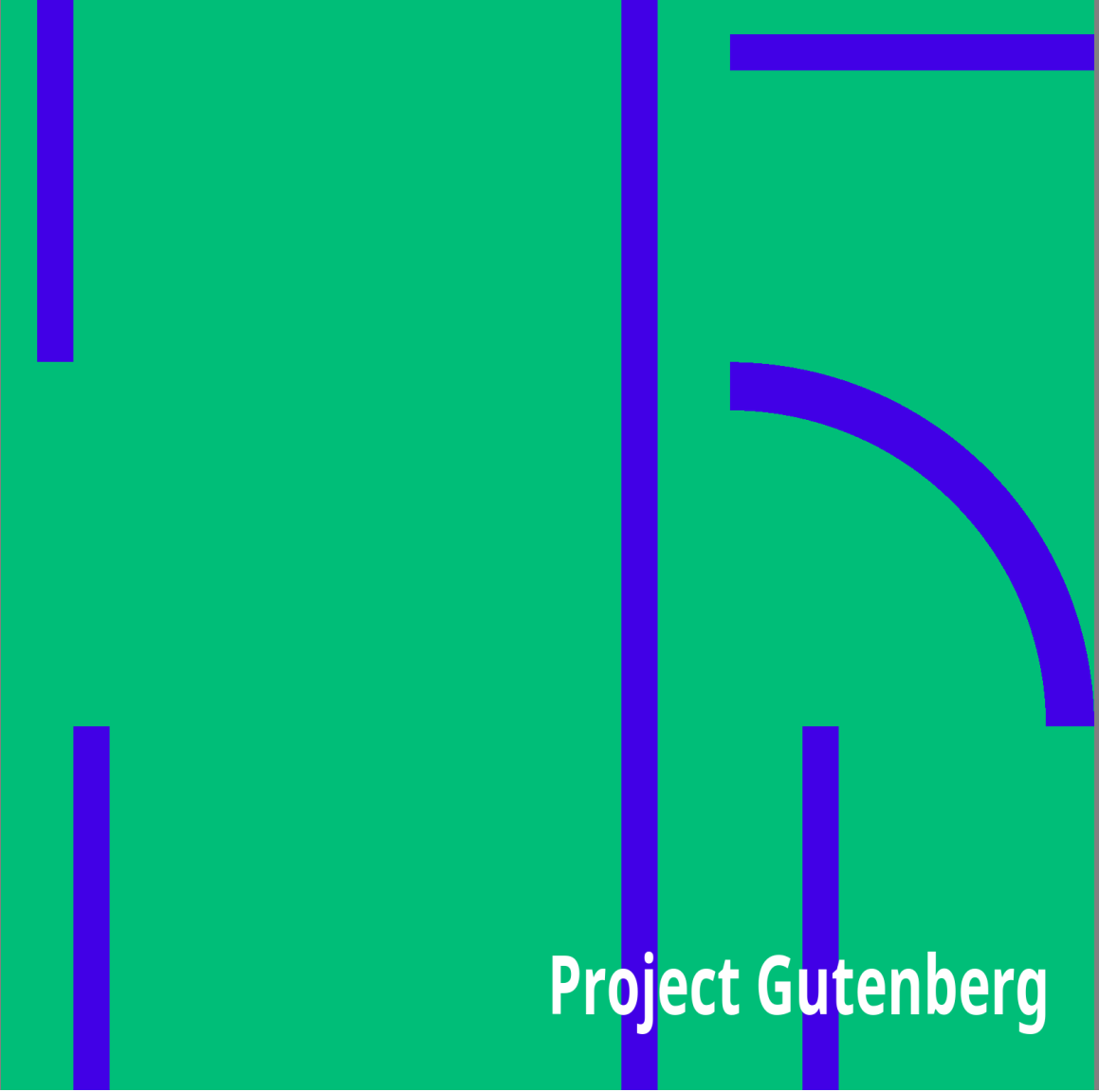
William MacLeod Raine

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*** START OF THE PROJECT GUTENBERG EBOOK THE
HIGHGRADER ***



KILMENY'S ALERT EYES SWEEPED AGAIN AND AGAIN THE TRAIL LEADING UP THE GULCH. HE DID NOT INTEND TO BE CAUGHT NAPPING BY THE OFFICERS.

Frontispiece, p. 67

THE HIGHGRADER

BY
WILLIAM MacLEOD RAINE

AUTHOR OF "WYOMING," "RIDGWAY OF MONTANA," "BUCKY O'CONNOR,"
"A TEXAS RANGER," "MAVERICKS," "BRAND BLOTTERS,"
"CROOKED TRAILS AND STRAIGHT,"
"THE VISION SPLENDID," "THE PIRATE OF PANAMA,"
"A DAUGHTER OF THE DONS," ETC.

ILLUSTRATIONS BY
D. C. HUTCHISON

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The Highgrader

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THE HIGHGRADER

PRELUDE

A young idealist, *ætat* four, was selling stars to put in the sky. She had cut them with her own scissors out of red tissue paper, so that she was able to give a guarantee.

"But you'll have to get the ladder out of our bedroom to put 'em up wiv," she told purchasers honestly.

The child was a wild dark creature, slim and elfish, with a queer little smile that flashed sudden as an April sun.

It was evening, on the promenade deck of an ocean liner. The sea was like glass and the swell hardly perceptible. Land was in sight, a vague uneven line rising mist-like on the horizon. Before morning the *Victorian* would be running up the St. Lawrence. Even for the most squeamish the discomforts of the voyage lay behind. A pleasant good fellowship was in the air. In some it took the form of an idle contentment, a vague regret that ties newly formed must so soon be broken. In others it found an expression more buoyant. Merry voices of shuffleboard players drifted forward. Young couples paced the deck and leaned over the rail to watch the phosphorescent glow. The open windows of the smoking-room gave forth the tinkle of glasses and the low rattle of chips. All sounds blended into a mellow harmony.

"What's your price on a whole constellation with a lovers' moon thrown in?" inquired a young man lounging in a deck chair.

The vendor of stars looked at him in her direct serious fashion. "I fink I tan't sell you all 'at, but I'll make you a moon to go wiv the stars—not a weally twuly one, jus' a make-believe moon," she added in a whisper.

An irritated voice made itself heard. "Steward, have you seen that child anywhere? The naughty little brat has run away again—and I left her only a minute."

The dealer in celestial supplies came to earth.

"I'm goin' to be smacked," she announced with grave conviction.

An unvoiced conspiracy formed itself instantly in her behalf. A lady in a steamer chair gathered the child under the shelter of her rug. An eight-year-old youngster knotted his fists valiantly. The young man who had priced a constellation considered the chances of a cutting-out expedition.

"She should have been in bed long ago. I just stepped out to speak to our room steward and when I came back she was gone," the annoyed governess was explaining.

Discovery was imminent. The victim prepared herself for the worst.

"I don't care," she protested to her protector. "It's ever so nicer to stay up, an' if it wasn't runnin' away it would be somefing else."

At this bit of philosophy the loungeer chuckled, rose swiftly, and intercepted the dragon.

"When do I get that walk you promised me, Miss Lupton? What's the matter with right now?"

The governess was surprised, since it was the first she had heard of any walk. Flattered she was, but still faithful to duty.

"I'm looking for Moya. She knows she must always go to her room after tea and stay there. The naughty child ran away."

"She's all right. I saw her snuggled under a rug with Mrs. Curtis not two minutes ago. Just a turn or two in this lovely night."

Drawn by the magnet of his manhood, Moya slipped into the chair beside the eight-year-old.

"I'd kick her darned shins if she spanked me," boasted he of the eight years.

Moya admired his courage tremendously. Her dark eyes followed the retreating figure of her governess. "I'm 'fraid."

"Hm! Bet I wouldn't be. Course, you're only a girl."

His companion pleaded guilty with a sigh and slipped her hand into his beneath the steamer rug.

"It's howwid to be a dirl," she confided.

"Bet I wouldn't be one."

"You talk so funny."

"Don't either. I'm a Namerican. Tha's how we all talk."

"I'm Irish. Mith Lupton says 'at's why I'm so naughty," the sinner confessed complacently.

Confidences were exchanged. Moya explained that she was a norphan and had nobody but a man called Guardy, and he was not her very own. She lived in Sussex and had a Shetland pony. Mith Lupton was horrid and was always smacking her. When she said her prayers she always said in soft to herself, "But pleathe, God, don't bless Mith Lupton." They were taking a sea voyage for Moya's health, and she had been seasick just the teentiest weentiest bit. Jack on his part could proudly affirm that he had not missed a meal. He lived in Colorado on a ranch with his father, who had just taken him to England and Ireland to visit his folks. He didn't like England one little bit, and he had told his cousin Ned so and they had had a fight. As he was proceeding to tell details Miss Lupton returned from her stroll.

She brought Moya to her feet with a jerk. "My goodness! Who will you pick up next? Now walk along to your room, missie."

"Yes, Mith Lupton."

"Haven't I told you not to talk to strangers?"

"He isn't stwanger. He's Jack," announced Moya stanchly.

"I'll teach you to run away as soon as my back is turned. You should have been in bed an hour ago."

"I tan't unbutton myself."

"A likely reason. Move along, now."

Having been remiss in her duty, Miss Lupton was salving her conscience by being extra severe now. She hurried her charge away.

Suddenly Moya stopped. "Pleathe, my han'erchif."

"Have you lost it? Where is it?"

"I had it in the chair."

"Then run back and get it."

Moya's thin white legs flashed along the deck. Like a small hurricane she descended upon the boy. Her arms went around his neck and for an instant he was smothered in her embrace, dark ringlets flying about his fair head.

"Dood-night, Jack."

A kiss fell helter-skelter on his cheek and she was gone, tugging a little handkerchief from her pocket as she ran.

The boy did not see her again. Before she was up he and his father left the boat at Quebec. Jack wondered whether she had been smacked, after all. Once or twice during the day he thought of her, but the excitement of new sights effaced from his mind the first romance his life had known.

But for nearly a week Moya added a codicil silently to her prayer. "And, God, please bless Jack."

CHAPTER I

THE CAMPERS

Inside the cabin a man was baking biscuits and singing joyously, "It's a Long, Long Way to Tipperary." Outside, another whistled softly to himself while he arranged his fishing tackle. From his book he had selected three flies and was attaching them to the leader. Nearest the rod he put a royal coachman, next to it a blue quill, and at the end a ginger quill.

The cook, having put his biscuits in the oven, filled the doorway. He was a big, strong-set man, with a face of leather. Rolled-up sleeves showed knotted brown arms white to the wrists with flour. His eyes were hard and steady, but from the corners of them innumerable little wrinkles fell away and crinkled at times to mirth.

"First call to dinner in the dining-car," he boomed out in a heavy bass.

Two men lounging under a cottonwood beside the river showed signs of life. One of them was scarcely more than a boy, perhaps twenty, a pleasant amiable youth with a weak chin and eyes that held no steel. His companion was nearer forty than thirty, a hard-faced citizen who chewed tobacco and said little.

"Where you going to fish to-night, Crumbs?" the cook asked of the man busy with the tackle.

"Think I'll try up the river, Colter—start in above the Narrows and work down, mebbe. Where you going?"

"Me for the Meadows. I'm after the big fellows. Going to hang the Indian sign on them with a silver doctor and a Jock Scott. The kid here got his

three-pounder on a Jock Scott."

The man who had been called Crumbs put his rod against the side of the house and washed his hands in a tin pan resting on a stump. He was a slender young fellow with lean, muscular shoulders and the bloom of many desert suns on his cheeks and neck.

"Going to try a Jock Scott myself after it gets dark."

The boy who had come up from the river's bank grinned. "Now I've shown you lads how to do it you'll all be catching whales."

"Once is a happenstance, twice makes a habit. Do it again, Curly, and we'll hail you king of the river," Colter promised, bringing to the table around which they were seating themselves a frying pan full of trout done to a crisp brown. "Get the coffee, Mosby. There's beer in the icebox, kid."

They ate in their shirtsleeves, camp fashion, on an oil cloth scarred with the marks left by many hot dishes. They brought to dinner the appetites of outdoors men who had whipped for hours a turbid stream under an August sun. Their talk was strong and crisp, after the fashion of the mining West. It could not be printed without editing, yet in that atmosphere it was without offense. There is a time for all things, even for the elemental talk of frontiersmen on a holiday.

Dinner finished, the fishermen lolled on the grass and smoked.

A man cantered out of the patch of woods above and drew up at the cabin, disposing himself for leisurely gossip.

"Evening, gentlemen. Heard the latest?" He drew a match across his chaps and lit the cigarette he had rolled.

"We'll know after you've told us what it is," Colter suggested.

"The Gunnison country ce'tainly is being honored, boys. A party of effete Britishers are staying at the Lodge. Got in last night. I seen them when they got off the train—me lud and me lady, three young ladies that grade up A1, a Johnnie boy with an eyeglass, and another lad who looks like one man from the ground up. Also, and moreover, there's a cook, a hawss wrangler, a hired girl to button the ladies up the back, and a valley chap to say 'Yes, sir, coming, sir,' to the dude."

"You got it all down like a book, Steve," grinned Curly.

"Any names?" asked Colter.

"Names to burn," returned the native. "A whole herd of names, honest to God. Most any of 'em has five or six, the way the *Denver Post* tells it. Me, I can't keep mind of so many fancy brands. I'll give you the A B C of it. The old parties are Lord James and Lady Jim Farquhar, leastways I heard one of the young ladies call her Lady Jim. The dude has Verinder burnt on about eight trunks, s'elp me. Then there's a Miss Dwight and a Miss Joyce Seldon—and, oh, yes! a Captain Kilmeny, and an Honorable Miss Kilmeny, by ginger."

Colter flashed a quick look at Crumbs. A change had come over that young man's face. His blue eyes had grown hard and frosty.

"It's a plumb waste of money to take a newspaper when you're around, Steve," drawled Colter, in amiable derision. "Happen to notice the color of the ladies' eyes?"

The garrulous cowpuncher was on the spot once more. "Sure, I did, leastways one of them. I want to tell you lads that Miss Joyce Seldon is the prettiest skirt that ever hit this neck of the woods—and her eyes, say, they're like pansies, soft and deep and kinder velvety."

The fishermen shouted. Their mirth was hearty and uncontained.

"Go to it, Steve. Tell us some more," they demanded joyously.

Crumbs, generally the leader in all the camp fun, had not joined in the laughter. He had been drawing on his waders and buckling on his creel. Now he slipped the loop of the landing net over his head.

"We want a full bill of particulars, Steve. You go back and size up the eyes of the lady lord and the other female Britishers," ordered Curly gayly.

"Go yore own self, kid. I ain't roundin' up trouble for no babe just out of the cradle," retorted the grinning rider. "What's yore hurry, Crumbs?"

The young man addressed had started away but now turned. "No hurry, I reckon, but I'm going fishing."

Steve chuckled. "You're headed in a bee line for Old Man Trouble. The Johnnie boy up at the Lodge is plumb sore on this outfit. Seems that you

lads raised ructions last night and broken his sweet slumbers. He's got the kick of a government mule coming. Why can't you wild Injuns behave proper?"

"We only gave Curly a chapping because he let the flapjacks burn," returned Crumbs with a smile. "You see, he's come of age most, Curly has. He'd ought to be responsible now, but he ain't. So we gave him what was coming to him."

"Well, you explain that to Mr. Verinder if he sees you. He's sure on his hind laigs about it."

"I expect he'll get over it in time," Crumbs said dryly. "Well, so-long, boys. Good fishing to-night."

"Same to you," they called after him.

"Some man, Crumbs," commented Steve.

"He'll stand the acid," agreed Colter briefly.

"What's his last name? I ain't heard you lads call him anything but Crumbs. I reckon that's a nickname."

Curly answered the question of the cowpuncher. "His name 's Kilmeny—Jack Kilmeny. His folks used to live across the water. Maybe this Honorable Miss Kilmeny and her brother are some kin of his."

"You don't say!"

"Course I don't know about that. His dad came over here when he was a wild young colt. Got into some trouble at home, the way I heard it. Bought a ranch out here and married. His family was high moguls in England—or, maybe, it was Ireland. Anyhow, they didn't like Mrs. Kilmeny from the Bar Double C ranch. Ain't that the way of it, Colter?"

The impassive gaze of the older man came back from the rushing river. "You know so much about it, Curly, I'll not butt in with any more misinformation," he answered with obvious sarcasm.

Curly flushed. "I'd ought to know. Jack's father and mine were friends, so's he and me."

"How come you to call him Crumbs?"

"That's a joke, Steve. Jack's no ordinary rip-roaring, hell-raisin' miner. He knows what's what. That's why we call him Crumbs—because he's fine bred. Pun, see. Fine bred—crumbs. Get it?"

"Sure I get it, kid. I ain't no Englishman. You don't need a two-by-four to pound a josh into my cocoanut," the rider remonstrated.

CHAPTER II

MR. VERINDER COMPLAINS

Jack Kilmeny followed the pathway which wound through the woods along the bank of the river. Occasionally he pushed through a thick growth of young willows or ducked beneath the top strand of a neglected wire fence.

Beyond the trees lay a clearing. At the back of this, facing the river, was a large fishing lodge built of logs and finished artistically in rustic style. It was a two-story building spread over a good deal of ground space. A wide porch ran round the front and both sides. Upon the porch were a man in an armchair and a girl seated on the top step with her head against the corner post.

A voice hailed Kilmeny. "I say, my man."

The fisherman turned, discovered that he was the party addressed, and waited.

"Come here, you!" The man in the armchair had taken the cigar from his mouth and was beckoning to him.

"Meaning me?" inquired Kilmeny.

"Of course I mean you. Who else could I mean?"

The fisherman drew near. In his eyes sparkled a light that belied his acquiescence.

"Do you belong to the party camped below?" inquired he of the rocking chair, one eyeglass fixed in the complacent face.

The guilty man confessed.

"Then I want to know what the deuce you meant by kicking up such an infernal row last night. I couldn't sleep a wink for hours—not for hours, dash it. It's an outrage—a beastly outrage. What!"

The man with the monocle was smug with the self-satisfaction of his tribe. His thin hair was parted in the middle and a faint straw-colored mustache decorated his upper lip. Altogether, he might measure five feet five in his boots. The miner looked at him gravely. No faintest hint of humor came into the sea-blue eyes. They took in the dapper Britisher as if he had been a natural history specimen.

"So kindly tell them not to do it again," Dobyans Verinder ordered in conclusion.

"If you please, sir," added the young woman quietly.

Kilmeny's steady gaze passed for the first time to her. He saw a slight dark girl with amazingly live eyes and a lift to the piquant chin that was arresting. His hat came off promptly.

"We didn't know anybody was at the Lodge," he explained.

"You wouldn't, of course," she nodded, and by way of explanation: "Lady Farquhar is rather nervous. Of course we don't want to interfere with your fun, but——"

"There will be no more fireworks at night. One of the boys had a birthday and we were ventilating our enthusiasm. If we had known——"

"Kindly make sure it doesn't happen again, my good fellow," cut in Verinder.

Kilmeny looked at him, then back at the girl. The dapper little man had been weighed and found wanting. Henceforth, Verinder was not on the map.

"Did you think we were wild Utes broke loose from the reservation? I reckon we were some noisy. When the boys get to going good they don't quite know when to stop."

The eyes of the young woman sparkled. The fisherman thought he had never seen a face more vivid. Such charm as it held was too irregular for beauty, but the spirit that broke through interested by reason of its hint of freedom. She might be a caged bird, but her wings beat for the open spaces.

"Were they going good last night?" she mocked prettily.

"Not real good, ma'am. You see, we had no town to shoot up, so we just punctured the scenery. If we had known you were here——"

"You would have come and shot us up," she charged gayly.

Kilmeny laughed. "You're a good one, neighbor. But you don't need to worry." He let his eyes admire her lazily. "Young ladies are too seldom in this neck of the woods for the boys to hurt any. Give them a chance and they would be real good to you, ma'am."

His audacity delighted Moya Dwight. "Do you think they would?"

"In our own barbaric way, of course."

"Do you ever scalp people?" she asked with innocent impudence.

"It's a young country," he explained genially.

"It has that reputation."

"You've been reading stories about us," he charged. "Now we'll be on our good behavior just to show you."

"Thank you—if it isn't too hard."

"They're good boys, though they do forget it sometimes."

"I'm glad they do. They wouldn't interest me if they were too good. What's the use of coming to Colorado if it is going to be as civilized as England?"

Verinder, properly scandalized at this free give and take with a haphazard savage of the wilds, interrupted in the interest of propriety. "I'll not detain you any longer, my man. You may get at your fishing."

The Westerner paid not the least attention to him. "My gracious, ma'am, we think we're a heap more civilized than England. We ain't got any militant suffragettes in this country—at least, I've never met up with any."

"They're a sign of civilization," the young woman laughed. "They prove we're still alive, even if we are asleep."

"We've got you beat there, then. All the women vote here. What's the matter with you staying and running for governor?"

"Could I—really?" she beamed.

"Really and truly. Trouble with us is that we're so civilized we bend over backward with it. You're going to find us mighty tame. The melodramatic romance of the West is mostly in storybooks. What there was of it has gone out with the cowpuncher."

"What's a cowpuncher?"

"He rides the range after cattle."

"Oh—a cowboy. But aren't there any cowboys?"

"They're getting seldom. The barb wire fence has put them out of business. Mostly they're working for the moving picture companies now," he smiled.

Mr. Verinder prefaced with a formal little cough a second attempt to drive away this very assured native. "As I was saying, Miss Dwight, I wouldn't mind going into Parliament, you know, if it weren't for the bally labor members. I'm rather strong on speaking—that sort of thing, you know. Used to be a dab at it. But I couldn't stand the bounders that get in nowadays. Really, I couldn't."

"And I had so counted on the cowboys. I'm going to be disappointed, I think," Miss Dwight said to the Westerner quietly.

Verinder had sense enough to know that he was being punished. He had tried to put the Westerner out of the picture and found himself eliminated instead. An angry flush rose to his cheeks.

"That's the mistake you all make," Kilmeny told her. "The true romance of the West isn't in its clothes and its trappings."

"Where is it?" she asked.

"In its spirit—in the hope and the courage born of the wide plains and the clean hills—in its big democracy and its freedom from convention. The West is a condition of mind."

Miss Dwight was surprised. She had not expected a philosophy of this nature from her chance barbarian. He had the hands of a working man, brown and sinewy but untorn; yet there was the mark of distinction in the lean head set so royally on splendid shoulders. His body, spare of flesh and narrow of flank, had the lithe grace of a panther. She had seen before that look of competence, of easy self-reliance. Some of the men of her class had

it—Ned Kilmeny, for instance. But Ned was an officer in a fighting regiment which had seen much service. Where had this tanned fisherman won the manner that inheres only in a leader of men?

"And how long does it take to belong to your West?" asked the young woman, with the inflection of derision.

But her mockery was a fraud. In both voice and face was a vivid eagerness not to be missed.

"Time hasn't a thing to do with it. Men live all their lives here and are never Westerners. Others are of us in a day. I think you would qualify early."

She knew that she ought to snub his excursion into the personal, but she was by nature unconventional.

"How do you know?" she demanded quickly.

"That's just a guess of mine," he smiled.

A musical voice called from within the house. "Have you seen my *Graphic*, Moya?"

A young woman stood in the doorway, a golden-white beauty with soft smiling eyes that showed a little surprise at sight of the fisherman. A faint murmur of apology for the interruption escaped her lips.

Kilmeny could not keep his eyes from her. What a superb young creature she was, what perfection in the animal grace of the long lines of the soft rounded body! Her movements had a light buoyancy that was charming. And where under heaven could a man hope to see anything lovelier than this pale face with its crown of burnished hair so lustrous and abundant?

Miss Dwight turned to her friend. "I haven't seen the *Graphic*, Joyce, dear."

"Isn't it in the billiard room? Thought I saw it there. I'll look," Verinder volunteered.

"Good of you," Miss Joyce nodded, her eyes on the stranger who had turned to leave.

Kilmeny was going because he knew that he might easily outwear his welcome. He had punished Verinder, and that was enough. The miner had met too many like him not to know that the man belonged to the family of

common or garden snob. No doubt he rolled in wealth made by his father. The fellow had studied carefully the shibboleths of the society with which he wished to be intimate and was probably letter-perfect. None the less, he was a bounder, a rank outsider tolerated only for his money. He might do for the husband of some penniless society girl, but he would never in the world be accepted by her as a friend or an equal. The thought of him stirred the gorge of the fisherman. Very likely the man might capture for a wife the slim dark girl with the quick eyes, or even her friend, Joyce, choicest flower in a garden of maidens. Nowadays money would do anything socially.

"Cheekiest beggar I ever saw," fumed Verinder. "Don't see why you let the fellow stay, Miss Dwight."

The girl's scornful eyes came round to meet his. She had never before known how cordially she disliked him.

"Don't you?"

She rose and walked quickly into the house.

Verinder bit his mustache angrily. He had been cherishing a fiction that he was in love with Miss Dwight and more than once he had smarted beneath the lash of her contempt.

Joyce sank gracefully into the easiest chair and flashed a dazzling smile at him. "Has Moya been *very* unkind, Mr. Verinder?"

He had joined the party a few days before at Chicago and this was the first sign of interest Miss Seldon had shown in him. Verinder was grateful.

"Dashed if I understand Miss Dwight at all. She blows hot and cold," he confided in a burst of frankness.

"That's just her way. We all have our moods, don't we? I mean we poor women. Don't all the poets credit us with inconstancy?" The least ripple of amusement at her sex swelled in her throat and died away.

"Oh, by Jove, if that's all! I say, do you have moods too, Miss Joyce?"

Her long thick lashes fluttered down to the cheeks. Was she embarrassed at his question? He felt a sudden lift of the heart, an access of newborn confidence. Dobyans Verinder had never dared to lift his hopes as high as the famous beauty Joyce Seldon. Now for the first time his vanity stirred.

Somehow—quite unexpectedly to him—the bars between them were down. Was it possible that she had taken a fancy to him? His imagination soared.

For a moment her deep pansy eyes rested in his. He felt a sudden intoxication of the senses. Almost with a swagger he drew up a chair and seated himself beside her. Already he was the conquering male in headlong pursuit. Nor was he disturbed by the least suspicion of having been filled with the sensations and the impulses that she had contrived.

Miss Seldon had that morning incidentally overheard Lady Farquhar tell her husband that Dobyans Verinder's fortune must be nearer two million pounds than one million. It was the first intimation she had been given that he was such a tremendous catch.

CHAPTER III

NIGHT FISHING

Jack Kilmeny crossed the river by the rope ferry and followed the trail that ran up. He took the water above the Narrows, about a mile and a half from camp. The mosquitoes were pretty bad near the willows along the shore, but as he got out farther they annoyed him less and with the coming of darkness they ceased to trouble.

The fish were feeding and he had a few strikes. Half a dozen eight and nine-inch trout went into his creel, but though he was fishing along the edge of the deep water, the big fellows would not be tempted. His watch showed a quarter to ten by the moon when at last he hooked one worth while.

He was now down by the riffles not far from the Lodge. A long cast brought him what fishermen along the Gunnison call a bump. Quietly he dropped his fly in exactly the same spot. There was a tug, a flash of white above the water, and, like an arrow, the trout was off. The reel whirled as the line unwound. Kilmeny knew by the pressure that he had hooked a good one and he played it carefully, keeping the line taut but not allowing too much strain on it. After a short sharp fight he drew the fish close enough to net the struggler. Of the Lochleven variety, he judged the weight of the trout to be about two pounds.

He would have liked to try another cast, but it was ten o'clock, the limit set by law. He waded ashore, resolved to fish the riffles again to-morrow.

Next day brought Kilmeny the office of camp cook, which was taken in turn by each of the men. Only two meals a day were eaten in camp, so that he had several hours of leisure after the breakfast things were cleared away. In

a desultory fashion he did an hour or two of fishing, though his mind was occupied with other things.

The arrival of the party at the Lodge brought back to him vividly some chapters of his life that had long been buried. His father, Archibald Kilmeny, had married the daughter of a small cattleman some years after he had come to Colorado. Though she had died while he was still a child, Jack still held warmly in his heart some vivid memories of the passionate uncurbed woman who had been his mother.

She had been a belle in the cow country, charming in her way, beautiful to the day of her death, but without education or restraint. Her husband had made the mistake of taking her back to Ireland on a visit to his people. The result had been unfortunate. She was unconquerably provincial, entirely democratic, as uncultured as her native columbine. Moreover, her temper was of the whirlwind variety. The staid life of the old country, with its well-ordered distinctions of class and rutted conventions, did not suit her at all. At traditions which she could not understand the young wife scoffed openly. Before she left, veiled dislike became almost open war. The visit had never been repeated, nor, indeed, had she ever been invited again. This she had bitterly resented and she had instilled into Jack the antagonism she herself felt. When he was eight years old Jack's father had insisted on taking him back to meet his relatives. Immediately upon his return the youngster's mother had set about undermining any fondness he might have felt for his British kindred. Three years later she had died.

She had been a doting mother, with fierce gusts of passionate adoration for her boy. Jack remembered these after he forgot her less amiable qualities. He had grown up with an unreasonable feeling of dislike toward those of his father's family who had failed to get along with her. Some instinct of loyalty which he could hardly define set him unconsciously in antagonism to his cousins at the Lodge. He had decided not to make himself known to them. In a few days their paths would diverge again for all time.

Dusk found him again in the river just above the riffles. He fished down the stream slowly, shortening his line as darkness settled over the hills. His luck was rather worse than usual. The trout were nosing the flies rather than striking with any appetite.

He was nearly opposite the Lodge when he noticed a fisherman in front of him. Working steadily forward, Kilmeny found himself gaining on the other. In order not to pass too near he struck out into the deeper water toward the center of the river. When almost opposite the other he heard a splash not twenty feet away, followed by the whirr of the reel as the trout made for the deep water. From the shadows where his unknown companion was obscured came the click of the line being wound up. There was a flash of silver in the moonlight, and again the rapid whirl of the reel.

"You've hooked a whale, neighbor," Kilmeny called across.

The voice that came back to him across the water was eager and glad. Jack would have known its throb of youthful zest among a thousand. "Must I let him have all the line he wants?"

Kilmeny waded toward her as he gave counsel. "Don't make it too easy for him, but don't jerk. Keep his nose up if you can."

The humming of the reel and the steady click-click-click of the winding alternated. The trout fought gamely and strongly, but the young woman stuck to her work and would not give him any rest. Jack watched her carefully. He saw that she was tiring, but he did not offer any help, for he knew that she was a sportsman. She would want to win alone or not at all.

Yet he moved closer. The water was up to her hips, and no river in the Rockies has a swifter current than the Gunnison. The bottom too is covered with smooth slippery stones and bowlders, so that a misstep might send her plunging down. Deprived of the use of her landing pole, she could make less resistance to the tug of the stream, and the four or five pounds of dynamic energy at the end of her line would give her all she could do to take care of for the next few minutes. Her pole was braced against her body, which made reeling difficult. The man beside her observed that except for a tendency to raise the pole too much she was playing her trout like a veteran.

The thing that he had anticipated happened. Her foot slipped from its insecure rock hold and she stumbled. His arm was round her waist in an instant.

"Steady! Take your time."

"Thanks. I'm all right now."

His right arm still girdled her slight figure. It met with his approval that she had not cried out or dropped her pole, but he would not take the chance of an accident.



"HE'S HOOKED PRETTY FAST. TAKE YOUR TIME ABOUT GETTING HIM INTO YOUR NET. THESE BIG FELLOWS ARE LIKELY TO SQUIRM AWAY." P.

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The trout was tiring. Inch by inch she brought him nearer. Sometimes he would dart away again, but each dash for liberty was shorter and weaker than the last.

Presently she panted, "My landing net."

It was caught in the creel. Kilmeny unfastened the net and brought it round where it would be ready for instant use.

"Tell me what I must do now."

"He's hooked pretty fast. Take your time about getting him into your net, and be careful then. These big fellows are likely to squirm away."

It was a ticklish moment when she let go of the rod with her left hand to slip the net under the trout, but she negotiated it in safety.

"Isn't he a whopper?" she cried in delight. "He won't go into the creel at all."

"Then let me have him. The glory is yours. I'll be your gillie to carry the game bag."

He got his fingers through its gill before he took the hook from the mouth of the fish. Carrying the trout in one hand and his pole in the other, he waded slowly through the swift water to the shore.

The girl's vibrant voice came to him as she splashed at his heels toward the bank. "He's such a ripping good one. I'm so pleased. How much do you think he will weigh?"

The young man took the catch far enough back from the river, so that they could examine him in safety.

"My guess is six pounds. He's the biggest taken this year so far. I congratulate you, Miss Dwight."

"I would never have got him if you hadn't been there to help me with advice. But I really did it all myself, didn't I? If you had touched the rod before I had him netted I'd never have forgiven you," she confessed, eyes glowing with the joy of her achievement.

"It's no joke to land one of these big fellows. I saw you were tired. But it's the sporting thing to play your own fish."

Her dark eyes flashed a questioning glance at him. She had been brought up in a society where class lines were closely drawn, but her experience gave her no data for judging this young man's social standing. Casual inquiries of old Ballard, the caretaker at the Lodge, had brought her the information that the party of fishermen were miners from the hills. This one went by the

name of Crumbs and sometimes Jack. What puzzled Miss Dwight was the difficulty of reconciling him with himself. Sometimes he used the speech and the slow drawl of the plainsman, and again he spoke with the correctness of one who has known good society. In spite of his careless garb he had the look of class. The well-shaped, lightly poised head, the level blue eyes of a man unafraid, the grace with which he carried himself, all denied that he was an uncouth rustic.

A young woman of impulse, she yielded to an audacious one now. "I'm glad you let me do the sporting thing, Mr.—Crumbs."

His gentle laughter welled out. "Where did you get that?"

"Isn't it your name?" she asked, with a lift of the dark eyebrows.

He hesitated, barely an instant. Of course she knew perfectly well that it was not his name. But it suited him not to give one more definite.

"I reckon it's a name good enough to bring me to dinner by," he drawled, smiling.

He was back again in the Western idiom and manner. She wondered why. The change had come when she had spoken his name. A certain wariness had settled over his face like a mask. She could see that he was purposely taking refuge in the class distinctions that presumably separated them. Yet she could have sworn that nothing had been farther from his mind during the exciting ten minutes in the water while voice and presence and arm had steadied her for the battle.

They walked together up the slope to the big house. A fishing costume is not a thing of grace, but the one this girl wore could not eclipse the elastic suppleness of the slender figure or the joy in life that animated the vivid face with the black curls straying from beneath the jaunty cap. The long hip waders she wore so briskly gave her the look of a modern Rosalind. To deny her beauty was easy, but in the soft sifted moonlight showered down through the trees it was impossible for Kilmeny's eyes to refuse her an admission of charm. There was a hint of pleasant adventure in the dusky eyes of this clean-limbed young nymph, a plastic energy in the provoking dainty face, that stung his reluctant admiration. She had the gift for comradeship, and with it a freedom of mind unusual in one of her class.

She ran up the steps of the Lodge lightly and thanked him with a pleasant "Good-night." As he turned away Kilmeny came face to face with another fisherman returning from the sport of the night. The man opposite him was rather short and thickset. In his eyes was a look of kind shrewd wisdom. Red-faced and white-bearded, he was unmistakably an Englishman of the upper class.

Miss Dwight introduced him as Lord Farquhar, and the men shook hands.

"Guess what I've got," demanded the young woman, her hands behind her.

"Heaven only knows. It might be anything from the measles to a new lover," smiled Farquhar.

She flashed upon him the fish that had been hidden behind her waders.

"By Jove! Catch him yourself?"

She nodded, her eyes shining.

Farquhar, very much a sportsman, wanted to know all about it, after which he insisted on weighing the trout. Jack was dragged into the Lodge to join in this function, and presently found himself meeting Lady Farquhar, a pleasant plump lady who did not at all conform to the usual stage conception of her part. Her smile was warm for this supple blue-eyed engaging Westerner, but the latter did not need to be told that behind her friendliness the instinct of the chaperone was alert. The one swift glance she had thrown at Miss Dwight told him as much.

Into the room drifted presently Miss Seldon, a late novel in her hand. In contrast with her sheathed loveliness Miss Dwight looked like a young girl. There was something very sweet and appealing in Moya's slim indefinite figure of youth, with its suggestion of developing lines, but most men ceased to look at her when Joyce swam within the orbit of their vision.

Joyce Seldon was frankly a beauty in every line and feature. Her exquisite coloring, the soft amber hair so extravagant in quantity, the long lashes which shaded deep lovely eyes, satisfied the senses no less than the supple rounded young body which was carried with such light grace. Kilmeny was not very impressionable, but in her presence the world seemed somehow shot through with a new radiance. She laid upon him the spell of women.

Presently Dobyans Verinder dropped in with an empty creel and opened wide supercilious eyes at sight of Jack. He was followed presently by Captain Kilmeny and his sister, the latter a pretty Irish girl, quick of tongue, quicker of eye, and ready for anything from flirting to fishing.

From the talk, Jack gathered that Lord Farquhar and Miss Dwight had bet their catch would outweigh that of the other three, Farquhar and she to fish opposite the Lodge and the others half a mile below. The minority party had won easily, thanks to the big trout and Verinder's obstinacy in sticking to the flies he had used in England with success. There is a type of Englishman that goes through life using the flies he was brought up on and trying to make them fit all places and times. Any divergence is a form of treason. Neither Farquhar nor Kilmeny happened to be of that kind. They besieged the American with questions and soon had a pretty fair idea of fishing on the Gunnison.

"I should think you would ask me. I thought I was the one that catches the big fish," suggested Miss Dwight, who had just returned from having changed into more conventional attire.

"Make a habit of it, my dear, and we will," Lord Farquhar assured her.

"Once is enough, Moya. I can't afford a pair of gloves every evening," India Kilmeny protested.

"By Jove, leave some of the big ones for us, Miss Dwight," implored the captain. He was a spare wiry man, with the long clean build one expects to see in soldiers. Long residence in India had darkened his skin to an almost coffee brown, except for a wintry apple red where the high cheek bones seemed about to push through.

Supper, to which Lady Farquhar had insisted that the American stay, was being served informally in the living-room. Verinder helped himself to a sandwich, ogling Moya the while with his eyeglass.

"I say, you know, I believe in you, Miss Dwight," he asserted.

That young woman did not know why she resented more than usual his wheedling attentions. Lady Jim had invited the millionaire to join their party, as the girl very well knew, in order to give her charges a chance at him. Not that Lady Farquhar liked the man. She knew him quite well for an ill-bred little snob at heart. But he would pass muster in a crowd, and none

of the young women of the party could afford to sniff at two millions sterling. It was entirely probable that Joyce, with her beauty and her clear vision of the need of money in the scheme of things, would marry as well as if she had a mother to look out for her. But Lady Jim felt it her duty to plan for India and Moya. She was more anxious about Miss Dwight than the other Irish girl, for Moya was likely to bolt the traces. Her friendships with men were usually among ineligible. Verinder had shown a decided drift in her direction, but the girl had not encouraged him in the least. If she had been possessed of an independent fortune she could not have been more airily indifferent to his advances.

Since Captain Kilmeny had joined the party in Denver the plans of Lady Farquhar had been modified. The soldier had taken an early opportunity to tell her that he meant to ask Moya Dwight to marry him. He had been in love with her for years and had asked her just before his regiment left for India the last time. The captain was not rich, but he had enough. It happened too that he was a clean honest gentleman who had made a reputation for efficiency and gallantry in the army. If he was not brilliant, he was at least thorough. Lady Farquhar was quite willing to back his suit so far as she could.

"He's our kind, Ned Kilmeny is," she had told her husband. "I gave Moya her chance with Verinder but I should have been disappointed in her if she had taken him. If she will only fall in love with Ned I'll forgive her all the queer things she is always doing."

Farquhar had chuckled. "It's an odds-on chance she'll not fancy him, Di."

"For Heaven's sake, why not?" his wife had asked impatiently. "Does she expect to marry an emperor?"

"I don't know what she expects. The subject of matrimony is not all-important to Moya yet. But some day it will be—and then may I be there to see!"

"You're so ridiculously wrapped up in her," Lady Jim accused with a smile. "Why do you expect her love affair to be so interesting? For my part, I think Ned quite good enough for her."

"Oh, he's good enough. That isn't quite the point, is it? Moya wants to be stormed, to be swept from her feet into the arms of the man she is ready to

love. A sort of a Lochinvar business—full of thrills and great moments. Ned can't give her those."

"No, I suppose not. Pity she can't be sensible."

"There are enough of us sensible, Di. We can spare her a few years yet for romance. When she grows sensible she'll have to give up something she can't afford to lose."

His wife looked at him and smiled fondly. "You haven't quite lost it yourself, Jim."

It was true enough that Lord Farquhar retained an interest in life that was refreshing. This evening his eyes gleamed while the Westerner told of the frontier day program to be held at the little town of Gunnison next day.

"You and your friends are miners, I understand. You'll not take part, then?" he asked.

"I used to punch cows. My name is entered for the riding. The boys want me to take a turn."

India Kilmeny sat up straight. "Let's go. We can ride up in the morning. It will be jolly. All in favor of going eat another sandwich."

"It will be pretty woolly—quite different from anything you have seen," the miner suggested.

"Thought we came here to fish," Verinder interposed. "Great bore looking at amateur shows—and it's a long ride."

"Move we go. What say, Lady Farquhar?" put in Captain Kilmeny.

"Do let's go," Moya begged.

"I don't see why we shouldn't," Lady Farquhar smiled. "But I'm like Mr. Verinder about riding. If he'll drive me up the rest of you can go on horseback."

"Delighted, 'm sure."

Verinder came to time outwardly civil but inwardly fuming. What the deuce did Lady Farquhar mean? Captain Kilmeny would have five hours clear with Miss Dwight and Miss Seldon during the ride back and forth. Ever since the soldier had joined the party things had been going badly.

"If we're going it's time you girls were in bed. You've had a hard day and tomorrow will be another," Lady Jim pronounced.

The Westerner rose to go.

"Night's young yet. Stop and sit in with us to a game of poker. What!" Farquhar invited.

"My pocketbook is at the camp," the American demurred.

"I'll be your banker," his host volunteered.

The ladies said good-night and departed. Chairs were drawn to the card table, chips sold, and hands dealt. The light of morning was breaking before Kilmeny made his way back to camp. He had in his pockets one hundred seventy three dollars, most of which had recently been the property of Dobyans Verinder.

An early start for Gunnison had been agreed upon by the fishermen at the camp. To go to bed now was hardly worth while. Jack took a towel from the willow bush upon which it was hanging, went down to the river, stripped, and from a rock ten feet above a deep pool dived straight as an arrow into the black water. The swirl of the current swept him into the shallower stream below. He waded ashore, beautiful in his supple slimness as an Apollo, climbed the rock a second time, and again knew the delightful shock of a dive into icy water fresh from the mountain snows.

Ten minutes later he wakened the camp by rattling the stove lids.

"Oh, you sluggards! Time to hit the floor," he shouted.

CHAPTER IV

FUGITIVES FROM JUSTICE

At the Lodge too an early breakfast was held, though it was five hours later than the one at the camp. The whole party was down by nine-thirty and was on the road within the hour. The morning was such a one as only the Rockies can produce. The wine of it ran through the blood warm and stimulating. A blue sky flecked with light mackerel clouds stretched from the fine edge of the mountains to the ragged line of hills that cut off the view on the other side.

The horses were keen for the road and the pace was brisk. It was not until half the distance had been covered that Joyce, who was riding beside the captain, found opportunity for conversation.

"You sat up late, didn't you?"

"Early," the soldier laughed.

"How did the savage behave himself?"

"He went the distance well. We all contributed to the neat little roll he carried away." Kilmeny smiled as he spoke. He was thinking of Verinder, who had made a set against the miner and had tried to drive him out by the size of his raises. The result had been unfortunate for the millionaire.

"He has a good deal of assurance, hasn't he?" she asked lightly.

The captain hesitated. "Do you think that's quite the word? He fitted in easily—wasn't shy or awkward—that sort of thing, you know—but he wasn't obtrusive at all. Farquhar likes him."

"He's rather interesting," Joyce admitted.

She thought of him as a handsome untamed young barbarian, but it was impossible for her to deny a certain amount of regard for any virile man who admired her. The Westerner had not let his eyes rest often upon her, but the subtle instinct of her sex had told her that he was very much taken with her. Since Joyce Seldon was the center and circumference about which most of her thoughts revolved, it followed that the young man had chosen the sure way to her favor.

Moya Dwight too found that the young fisherman flitted in and out of her mind a good deal. He had told her, with that sardonic smile, that he was a workingman. Indeed, there had been something almost defiant in the way he had said it, as if he would not for a moment accept their hospitality on false pretenses. But, surely, he was worlds apart from any laborer she had ever seen. Last evening he had been as much at his ease as Lord Farquhar himself. A little uncertainty about the use of the spoons and forks had not disturbed him at all. In spite of the soft vocal elisions of the West, his speech had a dignity that suggested breeding. It was quite likely he was not a gentleman, according to the code in which she had been brought up, but it was equally sure there burned in him that dynamic spark of self-respect which is at the base of all good manners.

The little town of Gunnison rioted with life. Born and brought up as she had been in the iron caste of modern super-civilization, Moya found the barbaric color of the occasion very appealing. As she looked down on the arena from the box her party occupied, the heart of the girl throbbed with the pure joy of it all. She loved this West, with its picturesque chap-clad brown-faced riders. They were a hard-bitten lot, burned to a brick red by the untempered sun of the Rockies. Cheerful sons of mirth they were, carrying their years with a boyish exuberance that was delightful.

Most of the competitors for the bucking broncho championship had been eliminated before the arrival of the party from the Lodge. Among the three who had reached the finals was their guest of the previous evening.

"Jack Kilmeny will ride Teddy Roosevelt," blared the megaphone man.

The English officer turned to Farquhar. "Didn't quite catch the name. Sounded like my own."

"That's what I thought," contributed his sister. A moment later, she added: "Why, it's Mr. Crumbs."

That young man sauntered forward lazily, dragging his saddle by its horn. He saddled the trembling animal warily, then swung lightly to the seat. The broncho stood for an instant motionless, then humped itself from the earth, an incarnate demon of action. As a pitcher, a weaver, a sunfisher, this roan had no equal. Its ill-shaped nose and wicked red eyes were enough to give one bad dreams. But the lean-flanked young miner appeared clamped to the saddle. Lithe and sinuous as a panther, he rode with a perfect ease that was captivating. Teddy tried all its tricks. It went up into the air and came down with all four legs stiff as iron posts. It shot forward in a series of quick sharp bucks. It flung itself against the wall of the arena to crush the leg of this rider who held the saddle with such perfect poise. But Jack Kilmeny was equal to the occasion and more. When the brute went over backward, in a somersault, he was out of the saddle and in again before the vicious outlaw had staggered to its feet. Even the frontier West had never seen a more daring and magnificent piece of horsemanship.

Captain Kilmeny clapped his hands enthusiastically. "Bravo! Well done!" He turned to Moya, who sat beside him. "Finest bit of rough-riding I ever saw. Not one man in a million could have done it."

"It's all in getting the hang of the thing, you know," drawled Verinder complacently.

Moya, who was leaning forward with her dark eyes fixed on the two superb animals fighting for mastery in the arena, thought both comments characteristic. The captain was a sportsman and a gentleman, the millionaire was neither.

India whispered in the ear of Moya. "He's as broadminded as a crab, just about."

The reference was of course to Verinder. "I think we ought to be fair, even to a crab, dear," Miss Dwight answered dryly.

The battle between the outlaw broncho and its rider was over. The confidence of Teddy Roosevelt as well as its strength had been shaken. The bucks of the pony were easy to foresee. Presently they ceased. The horse

stood with drooping head, foam dripping from its mouth, flanks flecked with sweat stains.

Kilmeny swung from the saddle, and at the same time Colter stepped into the arena. He drew Jack aside and whispered in his ear. India, watching the rough-rider through field glasses, saw the face of the young man grow grim and hard. Without the delay of a moment he pushed through the crowd that gathered to congratulate him and walked out of the grounds with Colter.

The other two riders who had reached the finals were both experts in the saddle. One of them, however, had been traveling with a Wild West show and was too soft to hold his own against the bit of incarnate devilry he was astride. To save himself he had to clutch at the horn of the saddle.

"He's pulling leather," shouted one of the judges, and the man was waved aside.

The third cowpuncher made a good showing, but his horse lacked the energy and spirit of Teddy Roosevelt. The unanimous decision of the judges was in favor of Kilmeny. But when they sought for him to award the prize the new champion was nowhere to be found.

Moya Dwight felt with genuine disappointment that the man's courtesy had failed. She and her friends had applauded his exploits liberally. The least he could have done would have been to have made a short call at their box. Instead, he had ignored them. She resolved to bear herself more coldly if they met again.

The early shadows of sunset were stretching down the rough mountain sides by the time the visitors from the Lodge reached the river cañon on their homeward way. Soon after this the champion rider and his friend Colter passed them on a stretch of narrow road cut in the steep wall of the gulch. The leathery face of the latter took them in impassively as he gave them a little nod of recognition, but the younger man reined in for a few words. He accepted their congratulations with a quiet "Glad you enjoyed it," but it was plain that he was in a hurry. In his eyes there was a certain hard wariness that seemed hardly to fit the occasion. Moya could not avoid the impression that he was anxious about something. As soon as he well could he put spurs to his horse and cantered after his companion.

"I don't like your savage as well as I thought I was going to. If he can't be pleasanter than that you may keep him yourself, Moya," Joyce announced with a smile.

It was perhaps a quarter of an hour later that the sound of hard riding reached them from the rear. Five dusty, hard-bitten men, all armed with rifles and revolvers, drew level with them. The leader threw a crisp question at Lord Farquhar.

"Two riders pass you lately?"

"Yes."

"One on a big sorrel and the other on a roan with white stockings on the front feet?"

"Yes."

"Say anything?"

"The younger one stopped for a few words. He is a Mr. Crumbs, camped on the river just below us."

The lank man with the rifle across his saddle bow laughed grimly. "Yes, he is—not. His name is Kilmeny—Jack Kilmeny. I'm the sheriff of Gunnison County—and I want him bad."

"Did you say Kilmeny?" asked the captain sharply.

"That's what I said—the man that won the broncho busting contest to-day."

To Moya, looking around upon the little group of armed men, there was a menacing tenseness in their manner. Her mind was groping for an explanation, but she understood this much—that the law was reaching out for the devil-may-care youth who had so interested her.

"What do you want with him? What has he done?" she cried quickly.

"He and his friend held up the gatekeeper of the fair association and got away with three thousand dollars."

"Held up! Do you mean robbed?"

"That's what I mean—vamoosed with the whole proceeds of the show. How long since they passed?"

"Between a quarter and half an hour," answered Farquhar.

The sheriff nodded. "All ready, boys."

The clattering hoofs disappeared in a cloud of dust down the road.

The rough places of life had been padded for all these young women. Never before had they come so close to its raw, ugly seams. The shadow of the law, the sacredness of caste, had always guarded them.

India turned upon her brother big dilated eyes. "He said Kilmeny. Who can the man be?"

"I don't know." He was silent a moment in frowning thought, struck by an unwelcome idea. "You remember Uncle Archie. He had a son named Jack who lives somewhere in Colorado. D'ye remember he came home when you were a little kiddie? Stopped at granddad's."

The girl nodded. "He fought you once, didn't he?"

The captain nodded. The doubt began to grow into certainty. "Thought I had seen his face before. He's our cousin Jack. That's who he is."

"And now he's a highwayman. By Jove, he doesn't look it," contributed Farquhar.

"I don't believe it. Such nonsense!" flamed Moya.

"Fancy! A real live highwayman to supper with us," Joyce reminded them with sparkling eyes.

"I'm sure he isn't. There must be a mistake."

"He was troubled about something, Moya," Lord Farquhar suggested. "He and his friend were riding fast and plainly in a hurry."

"Didn't he stop to talk?"

"He had to do that to avoid suspicion. I could see his mind wasn't on what he was saying. The man was anxious."

"I thought you liked him," Moya charged scornfully.

Her guardian smiled. "I did, but that isn't evidence that will acquit him in court of being a road agent."

"He's India's cousin—maybe. How could he be a criminal? Shall we have to cut her and Captain Kilmeny now?" Miss Dwight demanded hotly.

The captain laughed, but there was no mirth in his laughter. "You're a stanch friend, Miss Dwight. By Jove, I hope you're right about him."

Deep in her heart Moya was not at all sure. What did she know of him? And why should she care what he was? The man was a stranger to her. Forty-eight hours ago she had never seen him. Why was it that every good looking vagabond with a dash of the devil in him drew on her sympathies? She recalled now that he had hesitated when she had mentioned his name, no doubt making up his mind to let her think him other than he was. The sheriff must know what he was talking about when he said the man was an outlaw. But the appearance of him pleaded potently. Surely those clear unflinching eyes were not the homes of villainy. Nor could she find it possible to think his gallant grace of bearing the possession of a miscreant.

Before the day was out her faith in him had sunk to zero. Captain Kilmeny returned from the camp of the miners with the news that it was deserted except for two of the deputies who had stayed to guard it against the possible return of the robbers. He brought with him the detailed story of the hold-up.

Two masked men on horseback had robbed the treasurer of the Gunnison County Fair association as he was driving to the bank to deposit the receipts of the day. The men had not been recognized, but the description of the horses corresponded closely to those ridden by Kilmeny and Colter. It was recalled that these two men had disappeared as soon as the bucking broncho contest was over, not half an hour before the robbery. This would allow them just time to return to the corral on the outskirts of the town, where they had left their mounts, and to saddle so as to meet the treasurer on his way to the bank. It happened that the corral was deserted at the time, the boy in charge having left to see the finals of the contest. Cumulative evidence of guilt lay in the disappearance from the fishing camp not only of the two men suspected, but also of their companions, Curly and Mosby.

"Think he really did it, Ned?" India asked her brother.

"Can't say, sis. Looks like it," he answered gloomily.

Of the party at the Lodge only one member was pleased at the turn events had taken. Verinder's manner was as openly triumphant as he dared allow it to become. It cried offensively, "I told you so!"

CHAPTER V

"I'M HERE, NEIGHBOR"

Moya still rode afternoons with her friends, fished occasionally, and took her regular hand at bridge. But it was unaccountably true that her zest in these amusements was gone. She could give no satisfactory reason for it, but she felt as if something had passed out of her life forever. It was as if the bubbling youth in her were quenched. The outstanding note of her had been the eagerness with which she had run out to meet new experiences. Now she found herself shrinking from them. Whenever she could the girl was glad to slip away by herself. To the charge that she was in love with this young vagabond she would have given a prompt denial. Nevertheless, Lady Farquhar recognized the symptoms as dangerous.

On the fifth day after the Gunnison trip the young people at the Lodge made a party to fish Sunbeam Creek. They followed the stream far into the hills, riding along the trail which bordered it. Kilmeny and Verinder carried lunch baskets, for they were to make a day of it and return only in time for a late dinner.

Moya made her brave pretense of gayety. With alacrity she responded to Verinder's challenge of a bet on the relative sizes of their catches. But as soon as the rest were out of sight she sat down in a shady spot and fell to musing.

How long she sat there, a sun-dappled nymph upon whom gleams of light filtered through the leaves of the aspens, she had not the least idea. The voice of a grizzled rider startled her from her dreams. Her lifted eyes took in the grim look of the man, garnished with weapons ready to his hands.

"Mornin', miss," he nodded amiably.

"Good-morning." And swift on the heels of it, "You are a deputy sheriff, are you not?"

"Rung the bell, ma'am. You belong to the English outfit, I reckon."

She smiled. "I suppose so, though I don't know what an outfit is."

"I mean to Lord What's-his-name's party."

"Yes, I think I do. I'm rather sure of it."

"Funny about some members of your crowd having the same name as the man we're looking for."

"Mr. Kilmeny, you mean?"

"Jack Kilmeny! Yes, ma'am."

"He introduced himself to us, but I don't think the name he went by was Kilmeny. I was told it was Crumbs."

"That's just a joke. His friends call him that because his people are 'way up in G. Fine bred—crumbs. Get the idea?"

"I think so."

"Came from the old country, his father did—son of some big gun over there. Likely he's some kin to your friends."

He put the last observation as a question, with a sharp glance from under his heavy gray eyebrows. Moya chose to regard it as a statement.

"Are you still searching for him?" she asked.

"You bet we are. The sheriff's got a notion he's up in these hills somewheres. A man answering his description was seen by some rancher. But if you ask *me*, I'd say he was busy losing himself 'way off in Routt County, clear off the map. He used to punch cows up there and he knows all kinds of holes to hide in. It don't stand to reason he'd still be fooling around here. He's bridle-wise and saddle-broke—knows every turn of the road."

"Yes," Moya assented listlessly.

"He had his getaway all planned before ever he came down here. That's a cinch. The fishing was all a bluff. The four of them had the hold-up

arranged weeks ago. They've gone into a hole and drawn it in after them."

"Don't you think there's a chance he didn't do it?" she asked in a forlorn way.

"Not a chance. Jack Kilmeny and Colter pulled off the play. What the others had to do with it I don't know."

The deputy passed to the fishing in his conversation, hoped she would have luck, stroked his white goatee, and presently departed.

The man had scarcely disappeared around a bend in the gulch before a sound startled her. Moya turned quickly, to see a man drop down the face of a large rock to the ground. Even before he turned she recognized that pantherine grace and her heart lost a beat.

He came straight toward her, with the smile in his blue eyes that claimed comradeship as a matter of course.

"You—here," she gasped.

"I'm here, neighbor. Where ought I to be—in Routt County losing myself?"

Her little hand was lost in his big brown fist, her gaze locked in his.

"You heard him?"

"Couldn't help it. I was working down through that grove of pines to the river when I saw him."

"He may come back." Her quick glance went up the gulch into which the deputy had disappeared.

"I reckon not. Let's sit down and talk."

Her first thought had been of his danger, but she remembered something else now. "No, I think not, Mr. Kilmeny."

The deep eyes that met his steadily had in them the rapier flash. He smiled.

"Because I am a miscreant, I reckon," he drawled.

"You say it, not I."

"Now you're dodging, neighbor. You think it."

"If so, do I think more than the truth?"

A ripple of sardonic laughter stirred in him. "I see you have me convicted and in the penitentiary already."

"Your actions convict you."

"So *you* think. Isn't it just possible you don't understand them?" There was the faintest hint of derision in his polite inquiry.

A light flashed in her dusky eyes, a shining hope newborn in her eager heart. "Are you telling me that you are innocent?"

"You've been thinking me guilty, then," he countered swiftly.

"What else could I think?"

"You might have waited to hear the defense."

"If you had stayed to make one, but you ran away."

"How do you know I did?"

"You were gone when the officers reached your camp."

His smile was grim and his voice defiant. "There was a man up in the hills I wanted to see in a hurry."

By the look in her eyes it was as if he had struck her. With fine contempt her answer came. "Was there another man up there in the rocks just now that you had to see until the deputy left?"

"Anyhow, there was a young woman down by the banks of Sunbeam I wanted to see after he was gone," the fugitive claimed boldly.

A faint angry flush glowed delicately beneath the olive of her cheeks. "Evasions—nothing but evasions."

She turned away, sick at heart. He had treated with flippancy the chance she had given him. Would an innocent man have done that?

Swift as an arrow his hand shot out, caught her shoulder, and held her firmly. The eyes that lifted to his flamed with proud resentment.

"I'm not going to let you go like this. Don't think it."

"Sir."

"You'll do me justice first." His hand dropped from her shoulder, but the masterful look of him stayed her steps. "You'll tell me what evidence you've got against me."

Again an insurgent hope warmed her heart. Wild he might be, but surely no criminal—if there was any truth in faces.

What she had heard against him she told. "The robbers were riding horses like yours. You left the fair grounds early. You and your friend were seen going into the corral where you had stabled the animals. This was less than half an hour before the robbery. When you passed us on the road you were anxious about something. You looked back two or three times. Both you and Mr. Colter showed you were in a hurry. Then you ran away before the sheriff reached your camp. Does an innocent man do that?" She put her question as an accusation, but in the voice was a little tremble that asked to be refuted.

"Sometimes he does. Now listen to me. The horses ridden by the robbers were Colter's and mine. We certainly were worried about the time we met you. And we did break camp in a hurry so as to miss the sheriff. Does this prove me guilty?"

She brushed away the soft waves of dark hair that had fallen over her forehead in little escaping tendrils. The fearless level eyes of the outdoors West were looking straight at her.

"I don't know. Does it?"

"We'll say this evidence had piled up against Captain Kilmeny instead of against me. Would you have believed him guilty?"

"No. He couldn't have done it."

"On the same evidence you would acquit him and condemn me. Is that fair?"

"I have known him for years—his standards, his ways of thinking. All his life he has schooled himself to run a straight course."

"Whereas I——" He waited, the sardonic frosty smile on his lean strong face.

Moya knew that the flutter of her pulses was telling tales in the pink of her cheeks. "I don't know you."

"I'm only a workingman, and an American at that—so it follows that I must be a criminal," he answered with a touch of bitterness.

"No—no! But you're—different. There's something untamed about you. I don't quite know how to put it—as if you had been brought up without restraints, as if you didn't care much for law."

"Why should I? Law is a weapon to bolster up the rich and keep down the poor," he flung back with an acid smile. "But there's law and law. Even in our class we have our standards, such as they are."

"Now it's you that isn't fair," she told him quietly. "You know I meant nothing like that. The point is that I don't know what your standards are. Law doesn't mean so much to people here. Your blood runs freer, less evenly than ours. You don't let the conventions hamper you."

"The convention of honesty, for instance. Thanks, Miss Dwight."

"I didn't want to believe it, but——"

The penitence in her vivid face pleaded for her. He could not refuse the outstretched hand of this slender lance-straight girl whose sweet vitality was at once so delicate and so gallant. Reluctantly his palm met hers.

"You're quite sure now that I didn't do it?"

"Quite sure."

"Even though I've been brought up badly?"

"Oh, I didn't say badly—really. You know I didn't."

"And though I'm wild and lawless?"

"Aren't you?" she flashed back with a smile that took from the words any sting they might otherwise have had.

Mirth overflowed in his eyes, from which now many little creases radiated. "You're a good one, neighbor. But, since you will have it, I am. I reckon my standards even of honesty wouldn't square with yours. I live in a rough mining camp where questions have two sides. It's up to me to play the game the way the other fellow plays it. But we'll not go into that now."

Strong, clear-eyed and masterful, she knew him a man among ten thousand. He might be capable of great sin, but what he did would be done with his eyes wide open and not from innate weakness. Her heart sang jubilantly. How could she ever have dreamed this crime of him? Her trust was now a thing above any evidence.

"And you'll sit down with me now if I ask you, neighbor," he laughed.

She did not wait to be asked, but sat down, tailor fashion, and looked expectantly up with a humorous little twist of the eyebrows. Flakes of dappled sunlight played on her through the moving leaves and accented the youthful bloom of her.

With a sigh of content he stretched himself on the sun-warmed loam. His glance swept up the gulch, a sword cleft in the hills, passed over the grove of young pines through which he had recently descended, and came back to the slim Irish girl sitting erectly on the turf.

"It's sometimes a mighty good world, neighbor," he said.

"I'm thinking that myself," she admitted, laughter welling softly out of her.

The sun lit the tips of the pines, so that they looked like burnished lances in battle array, poured its beams over the scarred hillside, and bathed the little valley in effulgent glory.

"You can always find it somewhere," he said with deep content, leaning on an elbow indolently.

She asked for no antecedent to his pronoun. What he meant was not ambiguous to her.

"If one knows where to look for it," she added softly.

"That's the trouble. We get so busy with our little everyday troubles that we forget to look. But the joy of life is always there if we'll forget our grouch and see it."

"Yes—if having eyes we see."

"I'm comforted a heap to know that you believe in me—even if I'm not Captain Kilmeny," he assured her with his slow rippling laugh.

Had he been looking at her he would have seen the telltale color tide her cheeks. "If that is a comfort you are welcome to it. I might have known the idea of connecting you with such a thing was folly."

He glanced whimsically at her. "Don't be too sure of me, neighbor. I'm likely to disappoint you. What one person thinks is right another knows is wrong. You'd have to make a heap of allowances for me if I were your friend."

"Isn't that what friendship is for—to make allowances?"

"You've found that out already, have you?"

The long-lashed lids fell to her cheeks in self-defense. Not for worlds would she have had him guess the swift message ready to leap out toward him. He seemed to be drawing her soul to his unconsciously. Tingling in every nerve, athrob with an emotion new and inexplicable, she drew a long slow breath and turned her head away. A hot shame ran like quicksilver through her veins. She whipped herself with her own scorn. Was she the kind of girl that gave her love to a man who did not want it?

His next words brought to her the shock she needed, the effect of a plunge into icy water on a warm day.

"What about your friends—what about Miss Seldon—did she believe me guilty too?" He could not quite keep the self-consciousness out of his voice.

"Hadn't you better ask her that?" she suggested.

In spite of his interest in their talk, Kilmeny's alert eyes had swept again and again the trail leading up the gulch. He did not intend to be caught napping by the officers. Now he rose and offered her a hand up.

"Your friends are coming."

Swiftly Moya came to earth from her emotions. In another moment she was standing beside the fugitive, her gaze on the advancing group. Captain Kilmeny was in the lead and was the first to recognize her companion. If he was surprised, his voice failed to show it.

"No, no, Verinder. I had him hooked all right," he was saying. "Dashed poor generalship lost him. He went into the rushes like a shot. I persuaded him out—had him in the open water. Looked to me like a two to one shot, hang

it. Mr. Trout develops a bad break to the off and heads under a big log. Instead of moving down the bank I'm ass enough to reel from where I hooked him. Leader snaps, and Mr. Trout has the laugh on me."

To the sound of that high cheerful voice Moya roused at once. The rapt expression died from her face.

"How many?" called India, holding up her string.

"I haven't been fishing," Moya answered; then gave herself away. "It surely isn't time for luncheon already."

She took a step toward her friends, so that for the first time Jack Kilmeny stood plainly revealed. India's pretty piquant face set to a red-lipped soundless whistle. Joyce stared in frank amusement. Verinder, ruttin in caste and respectability as only a social climber dubious of his position can be, ejaculated a "God bless my soul!" and collapsed beyond further articulation. Captain Kilmeny nodded to the Westerner without embarrassment.

"Mornin', Mr. Crumbs."

"Good-morning. But you have the name wrong, sir."

"Beg pardon." The captain's eyebrows lifted in inquiry.

"Kilmeny," the American corrected.

Nonchalantly the captain came to time. "Same name as ours. Wonder if by any chance we're of the same family. Happen to be any relation of Archibald Kilmeny, who died in Colorado fifteen years ago?"

Jack looked at him quietly. "A son."

"Makes us cousins. He was my father's brother."

The Westerner nodded coolly, not in the least impressed. "Yes."

It would have been easy to read hostility in his bearing, but India sailed past her brother with hand extended. "Glad to meet you, Cousin Jack. 'Member me? Last time you saw me I was a squalling five-year-old."

The American warmed a trifle. "I remember you, all right. Never saw a kid before so fond of currant jam."

"Still am. You've improved in your personal appearance. Last time I saw your eye it had been beautifully blacked, kindness of Ned."

"Fortune of war. My lip was swollen for a week," her brother laughed as he extended his hand.

"Ned got caned for fighting with a guest. Served him jolly well right," Miss Kilmeny said.

Joyce sailed forward into the picture gracefully. Her radiant beauty took the Westerner's breath.

"You'll stay with us for luncheon," she said with soft animation. "For, of course, this is an occasion. Long-lost cousins do not meet every day."

Verinder, making speechless sounds of protest at this indiscretion, grew very red in the face. Would he have to sit down to eat with a criminal at large?

Jack hesitated scarcely a second. He could not take his gaze from this superb young creature, whose every motion charmed, whose deep eyes glowed with such a divine warmth of molten gold.

"Thanks awf'ly, but I really can't stay."

He bowed to one and another, turned upon Joyce that look of dumb worship she had seen on the faces of many men, and swung off into the pines, as elastic-heeled, confident, and competent a youth as any of them had seen in many a day.

India's eyes danced. She was Irish enough to enjoy a situation so unusual. "Snubbed, Joyce, by a highwayman," she laughed.

But Joyce merely smiled. She knew what she knew.

"If you ask me, he's got the deuce of a cheek, you know," Verinder fumed.

Miss Kilmeny pounced instantly upon him. "Referring to our cousin, Mr. Verinder?" she demanded sweetly.

"But—er—you said yourself——"

"That was all in the family," she informed him promptly.

Joyce came to the assistance of Verinder with one confidential glance of her incredibly deep eyes of velvet. "Of course he's cheeky. How could he be

India's cousin and not be that?" she asked with a rippling little laugh.
"Come and help me spread the tablecloth, Mr. Verinder."

Deeply grateful, the millionaire flew to assist.

CHAPTER VI

LORD FARQUHAR GIVES MOYA A HINT

Verinder's man, Biggs, who had been a fascinated spectator of the Wild West sports at Gunnison, was describing them to Fisher, maid to Lady Farquhar and general buttoner-up-the-back to the entire feminine contingent of the party.

"What do you mean when you say a horse bucks?" she wanted to know.

"'E throws down 'is 'ead and 'e throws up 'is 'eels and you cawn't remain," he explained, without entire originality.

"Fancy now!"

"Consequence is the rider lands himpromptu on *terra firma*, so to hexpress it."

"Dear me. But doesn't it make him dusty, Mr. Biggs?"

"A bit."

"Couldn't Captain Kilmeny ride one of the bronchos?"

"I've 'eard that the captain is a crack rider, none better in the harmy, Miss Fisher. 'E could ride the blawsted brute if it wouldn't 'ide its bloomin' 'ead between its legs."

Moya, patrolling the willow walk in front of the Lodge, took this in with a chuckle.

It was a still night, save only for the rushing waters of the river. The lamps of the sky had all been lit and were gleaming coldly millions of miles away.

The shadowed moonlight in the trees offered a stage set to lowered lights.

The thoughts of the girl had drifted to speculation about the transplanted countryman of hers whose personality had come to interest her so greatly. He had challenged her trust in him and she had responded with a pledge. He had not explained a single one of the suspicious circumstances against him. He had not taken her into his confidence, nor had he in so many words declared his innocence. She was glad he had told her nothing, had demanded her faith as a matter of course. It was part of her pride in him that she could believe without evidence. All the world would know he was not guilty after he had shown his proofs. It would be no test of friendship to stand by him then.

A step sounded on the gravel behind her and an arm opened to let her hand slip round the elbow.

"May I stroll out this dance with you, Miss Dwight?" Lord Farquhar asked formally, dropping into step with her.

Moya and her guardian were kindred spirits. They never needed to explain themselves to each other. Both knew how to make-believe.

"If you're not afraid of a scandal at being alone with me so far from a chaperone," the girl answered lightly.

He burlesqued a sigh. "I'm only afraid there won't be any. It's the penalty of age, my dear. I can claim all sorts of privileges without making Verinder jealous."

"Oh, Verinder," she scoffed.

"Should I have said Kilmeny?" he asked.

"I'll tell you a secret, guardy," whispered Moya gayly. "You're a hundred years younger than either of them."

"I wish my glass told me so."

"Fiddlesticks! Youth is in the heart. Mr. Verinder has never been young and Captain Kilmeny has forgotten how to be."

"I fancy Ned would be willing to learn how again if he had the proper teacher."

She gave his arm a little squeeze. "You dear old matchmaker."

"Heaven forbid! I'm merely inquiring, my dear."

"Oh, I see—your *in-loco-parentis* duty."

"Exactly. So it isn't going to be Ned?"

She looked across the turbid moonlit river before she answered. "I don't think so."

"Nor Verinder?"

"Goodness, no!" A little ripple of laughter flowed from her lips before she added: "He's changed his mind. It's Joyce he wants now."

Farquhar selected a cigar from the case. "Hm! Sure you didn't change it for him?"

A dimple flashed into her cheeks. "I may have helped a little, but not half as much as Joyce."

"That young woman is a born flirt," Lord Farquhar announced, his beard and the lower part of his face in the sudden glow of the lighted match. "Upon my word, I saw her making eyes at your highwayman the night we had him here."

There was a moment's silence before she answered. "Anybody could see that he was interested in her."

"It doesn't matter to me who interests him, but I can't have any of my wards being romantic over a Dick Turpin," he replied lightly.

She was standing in the shadow, so that he could not see the dye sweep into her cheeks.

"I'm afraid he is going to disappoint you. He's not a highwayman at all."

"Did he tell you so?"

"No. But I know it."

"Looks to me as if he might make a good one. The fellow is cool as a cucumber and afraid of nothing on two legs or four."

"You forget he is India's cousin."

"No, I'm remembering that. His father had a devil of a temper and his mother was as wild as an unbroken colt when I met her."

"They weren't thieves, were they?" she flashed.

He gave her his frank smile. "You like this young man, Moya?"

"Yes. Why shouldn't I?"

"Why not—if you don't like him too well?"

"So that's why you came out here—sent by Lady Farquhar to scold me—and I thought you had come because you like to be with me."

"One reason doesn't preclude the other."

"I've known for several days she had it on her mind—ever since we saw Mr. Kilmeny on Sunbeam Creek."

"Come; let us reason together," he invited cheerfully. "We'll sit on the end of the wharf and dangle our legs while your guardian finishes his cigar and does his duty by you."

They compromised on a wire-woven seat under a cottonwood. Across the river two fishermen could be seen working down stream close to the opposite shore. The two were Verinder and Captain Kilmeny, though at that distance they were not recognizable.

Lord Farquhar seemed in no hurry to begin, nor did Moya attempt to hasten him. His cigar glowed and ashed and glowed again before he spoke.

"Odd how things work out, my dear. There across the river are two men who would like to marry you. Both are good matches. One is by way of being a bit of a bounder perhaps, but the other is as fine a fellow as any girl could look for—not brilliant, but no fool either, and as steady as a clock."

A breath of wind lifted the edge of her white skirt. She followed the woman's instinct to tuck it safely under her before making demure answer.

"Captain Kilmeny is his own certificate of merit. Any praise is surplusage."

He shrugged. "That's the perversity of it. You see all his merits and they don't touch you."

With a vivacious little turn that was wholly charming she turned merrily upon him. "Are you by any chance proposing for him, Lord Farquhar?"

"Hasn't he proposed for himself?" her guardian asked bluntly.

"I believe he has."

"And you—didn't see it?"

"I couldn't."

"Sorry." He looked at the tip of his cigar and brushed away the ash.

"Because he's a no end good sort."

"You don't know that any better than I do. Don't think I can't see all the advantages of it. I do. I want to say 'Yes,' but—well, I can't. That's all."

"On account of the other man?" he questioned gently.

"I haven't mentioned any other man," she cried, her face in a flame.

"No, I mentioned him. Devilish impudent of me, if you want to take it that way, Moya. But, then, as you've said, I'm *in loco*. Got to grub around and find out how you feel."

"Lady Jim has been poking you up and telling you it's your duty," she told him in derision.

"I daresay. I'm a lazy beggar. Always shirking when I can."

"Lady Jim isn't lazy."

"Di does her duty even when it isn't pleasant. Pity more of us don't."

"Meaning that it is my unpleasant duty to marry Mr. Verinder's money?"

"Hang Verinder and his money. I'm no end glad you can't stand him. Fact is, we didn't quite know how bad he was when we asked him to join us."

"What then?"

"Well, sure your money isn't on the wrong horse, Moya? Mind, I don't say it is. I ask."

"If you mean Mr. Kilmeny, there hasn't been a word between us you couldn't have heard yourself," the girl told him stiffly.

"If my memory serves it didn't use to be so much a matter of words. What about your feelings? Di fancies——"

"Of course she does. She's always fancying. That's the business of a chaperone. It's perfectly absurd," Moya flung back hotly.

"Glad you see it that way. It wouldn't do, of course."

She looked directly at him, a challenge in her stormy eyes. "The whole thing is ridiculous. The man hasn't given me a second thought. If you're going to warn anyone, it ought to be Joyce."

Lord Farquhar looked straight at her. "Joyce has her eyes wide open. She can look out for herself."

"And I can't?"

"No, you can't—not when your feelings are involved. You're too impulsive, too generous."

"It's all a storm in a teacup. I've only met him three times to talk with. He's been friendly—no more. But if he and I wanted to—not that there's the ghost of a chance of it, but if we did—I don't see why it wouldn't do."

"Any number of reasons why it wouldn't. Marriage nowadays isn't entirely a matter of sentiment. You're an Englishwoman. He's an American, and will be to the end of the chapter."

"I'm not English; I'm Irish—and the Irish make the best Americans," she told him sturdily.

Farquhar ignored her protest. "His ways of thinking are foreign to yours, so are his habits of life. You're a delightful rebel, my dear, but you've got to come to heel in the end. All girls do. It's a rule of the game, and you'll have to accept it. No matter how captivating your highwayman may be—and upon my word I admire him tremendously—he is not your kind. He makes his own laws, and yours are made for you."

"You're making one for me now, aren't you?" she demanded rebelliously.

"Let's not put it so strong as that. I'm trying to persuade you to something of which you are fully persuaded already."

"I'm not—not in the least. It's absurd to talk about it because the man hasn't the least idea of making love to me. But suppose he wanted to. Why shouldn't I listen to him? You tell me he doesn't have the same little

conventions as we do. Thank heaven he hasn't. His mind is free. If that condemns him——"

She broke off from sheer passionate inadequacy to express herself.

"Those conventions are a part of your life, little girl. Can you imagine yourself sitting opposite him at breakfast for the rest of your natural days?"

"You mean because he is a workingman, I suppose."

"If you like. You would miss all the things to which you were used. Love in a cottage isn't practicable for young women brought up as you have been."

"Then I've been brought up wrong. If I were fond enough of the man—but that's absurd. We're discussing an impossible case. I'll just say this, though. I've never met a man who would be as little likely to bore one."

"Does his cousin bore you?"

"No. Captain Kilmeny is interesting in his way too, but——"

"Well?"

"His thoughts are all well regulated ones. He keeps to the proper beaten track." She flung up a hand impatiently. "Oh, I know he's perfect. I've never been allowed to forget that. He's too perfect. He would let me do anything I wanted to do. I would want a husband—if I ever have one—who would be strong enough to make me want to do whatever he said."

Farquhar smiled as he flung his cigar into the river. "That works out better in theory than in practice, my dear. It's the little things that count in married life. What we need is a love well under control and friction eliminated."

"That's not what I want. Give me my great moments, even if I have to pay for them."

He understood perfectly her eager desire for the best life has to offer. What he was proposing for her was a tame second best. But it was safe, and the first rule of the modern marriage mart is to play the game safe. Yet he had a boyish errant impulse to tell her to cut loose and win happiness if she could. What restrained him, in addition to what he owed Lady Jim in the matter, was his doubt as to this young man's character.

"There would be another thing to consider. Kilmeny is under a cloud—a pretty serious one. All the evidence connects him with this robbery. Grant that you believe him innocent. Still, a nice girl can't let her name be connected with that of a man suspected of a crime."

"I'm sure he isn't guilty. I don't care what the evidence is."

"'Fraid that's sentiment. It has a bad look for him."

"Do we desert our friends when things have a bad look for them?"

"Hm! Friends!"

"I used that word," she told him stanchly.

"But you've only talked with the man three times," he answered with a gleam of friendly malice in his eyes.

"I've talked with Mr. Verinder forty times and I'm less his friend after each talk," she returned with energy.

"Well, I daresay I've exaggerated the whole matter, my dear. I was just to give you a hint—no more."

"You've done it, then."

"Strikes me that I've done my duty in the matter."

"You have—admirably," she scoffed.

"It's up to Di now—if you should take a fancy for entertaining your highwayman again while you're fishing."

"It's not likely that I'll ever see him again."

"I daresay not." He rose and looked across the rushing water. "There's just one thing I stick out for. Regardless of your interest in him—no matter what might happen—you wouldn't let things get on another footing until he has proved his innocence—absolutely and beyond question."

"Isn't that rather an unnecessary condition? I'm not in the habit of throwing myself at the heads of strangers who are merely casually polite to me."

He took in her sweet supple slimness, the fine throat line beneath the piquant lifted chin which mocked his caution, the little imps of raillery that flashed from the dark live eyes. In spite of a passionate craving for the

adventure of life she had a good deal of reticence and an abundant self-respect. He felt that he had said more than enough already.

"Quite right, my dear. I withdraw my condition."

"It's one I would insist upon myself—if there were any likelihood of any need of it—which there isn't."

An easy-going man, he did not cross bridges till he came to them. His wife had persuaded him that Moya needed a talking to, but he was glad to be through with it.

"Hang the scamp, anyhow!" he laughed. "Maybe he'll break his neck on one of those outlaw bronchos he's so fond of riding. Maybe they'll put him safely away in prison, where there is neither marrying nor giving in marriage. Maybe, as you say, he'll have the bad taste to prefer Joyce to my little Irish wild rose, in which case he'll be put in his place at the proper time."

"It's even possible," she added with a murmur of half-embarrassed laughter, "that if he honored one with an offer—which it has never entered his head to do—one might regretfully decline with thanks."

"Amen! In the meantime God lead your grace by the hand, as old Bacon says." He brought his heels together, bowed over her fingers, and kissed them with exaggerated old-fashioned gallantry.

"Who's being romantic now?" she wanted to know gayly.

CHAPTER VII

MOYA'S HIGHWAYMAN

Dinner at the Lodge was just finished. It was the one hour of the day when anything like formality obtained. Each one dropped into breakfast when he or she pleased. Luncheon rarely found them together. But Lady Jim insisted that dinner should be a civilized function. Unless there was to be night fishing the whole party usually adjourned from the dining-room to the river-front porch, where such members of it as desired might smoke the postprandial cigar or cigarette. To-night nobody cared to get out rod and line. In an hour or so they would return to the living-room for bridge.

Voices drifted up the trail and presently riders came into sight. They halted among the trees, where one dismounted and came forward, his trailing spurs jingling as he walked.

He bowed to his audience in general, and again and more particularly to Lady Farquhar.

"Evening, ma'am. My name's Gill—sheriff of this county. I hate to trouble you, but my men haven't had a bite to eat since early this morn'g. Think we could get a snack here? We'll not get to Gunnison till most eleven."

Lady Farquhar rose. "I'll have the cook make something for you. How many?"

"Six. Much obliged. Just anything that's handy."

Sheriff Gill beckoned to the men in the trees, who tied their horses and presently came forward. All but one of them were heavily armed. That one

walked between a 30-30 and a 32 special carbine. It was observable that the men with the rifles did not lift their eyes from him.

Moya felt her heart flutter like that of a caged bird. The blood ebbed from her lips and she swayed in her seat. The prisoner was Jack Kilmeny. Farquhar, sitting beside the girl, let his hand fall upon hers with a comforting little pressure.

"Steady!" his voice murmured so that she alone heard.

Yet his own pulse stirred with the sheer melodrama of the scene. For as the man came forward it chanced that the luminous moonbeams haloed like a spotlight the blond head and splendid shoulders of the prisoner. Never in his gusty lifetime had he looked more the vagabond enthroned. He was coatless, and the strong muscles sloped beautifully from the brown throat. A sardonic smile was on the devil-may-care face, and those who saw that smile labeled it impudent, debonair, or whimsical, as fancy pleased.

"By Jove, the fellow's a natural-born aristocrat," thought Farquhar, the most democratic of men.

Jack Kilmeny nodded with cool equality toward Farquhar and the captain, ignored Verinder, and smiled genially at India. For Moya his look had a special meaning. It charged her with the duty of faith in him. Somehow too it poured courage into her sinking heart.

"Afraid an engagement at Gunnison with Sheriff Gill won't let me stop for any poker to-night," he told his host.

Farquhar was on the spot to meet him in the same spirit. "Verinder will be glad of that. I fancy my pocketbook too will be fatter to-morrow morning."

Biggs appeared to take the newly arrived party in charge. As they started to follow him the prisoner came face to face with Joyce, who was just coming out of the house. She looked at the young miner and at the rifles, and her eyes dilated. Under the lowered lights of evening she seemed to swim in a tide of beauty rich and mellow. The young man caught his breath at the sheer pagan loveliness of her.

"What is it?" she asked in a low, sweet, tremulous voice.

His assurance fled. The bravado was sponged from his face instantly. He stared at her in silence from fascinated eyes until he moved forward at the

spur of an insistent arm at his elbow.

India wondered how Lady Jim would dispose of the party. Jack Kilmeny might be a criminal, but he happened to be their cousin. It would hardly do to send him to the servants' quarters to eat. And where he ate the sheriff and his posse would likewise have to dine.

The young woman need not have concerned herself. Lady Farquhar knew enough of the West and its ways not to make a mistake. Such food as could be prepared at short notice was served in the dining-room.

Having washed the dust of travel from himself, the sheriff returned to the porch to apologize once more for having made so much trouble.

Farquhar diverted him from his regrets by asking him how they had made the capture.

"I ain't claiming much credit for getting him," Gill admitted. "This here was the way of it. A kid had been lost from Lander's ranch—strayed away in the hills, y'understand. She was gone for forty-eight hours, and everybody in the district was on the hunt for her. Up there the mountains are full of pockets. Looked like they weren't going to git her. Soon it would be too late, even if they did find her. Besides, there are a heap of mountain lions up in that country. I tell you her folks were plumb worried."

Moya, listening to every word as she leaned forward, spoke vividly. "And Mr. Kilmeny found her."

The sheriff's surprised eyes turned to her. "That's right, ma'am. He did. I dunno how you guessed it, but you've rung the bell. He found her and brought her down to the ranch. It just happened we had drapped in there ten minutes before. So we gathered him in handy as the pocket in your shirt. Before he could move we had the crawl on him."

The sheriff retired to the dining-room, whence came presently snatches of cheerful talk between the prisoner and his captors. In their company Jack Kilmeny was frankly a Western frontiersman.

"You passed close to me Wednesday night at the fork of Rainbow above the J K ranch. I was lying on a ledge close to the trail. You discussed whether to try Deer Creek or follow Rainbow to its headwaters," the miner said.

"That was sure one on us. Hadn't been for the kid, I don't reckon we ever would have took you," a deputy confessed.

"What beats me is why you weren't a hundred miles away in Routt County over in yore old stamping ground," another submitted.

"I had my reasons. I wasn't looking to be caught anyhow. Now you've got me you want to watch me close," the prisoner advised.

"We're watching you. Don't make any mistake about that and try any fool break," Gill answered, quite undisturbed.

"He's the coolest hand I ever heard," Farquhar said to the party on the porch. "If I were a highwayman I'd like to have him for a partner."

"He's not a highwayman, I tell you," corrected Moya.

"I hope he isn't, but I'm afraid he is," India confided in a whisper. "For whatever else he is, Jack Kilmeny is a man."

"Very much so," the captain nodded, between troubled puffs of his pipe.

"And I'm going to stand by him," announced his sister with a determined toss of her pretty head.

Moya slipped an arm quickly around her waist. She was more grateful for this support than she could say. It meant that India at least had definitely accepted the American as a relative with the obligation that implied. Both girls waited for Ned Kilmeny to declare himself, for, after all, he was the head of the family. He smoked in silence for a minute, considering the facts in his stolid deliberate fashion.

The excitement of the girl he loved showed itself in the dusky eyes sparkling beneath the soft mass of blue-black hair, in the glow of underlying blood that swept into her cheeks. She hoped—oh, how she hoped!—that the officer would stand by his cousin. In her heart she knew that if he did not—no matter how right his choice might be in principle—she never would like him so well again. He was a man who carried in his face and in his bearing the note of fineness, of personal distinction, but if he were to prove a formalist at heart, if he were going to stickle for an assurance of his kinsman's innocence before he came to the prisoner's aid, Moya would have no further use for him.

When the sheriff presently came out Captain Kilmeny asked him if he might have a word with the prisoner.

"Sure. Anything you want to say to him."

The English officer drew his cousin aside and with some embarrassment tendered to his cousin the use of his purse in the event it might be needed for the defense.

Jack looked at him steadily with hard unflinching eyes. "Why are you offering this, captain?"

"I don't quite take you."

"I mean, what's your reason? Don't like it to get out that you have a cousin in the pen, is that it? Anxious to avoid a family scandal?" he asked, almost with a sneer.

The captain flushed, but before he could answer India flamed out. "You might have the decency to be ashamed of that, Jack Kilmeny."

Her cousin looked at the girl gravely, then back at her lean, clean-faced brother. "I am. Beg your pardon, captain. As for your offer, I would accept it if there were any need. But there isn't. The charges against me will fall flat."

"Deuced glad to hear it. Miss Dwight has just been telling us it would be all right."

India looked straight at Jack out of the steel-blue eyes that were so like his own. "I wasn't so sure of it myself, but Moya was. Nothing could shake her. She's a good friend."

"I had it sized up about that way," the miner replied. "But I've a notion Miss Kilmeny will stand the acid too. Anyhow, I'm much obliged to her."

The prisoner shook hands with both of his cousins, lifted a broad-brimmed gray felt hat from the rack, and delivered himself to the sheriff.

"All right, Gill."

India gave a little exclamation and moved toward the hatrack. Her hand fell upon a second hat, similar in appearance to the first, but much more worn and dust-stained. She opened her lips to speak and closed them without

saying a word. For her eyes had met those of Moya and read there a warning.

Jack Kilmeny nodded a brisk farewell to Farquhar, smiled at Miss Dwight, and moved with his guards to the clump of trees where the horses had been left. His eyes had looked for Joyce, but she was not at that moment in sight.

The last faint beat of the retreating hoofs died away. An awkward constraint settled upon the party left at the Lodge. It was impossible to discuss the situation openly, yet it was embarrassing to ignore the subject in the thoughts of all. After a decent interval they began to drop away, one by one, from the group. India followed Moya, and found that young woman in her room.

"What are you hiding?" Miss Kilmeny asked quickly.

Moya produced from her hatbox a gray sombrero and put it on the table. "I didn't know it was you—thought it might be Lady Jim," she explained.

"Why wasn't I to tell Jack Kilmeny that he had taken Ned's hat by mistake?" India wanted to know.

"Because it wasn't by mistake."

"Not by mistake! What would he want with another man's hat?"

"I'm not sure about that. Perhaps he *didn't want his own*. You see, I had started myself to tell him about the mistake, but his eyes asked me plain as words not to speak."

"But why—why?" India frowned at the hat, her active brain busy. "It would be absurd for him to want Ned's hat. He must have had some reason, though."

"Don't they search prisoners before they lock them up?" Moya asked abruptly.

India shook her head. "I don't know. Do they?"

"Of course they do." Moya's eyes began to shine. "Now suppose there is something about that hat he didn't want them to see."

"How do you mean?" India picked up the hat and turned it round slowly.

"It's worn and a bit disreputable, but he wouldn't care for that."

Moya found a pair of scissors in her work basket. With these she ripped off the outer ribbon. This told her nothing. Next she examined the inside. Under the sweat pad was a folded slip of paper. She waved it in excitement.

"What did I tell you?"

"But—if he is innocent—what could there be he wanted to hide?"

"I don't know." Moya unfolded the paper enough to see that there was writing in it. "Do you think we ought to read this?"

"I don't know," India repeated in her turn. "Perhaps it may be a message to you."

Moya's face lighted. "Of course that's it. He wanted to tell us something when the rest were not there, so he used this method."

Three cramped lines were penciled on the torn fragment of paper.

At wharf above camp.

Twelve steps below big rock.

In gunny sack three yards from shore.

Two pairs of puzzled eyes looked into each other.

"What can it mean?" India asked.

"I don't know, unless——"

"Unless what?"

"Can it be a direction for finding something?"

"But what? And why should it be hidden in his hat? Besides, he would have no chance to put it in there after he was captured."

"Then perhaps it isn't a message to me at all."

"That's what we must find out. 'At wharf above camp.' That probably means his fishing camp."

"What are you going to do, India?"

"I'm going to get Ned to help me find that gunny sack."

Moya found herself trembling. She did not know why. It was not doubt of her reckless friend, but none the less she was in a panic.

"Do you think we'd better?"

Miss Kilmeny looked at her in surprise. In general nobody came to decision more quickly than Moya.

"Of course. How else can we tell whether it is something he wants us to do for him?"

"When shall we look?"

"The sooner the better—to-night," answered the other girl immediately. "The wharf above the camp. It's not a quarter of an hour from here. I'll not sleep till I know what he means."

"Lady Jim," Moya reminded her.

"She needn't know. She can't object if we take Ned and go fishing for an hour."

Moya consulted her watch. "They'll be gathering for bridge pretty soon. Let's go now. We can be back in time for supper."

"Get into your fishing togs. I'll get Ned and we'll meet you on the west porch in a quarter of an hour."

Within the appointed time the three slipped away down the river bank trail as silently as conspirators. The captain was rather inclined to pooh-pooh the whole thing, but he was not at all sorry to share an adventure that brought him into a closer relationship with Moya Dwight.

"Must be this wharf," India said presently, as a bulky shadow loomed out of the darkness.

"Shouldn't wonder. Here's a big rock just below it. Didn't the paper say something about a rock?" asked the captain.

"Twelve steps below big rock, it says."

The soldier paced off the distance. "What now?"

"Three yards from the shore," called his sister. "There should be a gunny sack, whatever that is."

"Afraid he's spoofing us," Kilmeny said with a laugh as he moved out in his waders against the current. "Here I am. What's the next direction?"

India giggled. She was Irish enough to get the humorous side of things and could not help being frivolous even when she was greatly interested. "Now you look over your left shoulder at the moon and wish."

Her brother's high voice cut in. "I say. My foot's kicking something. Wait a jiff."

He braced his feet, dived suddenly down with one arm till his face touched the water, and grappled with his fingers for a hold on something lying between two rocks at the bottom. When he straightened again it was with an effort. He did not attempt to raise his burden from the stream, but waded ashore with it. Using both hands, he dragged his find to land.

"It's a sack," India cried excitedly.

The captain's eyes met those of Moya. His face was grave, but she was white to the lips. Both of them felt sure of what they would find in the sack.

"Open it," she told him tensely.

With his pocketknife Kilmeny cut the string that tied the sack. He drew out a heavy valise so full that it gaped. Silver and gold coins, as well as bills, filled it to the mouth. They had found the money stolen from the treasurer of the Gunnison County Fair association.

All three of them were sick at heart. Jack Kilmeny then was guilty, after all. The message in the hat had not been intended for them, but had been merely a note of identification of the spot. He had taken the captain's hat merely because he did not want the officers to find the directions under the sweat pad. He had in essence lied to Moya and to the cousins who had offered to stand shoulder to shoulder with him in his trouble.

To Moya the next hour was a nightmare. They returned to the Lodge and slipped into the house by way of a French window opening upon the deserted north porch. Kilmeny hid the sack of treasure in his trunk and divested himself of his fishing clothes. Presently he joined Moya and his sister on the front porch, where shortly they were discovered by Verinder in search of a fourth at bridge.

India, knowing how greatly her friend was shaken, volunteered to fill the table and maneuvered Verinder back into the living-room with her. The millionaire had vaguely the sense of a conspiracy against him and resented

it, even though of late he had been veering from Moya to Joyce in his attentions.

Captain Kilmeny, left alone with the girl of his dreams, wisely said nothing. He was himself indignant, his family pride stung to the quick. His cousin was not only a thief but a liar. Born of a race of soldiers, with the traditions of family and of the army back of him for generations, the latter offense was the greater of the two. He understood something of how Miss Dwight felt. She had let herself become greatly interested in this vagabond cousin of his. Openly she had championed his cause. Now her feelings were wounded, her pride hurt, and her anger ablaze. The fellow's offense against her had been flagrant.

So far the captain had guessed correctly. Moya writhed like a bruised woodland creature. Her friendship had been abused. She had been as credulous as a simple country wench, while he no doubt had been laughing up his sleeve at her all the time. No longer had she any doubt as to his guilt. She visualized the hurried run for safety to camp, the swift disposal of the treasure in the river because of the close pursuit. When she lived over again that scene on Sunbeam the girl flogged her soul like a penitent. As one grinds defiantly on an ulcerated tooth, so she crushed her pride and dragged it in the dust.

But the wound was deeper even than this. To give herself in friendship impulsively was her temperament, though not many were judged worthy of such giving. This blue-eyed scamp had won her as no man ever had before. She had seen him through a glamour. Now his character stood stripped in its meanness. Her sweet trust was crushed. In the reaction that was upon her she craved rest and safety. No longer had she any confidence in her own judgment. Against the advice of her friends she had been wayward and headstrong, so sure that she knew best.

Kilmeny, sitting beside her in the deep shadows cast by the wild cucumber vines, became aware that she was weeping silently. His heart bled for her. He had known her always buoyant, gallant as Galahad, vibrant of joy to the finger tips.

"I say, don't," he pleaded. It was impossible for him to voice adequately his feelings. Greatly daring, he let an arm rest across the shoulders that were being racked by suppressed *pianissimo* sobs.

"You mustn't, you know. I can't stand it." And, again, "Please don't."

She gulped down the lump in her throat and turned upon him filmy eyes, the lashes of which were tangled with tears. This fine strong soldier represented the haven of rest toward which she was being driven. Had she never met his American cousin she knew that she would probably have accepted him in the end. The swift impulse swept her to anchor her craft for life in a safe harbor. She had tried rebellion, and that had left her spent and beaten. What she wanted now was safety, a rest from the turmoil of emotion.

"Do you still ... want me?" she asked lifelessly.

He could not on the instant take her meaning. Then, "Want you!" he cried in a low voice no words could have expressed fully. "Want you? Oh, my dear!"

"You know I don't love you ... not in one way," she told him naïvely. "Lady Jim says that will come. I don't know. Perhaps you won't want to take the risk."

She could see the desire of her leap to his honest eyes. "By God, I'll take my chance," he cried.

"You'll give me all the time I want—not push me too hard?"

"You shall set your own time."

Her dusky head was leaning wearily against the back of a wicker porch chair. From sheer fatigue her eyes fluttered shut. Her lover could see the round bird-like throat swell as she swallowed the lump that had gathered. Pity for her and love of her rose in him like a flood. He would have given anything to wrap her in his arms and fight away her troubles. But he knew it would be months before he could win the right to do this.

"Would you mind if ... if we didn't tell the others just yet?"

"It shall be as you say, Moya, dear."

She nodded languid thanks. "You're good. I ... I think I'll go to bed. I'm so tired."

He kissed the tips of her fingers and she vanished round the corner of the house.

Kilmeny sat down again and looked for long across the moonlit river. His sweetheart had promised to marry him, but in how strange a fashion. He was to be her husband some day, but he was not yet her lover by a good deal. His imagination fitted another man to that rôle, and there rose before him the strong brown face of his cousin with its mocking eyes and devil-may-care smile.

His promised wife! He had despaired of winning her, and she had crept to him as a hurt child does to its mother. There was no exultation in his heart. Poor child! How sad and tired her eyes had been.

CHAPTER VIII

THE BAD PENNY AGAIN

Verinder strolled down to the river bank, where Joyce was fishing from the shore in a tentative fashion.

"I say, Miss Seldon, aren't you breaking the Sabbath?" he asked from the bank above, smiling down upon her with an attempt at archness.

She flashed at him over her shoulder a smile that had all the allure of lovely youth. "I'm only bending it. I haven't caught a single fish."

"Bending it! Oh, I say, that's rather rippin', you know."

She nodded her golden head. "Thanks."

"Casting is a horrid bore. You should be a fisher of men," he told her fatuously.

"If I could be sure I wouldn't catch one. But if I happened to, what would I do with him?"

"Do with him! Why, it depends on who you catch. If he's undersize unhook him gently and throw him back into the river. What!"

The gay smile, flashed sideways at him, was a challenge. "But it isn't always so easy to unhook them, I'm told."

"Not if one doesn't want to."

"You're telling me that I'm a flirt, aren't you?" she said suspiciously.

"I can't tell you anything along that line you don't know already."

"I've a good mind to get angry," she flung back, laughing.

"Don't do that. If it would help I can tell you a lot of nice things I think about you. My word, yes!"

Joyce shot one swift glance at him and saw that he was on the verge of waxing sentimental. That would never do. It was on the cards that she might have to marry Dobyans Verinder but she did not want him making love to her.

"Please don't take the trouble. It's really a matter of no moment."

The young woman made another cast.

"To you."

"I was thinking about me."

"You usually are, aren't you?"

She looked up with surprised amusement. Resentment had made him bold. This was the first spark of spirit she had shaken out of him and she had made him the victim of many moods.

"But I don't blame you for thinking about the most interesting person you know. I think about you a lot myself. You're really rippin', you know."

Joyce groaned in spirit. He did that sort of thing as gracefully as a bear danced. To create a diversion she whipped back her line for a cast so that the flies snapped close to his ear.

"I say, be a bit careful," Verinder suggested.

"Oh, did I hook you?" she asked carelessly.

"I've been on your line for weeks."

"You'd better whisper it. Moya might hear," she advised roguishly.

Verinder flushed. The transfer of his attentions was still a sore subject with him. He hoped it would be generally understood that he had given up Miss Dwight of his own choice. He did not want it to get out that he had been jilted.

"The whole world is welcome to hear it. I'd advertise it in the *Times* if it would do any good."

"I believe you are impudent," laughed the beauty.

"I know I'm imprudent."

"Oh!" She carefully dropped her leader in the riffles. "There's no law keeping you in this neighborhood, you know. Try India for a change."

"There's nothing to keep the trout on the line—except the hook."

Her smile told of lazy but amiable derision. "It's a great pity about you."

"Awf'ly glad you feel so. Some poet chap said that pity is akin to love."

"I think it would do you good to take a long walk, Mr. Verinder."

"With Miss Seldon?" he wanted to know cautiously.

"Alone," she told him severely. "It would be a rest."

"A rest for me—or for you?"

The dimples flashed into her soft cheeks again. "For both of us, perhaps."

"Thanks. It's rather jolly here." He put his hands in his trousers pockets and leaned against a tree.

"Hope you'll enjoy it. I'm going to find Moya." Miss Seldon reeled up, put her rod against the tree, and sauntered off with the lissom grace that was hers.

Verinder woke up. "Let me come too. On second thoughts I find I do need a walk."

She looked back at him saucily over her shoulder. "You may come if you won't talk until you're spoken to."

"Done, by Jove!"

They followed the trail a stone's throw in silence.

"Miss Dwight's always going off by herself. Seems to me she's a bit off her feed," Verinder suggested.

Joyce was amused. For a man who wanted it understood that only one girl in the world mattered to him he still appeared to take a good deal of interest in Moya.

"Seems dreamy and—er—depressed. What!" he continued.

"Perhaps she is in love," Joyce let herself suggest wickedly.

"I've thought of that, but 'pon my word! I can't think of a man."

"Why not Mr. Verinder?"

His eyeglass ogled her to make sure he was not being made game of, but the lovely face was very innocent.

"Can't be," he demurred with conventional denial.

"Captain Kilmeny, then."

"Hardly. I don't think he's quite her style of man."

"Perhaps with his cousin, the highwayman."

"Good heavens, no!"

She took on a look of horrified suspicion. "You don't think—surely it couldn't be—Oh, I do hope it isn't Lord Farquhar."

He stared at her through his monocle with his mouth open, then discovered that he had been sold as the laughter rippled into her face.

"Oh, I say! Jolly good one, that. Lord Farquhar, by Jove!" Yet his laughter rang flat. It always made him angry to find that they were "spoofing" him. He didn't like to be "got" in the beastly traps these girls were always laying for him.

"There's Moya now—and there's a man with her," Joyce announced.

"By Gad, it's the highwayman!" Verinder gasped.

It was, though strictly speaking Jack Kilmeny was not yet with her, since she was still unaware of his presence. Moya was sitting on a mossy rock with a magazine in her hand, but she was not reading. By the look of her she was daydreaming, perhaps of the man who was moving noiselessly toward her over the bowlders.

Before she heard him he was close upon her. She looked around, and with a little cry got to her feet and stared at him, her hand on her fast beating heart.

Joyce waited to see no more.

"No business of ours," she announced to Verinder, and, without regard to his curiosity or her own, turned heel and marshaled him from the field.

"You!" Moya cried.

Kilmeny bowed. "The bad penny turned up again, Miss Dwight."

Scorn of him flashed in her dark eyes. She stood straight and rigid, but in spite of herself she breathed fast.

"You've forgotten your promise. You've lost faith again," he charged.

His impudence stirred contemptuous anger. "I know you now, sir," she told him with fine contempt.

"And you promised to believe in me." He said it quietly, with just a touch of bitterness in the reproach of his wistful voice.

The first hint of startled doubt came into her eyes. It was as if he had breathed into a marble statue the pulse of life. He had known her vivid as a thrush in song, a dainty creature of fire and dew. She stood now poised as it were on the edge of hope.

"How could I believe when I found your guilt on you? What right have you to ask it?"

"So you found the paper in the hat, did you?"

"Yes."

"Certain about my guilt this time, are you?"

He said it almost with a sneer, but nothing could crush the resurgent glow in her heart. Against the perilous and emotional climax which was growing on her she set her will in vain. Why was it that the mere presence of this man called to her so potently and shook her confidence in his guilt?

"We found the money," she explained, thinking to confound him.

"I guessed that. It was gone when I went to look for it this morning. I've come for it now."

His assurance amazed her. "Come for it!" she repeated. "It isn't here."

"No, I didn't expect to find it in your purse. But it is at the Lodge."

"No."

"Where, then?"

"I shan't tell you. The money will be returned to those from whom it was stolen."

He looked at her with hard, narrowed eyes. "It will be returned, will it? When?"

"To-day. Within a few hours."

"Who is going to return it?"

Moya had it on the tip of her tongue to tell, but pulled up in time. "I think we'll not go into that."

The American looked at his watch. The hands showed the hour to be 2:30. If the money was to be returned that day someone must already be on the way with it. He had seen his cousin, Captain Kilmeny, take the Gunnison road in a trap not half an hour earlier.

"So the captain is taking it back to-day?" he mused aloud, wary eyes on Moya's face.

A startled expression leaped to her countenance. She had told more than she had intended. "I didn't say so."

"I say so."

Beneath his steady gaze her lashes fell. He nodded, sure that he had guessed correctly.

"I intended to have a talk with you and straighten out some things," he went on. "But I find I haven't time now. We'll postpone it till to-morrow. I'll meet you here at ten o'clock in the morning."

"No," she told him.

The wave of hope had ebbed in her. Given the opportunity to explain the evidence against him, he had cared more to find out what they were doing with the stolen money. He had no time to save his good name.

"Ten in the morning. Remember. It's important. I want to see you alone. If I'm not on time wait for me."

That was his last word. He bowed, turned away almost at a run, and was lost in the small willows. Presently she heard the sound of a galloping horse. A minute later she caught a glimpse of it disappearing up Red Rock cañon. He was following the cutoff trail that led to Gunnison.

She wondered what was taking him away so abruptly. He had meant to stop, then had changed his mind. He had told her calmly she must meet him here to-morrow, and if he were late for the appointment she must wait. His impudence was enough to stagger belief. She would show him about that. If he wanted to see her he must come to the Lodge and face Lady Jim. Even then she would not see him. Why should she, since he was what he was?

Ah, but that was the crux of the whole matter! To look at him was to feel that whatever his faults they were not despicable ones. He was alive, so very much alive, and the look of him was that which an honest man should have. Had he proved his innocence and been released? Or had he broken prison, an alternative of which he was quite capable? And, guilty or innocent, what could be the explanation of his extraordinary demand that she should turn over to him the stolen money?

He had found her dumb and stricken with many hours of brooding over his guilt. At least he left her quick with questionings. She divined again the hint of a mystery. Something deeper than reason told her that the unraveling of it would prove him no villain.

One immediate duty alone confronted her. She must confess to Lady Farquhar that she had met and talked with him again. It was likely that she would be well scolded, but it was characteristic of her that she preferred to walk straight to punishment and get it over with. No doubt she had been too free with this engaging scamp. The rules of her set prescribed a straight and narrow road in which she must walk. The open fields beyond the hedges might blossom with flowers, but there could be no dalliance in them for her. She was to know only such people as had the password, only those trimmed and trained till there was no individuality left in them. From birth she had been a rebel, but an impotent one. Each revolt had ended in submission to the silken chains of her environment. Fret as she might, none the less she was as much a caged creature as Lady Jim's canary.

CHAPTER IX

"AN OUT AND OUT ROTTER"

Jack strode through the young alders to his horse, swung to the saddle without touching the stirrups, and was off instantly at a canter. He rode fast, evidently with a direct driving purpose to reach a particular destination. The trail was a rough and rocky one, but he took it recklessly. His surefooted broncho scrambled catlike up steep inclines and slid in clouds of dust down breakneck hillsides of loose rubble. In and out he wound, across gulches and over passes, following always as nearly a bee line as was possible.

An hour of rapid travel brought him to the Gunnison road. He swung to the ground and examined the dusty roadbed. Apparently he was satisfied, for he took his sweat-stained horse back into the brush and tied it to a cottonwood. From its case beside the saddle he drew a rifle. He retraced his own steps and selected carefully a place among the thick bushes by the roadside. With his pocketknife he cut eye-holes in the bandanna handkerchief that had been round his neck and tied it over his face in such a way as to conceal his features entirely. Then he carefully emptied from the rifle all the cartridges it contained and dropped them into his pocket.

These preparations made, he sat down and waited. There came to him very soon the rumble of wheels. Presently a one-horse trap appeared at a curve of the road. Captain Kilmeny was the driver.

Jack rose noiselessly and thrust the barrel of his rifle through the bushes. He was within six feet of the road and he waited until his cousin was almost abreast of him.

"Throw up your hands!"

The captain knew in an instant what he was up against. A masked man with a rifle in his hands could mean only one thing. Ned Kilmeny was no fool. He knew when to fight and when to surrender. His hands went into the air.

"Kick that rifle into the road—with your foot, not with your hands."

The Englishman did as he was told.

"What do you want?" he demanded, looking sharply at the masked bandit.

"I want that satchel beside you. Drop it out."

Again the officer obeyed orders. He asked no questions and made no comment.

"There's room to turn here by backing. Hit the grit for the Lodge."

After he had faced about, Ned Kilmeny had one word to say before leaving.

"I know who you are, and there's just one name for your kind—you're an out and out rotter."

"It's a difference of opinion that makes horse races, captain," answered the masked man promptly.

Ned Kilmeny, as he drove back to the Lodge, was sick at heart. He came of a family of clean, honest gentlemen. Most of them had been soldiers. Occasionally one had gone to the devil as this young cousin of his had done. But there was something in this whole affair so contemptible that it hurt his pride. The theft itself was not the worst thing. The miner had traded on their faith in him. He had lied to them, had made a mock of their friendly offers to help him. Even the elements of decency seemed to be lacking in him.

India and Moya were on the veranda when the captain drove up. One glance at his grim face told them something had gone wrong.

"I've been held up," he said simply.

"Held up!"

"Robbed—with a rifle within reach of my hand all the time."

"But—how?" gasped India.

Moya, white to the lips, said nothing. A premonition of the truth clutched icily at her heart.

"A masked man stopped me just as I swung round a bend about three miles from Gunnison. He ordered me to throw out the satchel with the money. I did as I was told."

"He had you covered with a weapon?" asked India.

"With a rifle—yes."

"Did you—recognize him?" Moya's throat was dry, so that her question came almost in a whisper.

The captain's eyes met hers steadily. "He stayed in the bushes, so that I didn't see his body well. He was masked."

"But you know who it was. Tell me."

Ned Kilmeny was morally certain of the identity of the robber. He could all but swear to the voice, and surely there were not two men in the county with such a free and gallant poise of the head.

"I couldn't take oath to the man."

"It was your cousin." Moya was pale to the lips.

The officer hesitated. "I'm not prepared to say who the man was."

The pulse in her throat beat fast. Her hand was clutching the arm of a chair so tightly that the knuckles stood out white and bloodless.

"You know better. It was Jack Kilmeny," she charged.

"I could tell you only my opinion," he insisted.

"And I know all about it." Moya came to time with her confession promptly, in the fearless fashion characteristic of her. "It was I that sent him to you. It was I that betrayed you to him."

India set her lips to a soundless whistle. Her brother could not keep out of his brown face the amazement he felt.

"I don't wonder you look like that," Moya nodded, gulping down her distress. "You can't think any worse of me than I do of myself."

"Nonsense! If you told him you had a reason. What was it?" India asked, a little sharply.

"No reason that justifies me. He took me by surprise. He had come to get the stolen money and I told him we were returning it to the Fair association. He guessed the rest. Almost at once he left. I saw him take the cañon road for Gunnison."

"You weren't to blame at all," the captain assured her, adding with a rueful smile: "He didn't take you any more by surprise than he did me. I hadn't time to reach for the rifle."

India's Irish eyes glowed with contemptuous indignation. She used the same expression that Ned had. "He must be an out and out rotter. To think he'd rob Ned after what he offered to do for him. I'm through with him."

Her brother said nothing, but in his heart he agreed. There was nothing to be done for a fellow whose sense of decency was as far gone as that.

Moya too kept silence. Her heart was seething with scorn for this handsome scamp who had put this outrage upon them all. It was bad enough to be a thief, but to this he had added deception, falsehood, and gross ingratitude. Nor did the girl's contempt spare herself. Neither warning nor advice—and Lady Jim had been prodigal of both—had availed to open her eyes about the Westerner. She had been as foolish over him as a schoolgirl in the matter of a *matinée* idol. That she would have to lash herself for her folly through many sleepless hours of the night was a certainty.

Meanwhile she went through the part required of her. At dinner she tossed the conversational ball back and forth as deftly as usual, and afterward she played her accustomed game of bridge. Fortunately, Kilmeny was her partner. Sometimes when her thoughts wandered the game suffered, but the captain covered her mistakes without comment. She could almost have loved him for the gentle consideration he showed. Why must she needs be so willful? Why couldn't she have given her heart to this gallant gentleman instead of to the reckless young scoundrel whom she hardly knew?

Before the party broke up a ride was arranged for next morning to the Devil's Slide, a great slab of rock some miles away. The young people were to have an early breakfast and get started before the sun was hot. For this reason the sitting at auction was short.

But though Moya reached her room before midnight, it was not until day was beginning to break that she fell into a troubled sleep. She tossed through the long hours and lived over every scene that had passed between her and Jack Kilmeny. It was at an end. She would never see him again. She would ride with the others to the Devil's Slide and he would come to the appointment he had made to find her not there. He would go away, and next day she would leave with the rest of her party for the Big Bend mining country, where Verinder and Lord Farquhar were heavily interested in some large gold producers. That chapter of her life would be closed. She told herself that it was best so. Her love for a man of this stamp could bring no happiness to her. Moreover, she had taken an irretrievable step in betrothing herself to Captain Kilmeny. Over and over again she went over the arguments that marshaled themselves so strongly in favor of the loyal lover who had waited years to win her. Some day she would be glad of the course she had chosen. She persuaded herself of this while she sobbed softly into the hot pillows.

When Fisher wakened her to dress in time for the early breakfast Moya felt very reluctant to join the others. She would have to laugh and talk and make merry, and all the time she would be miserably unhappy. It would be impossible for her to stand Verinder to-day without screaming. A sheer physical lassitude weighted her limbs. In the end she went back to bed and sent for India.

"I'm not feeling fit, dear. Would you mind if I beg off?" she asked with a wan smile.

Her friend took in keenly the big deep-pupiled eyes ringed with weariness. "I don't believe you've slept a wink, Moya. Of course you needn't go. Shall I stay with you? I don't really care about going. I'm about fed up with Dobyans Verinder."

But Moya would not hear of this. She protested so much that India saw it would be a greater kindness to leave her alone.

"You must try to sleep again, dear." India moved about, darkening the windows and shaking up the pillows.

"Yes, I will. I'm all right, you know."

Left to herself, Moya tried to sleep. It was no use. She was wide awake, beyond hope of another nap. No sooner had the voices of the riders died in the distance than she was dressing feverishly. She told herself that she would go outdoors somewhere with a book and rest. Otherwise Lady Farquhar would be asking questions.

Fisher brought her some fruit, a cup of coffee, and a roll. Moya drank the coffee and ate the fruit, after which she went out into the crisp Colorado sunlight. By her watch it was now 9:50.

She made an elaborate pretense with herself of hesitating which way to go. Her thoughts, her eyes, and at last her footsteps turned toward the grove where yesterday Jack Kilmeny had surprised her. But she was too used to being honest with herself to keep up the farce. Stopping on the trail, she brought herself to time.

"You're going to meet that outlaw, Moya Dwight. You said you wouldn't, but you are going. That's why you got out of that ride. No use fibbing to yourself. You've no more will power than a moth buzzing around a candle flame."

So she put it to herself, frankly and contemptuously. But no matter how she scorned herself for it there was not in her the strength to turn her back on her temptation. She had always prided herself on knowing her own mind and following it, but the longing in her to hear this man's justification was more potent than pride. Slowly her reluctant steps moved toward the grove.

Long slants of morning sunlight filtered through the leaves of the cottonwoods so that her figure was flaked with a shifting checkerboard of shadow and shine. She sauntered forward, looking neither to the right nor the left, expecting every instant to hear his cheery impudent greeting.

It did not come. She stole sidelong looks here and there through the dappled woods. They were empty of life save for the chipmunk sitting on its hind legs and watching her light approach. A breeze swept across the river, caught her filmy skirts, and blew them about her ankles. She frowned, brushing down the wind-swept draperies with that instinct for modesty all women share. Shy and supple, elastic-heeled, in that diaphanous half light her slim long body might have been taken for that of a wood nymph had there been eyes to follow her through the umbrageous glade.

Of human eyes there were none. She reached her flat rock and sank upon its moss ungreeted. Her disappointment was keen, even though reason had told her he dared not show himself here after adding a second crime to the first, and this time against her friend, the man who had offered to stand by him in his trouble. An instinct deeper than logic—some sure understanding of the man's reckless courage—had made her feel certain that he would be on the spot.

Mingled with her disappointment was a sharp sense of shame. He had told her to come here and wait for him, as if she had been a country milk-maid—and here she was meekly waiting. Could degradation take her lower than this, that she should slip out alone to keep an assignation with a thief and a liar who had not taken the trouble to come? At any rate, she was spared one humiliation. He would never know she had gone to meet him.

CHAPTER X

OLD FRIENDS

Into the depths of her scorching self-contempt came his blithe "Good-morning, neighbor."

Her heart leaped, but before she looked around Moya made sure no tales could be read in her face. Her eyes met his with quiet scorn.

"I was wondering if you would dare come." The young woman's voice came cool and aloof as the splash of a mountain rivulet.

"Why shouldn't I come, since I wanted to?"

"You can ask me that—now."

Her manner told him that judgment had been passed, but it did not shake the cheerful good humor of the man.

"I reckon I can."

"Of course you can. I might have known you could. You will probably have the effrontery to deny that you are the man who robbed Captain Kilmeny."

"Did he say I was the man?" There was amusement and a touch of interest in his voice.

"He didn't deny it. I knew it must be you. I told him everything—how you found out from me that he was going to Gunnison with the money and hurried away to rob him of it. Because you are his cousin he wouldn't accuse you. But I did. I do now. You stole the money a second time." Her words were low, but in them was an extraordinary vehemence, the tenseness of repressed feeling.

"So he wouldn't accuse me, nor yet wouldn't deny that I was the man. Well, I'll not deny it either, since you're so sure."

"You are wise, sir. You can't delude me a second time. Your denial would count for nothing. And now I think there is nothing more to be said."

She had risen and was about to turn away. A gesture of his hand stopped her.

"If you were so sure about me why didn't you have the officers here to arrest me?"

"Because—because you are a relative of my friends."

"That was the only reason, was it?"

"What other reason could there be?" she asked, a flash of warning in her eyes.

"There might be this reason—that at the bottom of your heart you know I didn't do it."

"Can you tell me you didn't hold up Captain Kilmeny? Dare you tell me that?"

He shrugged his broad shoulders. "No, I held him up."

"And robbed him."

"If you like to put it that way. I had to do it."

"Had to rob your friend, the man who had offered to stand by you. Oh, I don't want to hear any of your excuses."

"Yes, you do," he told her quietly. "What's more, you are going to hear them—and right now. You're entitled to an explanation, and it's my right to make you listen."

"Can you talk away facts? You robbed your cousin when he was trying to be your friend. That may mean nothing to you. It means a great deal to me," she cried passionately.

"Sho! An opera bouffe hold-up. I'll make it right with him when I see Captain Kilmeny."

"You admit you took the money?"

"Sure I took it. Had to have it in my business. If you'll sit down again and listen, neighbor, I'll tell you the whole story."

The amused assurance in his manner stirred resentment.

"No."

"Yes."

The clash of battle was in the meeting of their eyes. She had courage, just as he had, but she was fighting against her own desire.

"I have listened too often already," she protested.

"It hasn't hurt you any, has it?"

"Lady Farquhar thinks it has." The words slipped out before she could stop them, but as their import came home to her the girl's face flamed. "I mean that—that——"

"I know what you mean," he told her easily, a smile in his shrewd eyes. "You're a young woman—and I'm an ineligible man. So Lady Farquhar thinks we oughtn't to meet. That's all bosh. I'm not intending to make love to you, even though I think you're a mighty nice girl. But say I was. What then? Your friends can't shut you up in a glass cage if you're going to keep on growing. Life was made to be lived."

"Yes.... Yes.... That's what I think," she cried eagerly. "But it isn't arranged for girls that way—not if they belong to the class I do. We're shut in—chaperoned from everything that's natural. You don't know how I hate it."

"Of course you do. You're a live wire. That's why you're going to sit down and listen to me."

She looked him straight between the eyes. "But I don't think morality is only a convention, Mr. Kilmeny. 'Thou shalt not steal,' for instance."

"Depends what you steal. If you take from a man what doesn't belong to him you're doing the community a service. But we won't go into that now, though I'll just say this. What is right for me wouldn't be for Captain Kilmeny. As I told you before, our standards are different."

"Yes, you explained that to me just after you—while you were hiding from the officers after the first robbery," she assented dryly.

He looked at her and laughed. "You're prosecuting attorney and judge and jury all in one, aren't you?"

She held her little head uncompromisingly erect. Not again was she going to let her sympathy for him warp her judgment.

"I'm ready to hear what you have to say, Mr. Kilmeny."

"Not guilty, ma'am."

His jaunty insouciance struck a spark from her. "That is what you told us before, and within half an hour we found out that you knew where the booty was hidden. Before that discrepancy was cleared up you convinced us of your innocence by stealing the money a second time."

"What did I do with it?" he asked.

"How should I know?"

From his pocket he drew a note book. Between two of its leaves was a slip of paper which he handed to Moya. It was a receipt in full from the treasurer of the Gunnison County Fair association to John Kilmeny for the sum previously taken from him by parties unknown.

The girl looked at him with shining eyes. "You repented and took the money back?"

"No. I didn't repent, but I took it back."

"Why?"

"That's a long tale. It's tied up with the story of my life—goes back thirty-one years, before I was born, in fact. Want to hear it?"

"Yes."

"My father was a young man when he came to this country. The West wasn't very civilized then. My father was fearless and outspoken. This made him enemies among the gang of cattle thieves operating in the country where his ranch lay. He lost calves. One day he caught a brand blotter at work. The fellow refused to surrender. There was a fight, and my father killed him."

"Oh!" cried the girl softly in fascinated horror.

"Such things had to be in those days. Any man that was a man had sometimes to fight or else go to the wall."

"I can see that. I wasn't blaming your father. Only ... it must have been horrible to have to do."

"The fellow thieves of the man swore vengeance. One night they caught the chief—that's what I used to call my father—caught him alone in a gambling hell in the cow town where the stockmen came to buy provisions. My father had gone there by appointment to meet a man—lured to his death by a forged note. He knew he had probably come to the end of the passage as soon as he had stepped into the place. His one chance was to turn and run. He wouldn't do that."

"I love him for it," the girl cried impetuously.

"The story goes that he looked them over contemptuously, the whole half dozen of them, and laughed in a slow irritating way that must have got under their hides."

Moya, looking at the son, could believe easily this story of the father. "Go on," she nodded tensely.

"The quarrel came, as of course it would. Just before the guns flashed a stranger rose from a corner and told the rustlers they would have to count him in the scrap, that he wouldn't stand for a six to one row."

"Wasn't that fine? I suppose he was a friend of your father he had helped some time."

"No. He had never seen him before. But he happened to be a man."

The eyes of the girl were shining. For the moment she was almost beautiful. A flame seemed to run over her dusky face, the glow of her generous heart finding expression externally. It was a part of her charm that her delight in life bubbled out in little spasms of laughter, in impetuous movements wholly unpremeditated.

"I'm glad there are such men," she cried softly.

"The story of that fight is a classic to-day in the hills. When it ended two of the rustlers were dead, two badly wounded, and the others galloping away

for their lives. The chief and his unknown friend were lying on the floor shot to pieces."

"But they lived—surely they didn't die?"

"Yes, they lived and became close friends. A few years later they were partners. Both of them are dead now. Sam Lundy—that was the name of my father's rescuer—left two children, a boy and a girl. We call the boy Curly. He was down at the camp fishing with me."

She saw the truth then—knew in a flash that the man beside her had run the risk of prison to save his friend. And her heart went out to him in such a rush of feeling that she had to turn her face away.

"You paid back the debt to the son that your father owed his. Oh, I'm glad—so glad."

"Guessed it, have you?"

"Your friend was the thief."

"He took the money, but he's no thief—not in his heart. In England only a criminal would do such a thing, but it's different here. A hold-up may be a decent fellow gone wrong through drink and bad company. That's how it was this time. My friend is a range rider. His heart is as open and clean as the plains. But he's young yet—just turned twenty—and he's easily led. This thing was sprung on him by an older man with whom he had been drinking. Before they were sober he and Mosby had taken the money."

"I am sorry," the girl said, almost under her breath.

There was still some hint of the child in the naïve nobility of her youth. Joyce Seldon would have had no doubts about what to think of this alien society where an honest man could be a thief and his friend stand ready to excuse him. Moya found it fresh and stimulating.

He explained more fully. "Colter by chance got a line on what the kid and Mosby were planning to pull off. Knowing I had some influence with Curly, he came straight to me. That was just after the finals in the riding."

"I remember seeing him with you. We all thought you should have come up for a few words with us."

"I intended to, but there wasn't any time. We hurried out to find Curly. Well, we were too late. Our horses were gone by the time we had reached the corral where we were stabling, but those of the other boys were waiting in the stalls already saddled. We guessed the hold-up would be close to the bank, because the treasurer of the association might take any one of three streets to drive in from the fair grounds. That's where we went wrong. The boys were just drunk enough not to remember this. Well, while we were looking for our friends so as to stop this crazy play they were going to pull off, Colter and I met the president of the bank. We had known him in the mining country and he held us there talking. While we were still there news comes of the robbery."

"And then?"

"We struck straight back to the corral. Our horses were there. The boys had ridden back, swapped them for their own, and hit the trail. Mosby's idea had been to throw suspicion on us for an hour or two until they could make their getaway. We rode back to the crowd, learned the particulars, and followed the boys. My thought was that if we could get the money from them we might make terms with the association."

"That's why you were in a hurry when you passed us."

"That's why."

"And of course the sheriff thought you were running away from him."

"He couldn't think anything else, could he?"

"How blind I was—how lacking in faith! And all the time I knew in my heart you couldn't have done it," she reproached herself.

His masterful eyes fastened on her. "Did your friends know it? Did Miss Joyce think I couldn't have done it?"

"You'll have to ask her what she thought. I didn't hear Joyce give an opinion."

"Is she going to marry that fellow Verinder?"

"I don't know."

"He'll ask her, won't he?"

She smiled at his blunt question a little wanly. "You'll have to ask Mr. Verinder that. I'm not in his confidence."

"You're quibbling. You know well enough."

"I think he will."

"Will she take him?"

"It's hard to tell what Joyce will do. I'd rather not discuss the subject, please. Tell me, did you find your friends?"

"We ran them down in the hills at last. I knew pretty well about where they would be and one morning I dropped in on them. We talked it all over and I put it up to them that if they would turn the loot over to me I'd try to call off the officers. Curly was sick and ashamed of the whole business and was willing to do whatever I thought best. Mosby had different notions, but I persuaded him to see the light. They told me where they had hidden the money in the river. I was on my way back to get it when I found little Bess Landor lost in the hills. Gill nabbed me as I took her to the ranch."

"And after you were taken back to Gunnison—Did you break prison?"

"I proved an alibi—one the sheriff couldn't get away from. We had gilt-edged proof we weren't near the scene of the robbery. The president of the bank had been talking to us about ten minutes when the treasurer of the association drove up at a gallop to say he had just been robbed."

"So they freed you."

"I made a proposition to the district attorney and the directors of the association—that if I got the money back all prosecutions would be dropped. They agreed. I came back for the money and found it gone."

"If you had only told me that then."

"I had no time. My first thought was to tell my cousin the truth, but I was afraid to take a chance on him. The only way to save Curly was to take back the money myself. I couldn't be sure that Captain Kilmeny would believe my story. So I played it safe and helped myself."

"You must think a lot of your friend to go so far for him."

"His mother turned him over to me to make a man of him, and if she hadn't I owed it to his father's son."

Her eyes poured upon him their warm approving light. "Yes, you would have to help him, no matter what it cost."

He protested against heroics with a face crinkled to humor. "It wasn't costing me a cent."

"It might have cost you a great deal. Suppose that Captain Kilmeny had picked up his gun. You couldn't have shot him."

"I'd have told him who I was and why I must have the money. No, Miss Dwight, I don't fit the specifications of a hero."

Moya's lips curved to the sweet little derisive twist that was a smile in embryo. "I know about you, sir."

Kilmeny took his eyes from her to let them rest upon a man and a woman walking the river trail below. The man bowed and the Westerner answered the greeting by lifting his hat. When he looked back at his companion he was smiling impishly. For the two by the river bank were Lord and Lady Farquhar.

"Caught! You naughty little baggage! I wonder whether you'll be smacked this time."

Her eyes met his in a quick surprise that was on the verge of hauteur.

"Sir."

"Yes, I think you'll be smacked. You know you've been told time and again not to take up with strange boys—and Americans, at that. Mith Lupton warned you on the *Victorian*—and Lady Farquhar has warned you aplenty."

Her lips parted to speak, but no sound came from them. She was on the verge of a discovery, and he knew it.

"Hope you won't mind the smacking much. Besides, it would be something else if it wasn't this," he continued, mimicking a childish lisp he had never forgotten.

"Miss Lupton!"

A fugitive memory flashed across her mind. What she saw was this: a glassy sea after sunset, the cheerful life on the deck of an ocean liner, a little girl playing at—at—why, at selling stars of her own manufacture. The picture began to take form. A boy came into it, and vaguely other figures. She recalled impending punishment, intervention, two children snuggled beneath a steamer rug, and last the impulsive kiss of a little girl determined to exact the last morsel of joy before retribution fell.

"Are you that boy?" she asked, eyes wide open and burning.

"It's harder to believe you're that long-legged little fairy in white socks."

"So you knew me ... all the time ... and I didn't know you at all."

Her voice trembled. The look she flung toward him was shy and diffident. She had loved him then. She loved him now. Somehow he was infinitely nearer to her than he had been.

"Yes, I knew you. I've always known you. That's because you're a dream friend of mine. In the daytime I've had other things to think about, but at night you're a great pal of mine."

"You mean ... before ... we met again?"

"That's what I mean."

The pink surged into her cheeks. "I've dreamed about you too," she confessed with an adorable shyness. "How strange it is—to meet again after all these years."

"Not strange to me. Somehow I expected to meet you. Wasn't that in your dreams too—that some day we should meet again?"

"I was always meeting you. But—why didn't I know you?"

"I'll confess that I wouldn't have known you if it hadn't been for your name."

"You think I've changed, then?"

"No, you haven't changed. You've only grown up. You're still a little rebel. Sometimes you still think it's howwid to be a dirl."

"Only when they won't let me do things," she smiled. "And you really remember even my lisp."

"You have a faint hint of it yet sometimes when you are excited."

"I'm excited now—tremendously." She laughed to belie her words, but the note of agitation was not to be concealed. Her mouth was strangely dry and her heart had a queer uncertain beat. "Why shouldn't I be—with my baby days popping out at me like this when I thought they were dead and buried? It's ... it's the strangest thing...."

His blood too responded to a quickened beat. He could not understand the reason for it. Since he had no intention of being sentimental he was distinctly annoyed at himself. If it had been Joyce Seldon now—well, that would have been another tale.

Over the brow of a hillock appeared Lord and Lady Farquhar walking toward them. One glance told Moya that her chaperone had made up her mind to drive Jack Kilmeny from the field. The girl ran forward quickly.

"We've just found out the oddest thing, Lady Farquhar. Mr. Kilmeny and I are old friends. We met when we were children," she cried quickly.

Lady Jim looked at her husband. He cleared his throat in some embarrassment.

"Mornin', Mr. Kilmeny. If you have time I'd like to have you look over some ore samples sent from our mine."

The American smiled. He understood perfectly. "I've got all the time there is."

Moya intervened again. "First let me tell you the news. Mr. Kilmeny has been freed of all suspicion in connection with the robbery. The money has been returned and the whole thing dropped."

Farquhar's face cleared. "Glad to hear it." He emphasized his words, by adding a moment later: "By Jove, I *am* glad. Congratulations, Mr. Kilmeny."

His wife added hers, but there was a note of reserve in her manner. Plainly she was not fully satisfied.

Eagerly Moya turned to the young man. "May I tell all about it?"

He hesitated, then nodded shortly. "If you like."

Her voice vibrant with sympathy, Moya told the story in her ardent way. Kilmeny said nothing, but the corners of his mouth suggested amusement. Something of humorous derision in his blue eyes told Farquhar that the Coloradoan did not take the girl's admiration as his due. Rather, he seemed to regard it merely as an evidence of her young enthusiasm.

Lord Farquhar shook hands frankly with Kilmeny. "We've done you an injustice. If I had a son I would want him to have played the part you did under the same circumstances."

His wife backed him up loyally but with misgivings. The character of this young man might be cleared but that did not make him any more eligible. Her smile had in it some suggestion of the reserve of the chaperone.

"I'm glad to know the truth, Mr. Kilmeny. It does you credit. Your cousins won't be back to lunch but if you can stay——"

"I can't, Lady Farquhar. Thanks just the same. I've got to ride up into the hills to let the boys know it's all right. We'll be leaving to-morrow to go back to work."

"We go to-morrow too. I suppose this will be good-by, then." Lady Farquhar offered her hand.

Kilmeny turned last to Moya. "Good-by, neighbor."

Her eyes did not shrink as the small hand was buried for an instant in his brown palm, but the youth in her face was quenched.

"Good-by," she repeated in a colorless voice.

"Sorry I wasn't able to say good-by to my cousins and Miss Seldon. I understand you're all going up to the mines. Tell Captain Kilmeny I'll try to see him at Goldbanks and make all proper apologies for my bad manners yesterday."

Moya's face lit up. "Do you live at Goldbanks?"

"Sometimes."

He bowed and turned away.

The girl was left wondering. There had been a note of reservation in his manner when she had spoken of Goldbanks. Was there after all some

mystery about him or his occupation, something he did not want them to know? Her interest was incredibly aroused.

CHAPTER XI

A BLIZZARD

Moya found in Goldbanks much to interest her. Its helter-skelter streets following the line of least resistance, its slapdash buildings, the scarred hillsides dotted with red shaft-houses beneath which straggled slate-colored dumps like long beards, were all indigenous to a life the manner of which she could only guess. Judged by her Bret Harte, the place ought to be picturesque. Perhaps it was, but Moya was given little chance to find out. At least it was interesting. Even from an outside point of view she could see that existence was reduced to the elemental. Men fought for gold against danger and privation and toil. No doubt if she could have seen their hearts they fought too for love.

Miss Seldon was frankly bored by the crude rawness of the place. One phase of it alone interested her. Of all this turbid activity Dobyans Verinder was the chief profiter. Other capitalists had an interest in the camp. Lord Farquhar held stock in the Mollie Gibson and Moya's small inheritance was invested mostly in the mine. The Kilmenys owned shares in two or three paying companies. But Verinder was far and away the largest single owner. His holdings were scattered all over the camp. In the Mollie Gibson and the Never Quit, the two biggest properties at Goldbanks, he held a controlling vote.

It was impossible for Joyce to put her nose out of the hotel without being confronted with the wealth of her suitor. This made a tremendous appeal to the imagination of the young woman. All these thousands of men were toiling to make him richer. If Verinder could have known it, the environment was a potent ally for him. In London he was a social climber,

in spite of his gold; here he was a sole autocrat of the camp. As the weeks passed he began to look more possible. His wealth would give an amplitude, a spaciousness that would make the relationship tolerable. As a man of moderate means he would not have done at all, but every added million would help to reduce the intimacy of the marital tie. To a certain extent she would go her way and he his. Meanwhile, she kept him guessing. Sometimes her smiles brought him on the run. Again he was made to understand that it would be better to keep his distance.

The days grew shorter and the mornings colder. As the weeks passed the approach of winter began to push autumn back. Once or twice there was an inch of snow in the night that melted within a few hours. The Farquhar party began to talk of getting back to London, but there was an impending consolidation of properties that held the men at Goldbanks. For a month it had been understood that they would be leaving in a few days now, but the deal on hand was of such importance that it was felt best to stay until it was effected.

One afternoon Moya and Joyce rode out from the cañon where the ugly little town lay huddled and followed the road down into the foothills. It was a day of sunshine, but back of the mountains hung a cloud that had been pushing slowly forward. In it the peaks were already lost. The great hills looked as if the knife of a Titan had sheered off their summits.

The young women came to a bit of level and cantered across the mesa in a race. They had left the road to find wild flowers for Lady Jim.

Joyce, in a flush of physical well-being, drew up from the gallop and called back in gay derision to her friend.

"Oh, you slow-pokes! We win. Don't we, Two Step?" And she patted the neck of her pony with a little gloved hand.

Moya halted beside the dainty beauty and laughed slowly, showing in two even rows the tips of small strong teeth.

"Of course you win. You're always off with a hurrah before one knows what's on. Nobody else has a chance."

The victor flashed a saucy glance at her. "I like to win. It's more fun."

"Yes, it's more fun, but——"

"But what?"

"I was thinking that it's no fun for the loser."

"That's his lookout," came the swift retort. "Nobody makes him play."

Moya did not answer. She was thinking how Joyce charged the batteries of men's emotions by the slow look of her deep eyes, by the languorous turn of her head, by the enthrallment of her grace.

"I wouldn't have your conscience for worlds, Moya. I don't want to be so dreadfully proper until I'm old and ugly," Joyce continued, pouting.

"Lady Jim is always complaining because I'm not proper enough," laughed Moya. "She's forever holding you up to me as an example."

"So I am. Of course I flirt. I always shall. But I'll not come a cropper. I'll never let my flirtations interfere with business. Lady Jim knows that."

Moya looked straight at her. "Were you ever in love in your life?"

Her friend laughed to cover a faint blush. "What an *enfant terrible* you are, my dear! Of course I've been—hundreds of times."

"No, but—really?"

"If you mean the way they are in novels, a desperate follow-to-the-end-of-the-world, love-in-a-cottage kind—no. My emotions are quite under control, thank you. What is it you're driving at?"

"I just wondered. Look how cloudy the sky is getting. It's going to storm. We'd better be going home."

"Let's get our flowers first."

They wandered among the hills, searching for the gorgeous blossoms of fall. Not for half an hour did they remount.

"Which way for home?" Joyce asked briskly, smoothing her skirt.

Moya looked around before she answered. "I don't know. Must be over that way, don't you think?"

Joyce answered with a laugh, using a bit of American slang she had heard the day before. "Search me! Wouldn't it be jolly if we were lost?"

"How dark the sky is getting. I believe a flake of snow fell on my hand."

"Yes. There's one on my face. The road must be just around this hill."

"I daresay you're right. These hills are like peas in a pod. I can't tell one from another."

They rode around the base of the hill into a little valley formed by other hills. No sign of the road appeared.

"We're lost, Moya, They'll have to send out search parties for us. We'll get in the dreadful Sunday papers again," Joyce laughed.

An anxious little frown showed on Moya's forehead. She was not frightened, but she was beginning to get worried. A rising wind and a falling temperature were not good omens. Moreover, one of those swift changes common to the Rockies had come over the country. Out of a leaden sky snow was falling fast. Banked clouds were driving the wintry sunshine toward the horizon. It would soon be night, and if the signs were true a bitter one of storm.

"It's getting cold. We must find the road and hurry home," Joyce said.

"Yes." Moya's voice was cheerful, but her heart had sunk. An icy hand seemed to have clutched it and tightened. She had heard the dreadful things that happened during Rocky Mountain blizzards. They must find the road. They *must* find it.

She set herself searching for it, conscious all the time that they might be going in the wrong direction. For this unfeatured roll of hills offered no guide, no landmark that stood out from the surrounding country.

Moya covered her anxiety with laughter and small jokes, but there came a time when these did not avail, when Joyce faced the truth too—that they were lost in the desert, two helpless girls, with night upon them and a storm driving up. Somewhere, not many miles from them, lay Goldbanks. There were safety, snug electric-lighted rooms with great fires blazing from open chimneys, a thousand men who would gladly have gone into the night to look for them. But all of these might as well be a hundred leagues away, since they did not know the way home.

The big deep eyes of Joyce shone with fear. Never before in her sheltered life had she been brought close to Nature in one of her terrible moods.

From her soft round throat sobbing words leaped. "We're lost, Moya. We're going to die."

"Nonsense. Don't be a goosie," her downright friend answered sharply.

"But—what shall we do?"

Scudding clouds had leaped across the sky and wiped out the last narrow line of sunlight along the eastern horizon. Every minute it was getting colder. The wind had a bitter sting to it.

"We must find the trail," Moya replied.

"And if we don't?"

"But we shall," the Irish girl assured with a finality that lacked conviction. "You wait here. Don't move from the spot. I'm going to ride round you at a little distance. There must be a trail here somewhere."

Moya gave her pony the quirt and cantered off. Swiftly she circled, but before she had completed the circumference the snow, now falling heavily, had covered the ground and obliterated any path there might be. With a heavy heart she started to return to her friend.

Owing both to the lie of the ground and the increasing density she could not see Joyce. Thrice she called before a faint answer reached her ears. Moya rode toward the voice, stopping now and again to call and wait for a reply. Her horizon was now just beyond the nose of her pony, so that it was not until they were only a few yards apart that she saw Two Step and its rider. Both broncho and girl were sheeted with snow.

"Oh, I thought you were gone. I thought you were never coming," Joyce reproached in a wail of despair. "Did you find the road?"

"No, but I've thought of something. They say horses will find their own way home if you let them. Loosen the reins, dear."

Moya spoke with a business-like cheerfulness meant to deceive her friend. She knew it must be her part to lead. Joyce was as soft and about as competent as a kitten to face a crisis like this. She was a creature all curves and dimples, sparkling with the sunshine of life like the wavelets of a glassy sea. But there was in her an instinctive shrinking from all pain and harshness. When her little world refused to smile, as very rarely it did for

her, she shut her eyes, stopped her ears, and pouted. Against the implacable condition that confronted them now she could only whimper her despair.

They waited with loose reins for the ponies to move. The storm beat upon them, confining their vision to a space within reach of their outstretched arms. Only the frightened wails of Joyce and the comforting words of her friend could be heard in the shriek of the wind. The ponies, feeling themselves free, stirred restlessly. Moya clucked to her roan and patted his neck encouragingly.

"Good old Billy. Take us home, old fellow," she urged.

Presently the horse began to move, aimlessly at first, but soon with a steadiness that suggested purpose. Moya unloosed with her chill fingers the rope coiled to her saddle, and threw one end to her friend.

"Tie it tight to the saddle horn, Joyce—with a double knot," she ordered. "And keep your hand on it to see that it doesn't come undone."

"I can't tie it. My hands are frozen ... I'm freezing to death."

Moya made fast one end of the rope and then slipped from the saddle. The other end she tied securely to the saddle horn of her friend. She stripped from her hands the heavy riding gauntlets she wore and gave them to Joyce.

"Pull these on and your hands will be warmer. Don't give up. Sit tight and buck up. If you do we'll be all right."

"But I can't.... It's awful.... How far do we have to go?"

"We'll soon hit the road. Then we can go faster."

Moya swung to her saddle again stiffly, and Billy took up the march in the driving storm, which was growing every minute more fierce and bitter. The girl did not dare give way to her own terror, for she felt if she should become panic-stricken all would be lost. She tried to remember how long people could live in a blizzard. Had she not read of some men who had been out two days in one and yet reached safety?

The icy blast bit into her, searched through to her bones and sapped her strength. More than once she drew up the rope with her icy hands to make sure that Joyce was still in the saddle. She found her there blue from exposure, almost helpless, but still faintly responsive to the call of life.

The horses moved faster, with more certainty, so that Moya felt they had struck a familiar trail. But in her heart she doubted whether either of the riders would come to shelter alive. The ponies traveled upward into the hills.

Joyce, lying forward helpless across the saddle horn, slid gently to the ground. Her friend stopped. What could she do? Once she had descended, it would be impossible to get back into the saddle.

Searching the hillside, the girl's glance was arrested by a light. She could not at first believe her good fortune. From the saddle she slipped to the ground in a huddle, stiffly found her feet again, and began to clamber up the stiff incline. Presently she made out a hut. Stumblingly, she staggered up till she reached the door and fell heavily against it, clutching at the latch so that it gave to her hand and sent her lurching into the room. Her knees doubled under her and she sank at the feet of one of two men who sat beside a table playing cards.

The man leaped up as if he had seen a ghost. "Goddlemighty, it's a woman!"

"My friend ... she's outside ... at the foot of the hill ... save her," the girl's white lips framed.

They slipped on mackinaw coats and disappeared into the white swirling night. Moya crouched beside the red-hot stove, and life slowly tingled through her frozen veins, filling her with sharp pain. To keep back the groans she had to set her teeth. It seemed to her that she had never endured such agony.

After a time the men returned, carrying Joyce between them. They put her on the bed at the far corner of the room, and one of the men poured from a bottle on the table some whisky. This they forced between her unconscious lips. With a shivering sigh she came back to her surroundings.

Moya moved across to the group by the bed.

"I'll take care of her if you'll look after the horses," she told the men.

One of them answered roughly. "The horses will have to rough it. This ain't any night for humans to be hunting horses."

"They can't be far," Moya pleaded.

Grudgingly the second man spoke. "Guess we better get them, Dave. They were down where we found the girl. We can stable them in the tunnel."

Left to herself, Moya unlaced the shoes of Miss Seldon. Vigorously she rubbed the feet and limbs till the circulation began to be restored. Joyce cried and writhed with the pain, while the other young woman massaged and cuddled her in turn. The worst of the suffering was past before the men returned, stamping snow from their feet and shaking it from their garments over the floor.

"A hell of a night to be out in," the one called Dave growled to his fellow.

"Did you get the horses?" Moya asked timidly.

"They're in the tunnel." The ungracious answer was given without a glance in her direction.

They were a black-a-vised, ill-favored pair, these miners upon whose hospitality fate had thrown them. Foreigners of some sort they were, Cornishmen, Moya guessed. But whatever their nationality they were primeval savages untouched by the fourteen centuries of civilizing influences since their forbears ravaged England. To the super-nervous minds of these exhausted young women there was a suggestion of apes in the huge musclebound shoulders and the great rough hands at the ends of long gnarled arms. Small shifty black eyes, rimmed with red from drink, suggested cunning, while the loose-lipped heavy mouths added more than a hint of bestiality. It lent no comfort to the study of them that the large whisky bottle was two-thirds empty.

They slouched back to their cards and their bottle. It had been bad enough to find them sullen and inhospitable, but as the liquor stimulated their unhealthy imaginations it was worse to feel the covert looks stealing now and again toward them. Joyce, sleeping fitfully in the arms of Moya, woke with a start to see them drinking together at the table.

"I don't like them. I'm afraid of them," she whispered.

"We mustn't let them know it," Moya whispered in her ear.

For an hour she had been racked by fears, had faced unflinchingly their low laughs and furtive glances.

Now one of the men spoke. "From Goldbanks?"

"Yes."

"You don't live there."

"No. We belong to the English party—Mr. Verinder's friends."

"Oh, Verinder's friends. And which of you is his particular friend?" The sneer was unmistakable.

"We started out this afternoon for wild flowers and the storm caught us," Moya hurried on.

"So you're Verinder's friends, are you? Well, we don't think a whole lot of Mr. Verinder out here."

Moya knew now that the mention of Verinder's name had been a mistake. The relations between the mine owners and the workmen in the camp were strained, and as a foreign non-resident capitalist the English millionaire was especially obnoxious. Moreover, his supercilious manners had not helped to endear him since his arrival.

The man called Dave got to his feet with a reckless laugh. "No free lodgings here for Mr. Verinder's friends. You'n got to pay for your keep, my dears."

Miss Dwight looked at him with unflinching eyes which refused to understand his meaning. "We'll pay whatever you ask and double the amount after we reach camp."

"Don't want your dirty money. Gi' us a kiss, lass. That's fair pay. We ain't above kissing Verinder's friends if he is a rotten slave driver."

Moya rose to her slender height, and the flash of courage blazed in her eyes.

"Sit down," she ordered.

The man stopped in his tracks, amazed at the resolution of the slim tall girl.

"Go on, Dave. Don't let her bluff you," his companion urged.

The miner laughed and moved forward.

"You coward, to take advantage of two girls driven to you by the storm. I didn't think the man lived that would do it," panted Moya.

"You'n got a bit to learn, miss. Whad's the use of gettin' your Dutch up. I ain't good enough for 'ee, like enough."

The girl held up a hand. "Listen!"

They could hear only the wild roar of the storm outside and the low sobs of Joyce as she lay crouched on the bed.

"Well?" he growled. "I'm listenin'. What, then?"

"I'd rather go out into that white death than stay here with such creatures as you are."

"Doan't be a fool, lass. Us'n won't hurt 'ee any," the second man reassured roughly.

"You'll stay here where it's warm. But you'll remember that we're boss in this shack. You'n came without being asked. I'm domned if you'll ride your high horse over me."

"Go on, Dave. Tak' your kiss, man."

Then the miracle happened. The door opened, and out of the swirling wind-tossed snow came a Man.

CHAPTER XII

OUT OF THE STORM A MAN

He stood blinking in the doorway, white-sheeted with snow from head to heel. As his eyes became accustomed to the light they passed with surprise from the men to the young women. A flash of recognition lit in them, but he offered no word of greeting.

Plainly he had interrupted a scene of some sort. The leer on the flushed face of Dave, the look of undaunted spirit in that of the girl facing him, the sheer panic-stricken terror of her crouching companion, all told him as much. Nor was it hard to guess the meaning of that dramatic moment he had by chance chosen for his entrance. His alert eyes took in every detail, asked questions but answered none, and in the end ignored much.

"What are you doing here?" demanded one of the miners.

"Been out to the Jack Pot and was on my way back to town. Got caught in the storm and struck for the nearest shelter. A bad night out, Trefoye." He closed the door, moved forward into the room, and threw off his heavy overcoat.

Moya had recognized him from the first instant. Now Joyce too saw who he was. She twisted lithely from the bed, slipped past Moya, past the miners, and with the sob of a frightened child caught at his hand and arm.

"Oh, Mr. Kilmeny, save us ... save us!"

Jack nodded reassuringly. "It's all right. Don't worry."

She clung to him, shivering back to self-control. This man's presence spelled safety. In the high-laced boots of a mining man, he showed a figure

well-knit and graceful, springy with youth, but carrying the poise of power. His clean-cut bronzed face backed the promise; so too did the ease of his bearing.

Moya gave a deep sigh of relief and sat down on the edge of the bed, grown suddenly faint. At last her burden was lifted to stronger shoulders.

"You ain't wanted here, Jack Kilmeny," the standing miner said sourly. He was undecided what to do, perplexed and angry at this unexpected hindrance.

"Seems to be a difference of opinion about that, Peale," retorted the newcomer lightly, kicking snow from the spurs and the heels of his boots.

"Trefoye and me own this cabin. You'll sing small, by Goad, or you'll get out."

"You wouldn't put a dog out on a night like this, let alone a man. It would be murder," Kilmeny answered mildly.

"There's horses in the tunnel. You can bed wi' them."

Jack glanced around, took in the whisky bottle and their red-rimmed eyes. He nodded agreement.

"Right you are, boys. We three will move over to the tunnel and leave the house to the women."

"You ain't got the say here, not by a domned sight, Jack Kilmeny. This'll be the way of it. You'll git out. We'll stay. Understand?" Peale ground out between set teeth.

Jack smiled, but his eyes were like steel. "Suppose we go over to the shaft-house and talk it over, boys. We'll all understand it better then."

Kilmeny still stood close to the red-hot stove. He was opening and closing his fingers to take the stiffness of the frost out of them.

"By Goad, no! You go—we stay. See?"

The young man was now rubbing industriously the thumb and forefinger of his right hand with the palm of his left.

"No, I don't see that, Peale. Doesn't sound reasonable to me. But I'll talk it over with you both—in the shaft-house."

Jack's eyes were fastened steadily on Peale. The man was standing close to a shelf in a corner of the cabin. The shelf was in the shadow, but Kilmeny guessed what lay upon it. He was glad that though his legs were still stiff and cold the fingers of his right hand had been massaged to a supple warmth.

"You be warm now, lad. Clear out," warned the big Cornishman.

"Build 'ee a fire in the tunnel, mon," suggested Trefoyle.

"We'll all go or we'll all stay. Drop that, Peale."

The last words rang out in sharp command. Quicker than the eye could follow Kilmeny's hand had brushed up past his hip and brought with it a shining thirty-eight.

Taken by surprise, Peale stood stupidly, his hand still on the shelf. His fingers had closed on a revolver, but they had found the barrel instead of the butt.

"Step forward to the table, Peale—*with your hand empty*. That's right. Now listen. These young women have got to sleep. They're fagged to exhaustion. We three are going over to the shaft-house. Anything you've got to say to me can be said there. Understand?"

The man stood in a stubborn sullen silence, but his partner spoke up.

"No guns along, Kilmeny, eh?"

"No. We'll leave them here."

"Good enough, eh, Peale?"

Trefoyle's small eyes glittered. Slyly he winked to his partner to agree, then got a lantern, lit it clumsily, and shuffled out with Peale at his heels.

Joyce clung to Jack's arm, bewitchingly helpless and dependent. A queer thrill went through him at the touch of her soft finger tips.

"You won't leave us," she implored. "You wouldn't, would you?"

"Only for a little while. Bolt the door. Don't open it unless I give the word." He stepped across to Moya and handed her his revolver. In a very low voice he spoke to her. "Remember. You're not to open unless I tell you to let me

in. If they try to break the door shoot through it at them waist high. *Shoot to kill*. Promise me that."

Her dark eyes met and searched his. The faintest quiver of the lip showed that she knew what was before him. "I promise," she said in the same low voice.

Moya bolted the door after him and sat down trembling by the table, the revolver in her shaking hand. She knew he had gone to fight for them and that he had left his weapon behind according to agreement. He was going against odds just as his father had done before him in that memorable fight years ago. If they beat him they would probably kill him. And what chance had one slender man against two such giants. She shuddered.

"What are they going to do, Moya?" whispered Joyce.

Her friend looked at her steadily. "Didn't you hear? They said they wanted to talk over the arrangements."

"Yes, but—didn't it seem to you——? Why did he give you that pistol?"

"Oh, just so that we wouldn't be afraid."

Hand in hand they sat. Their hearts beat like those of frightened rabbits. The wail of the wind screaming outside seemed the cry of lost souls. Was murder being done out there while they waited?

Kilmeny strode after the Cornishmen with the light-footed step of a night nurse. Beside the huge miners he looked slight, but the flow of his rippling muscles was smooth and hard as steel. He had been in many a rough and tumble fray. The saying went in Goldbanks that he "had the guts" and could whip his weight in wildcats. There was in him the fighting edge, that stark courage which shakes the nerve of a man of lesser mettle. He knew that tonight he needed it if ever he did. For these men were strong as bears and had as little remorse.

Inside the shaft-house, his quick glance swept the dimly lighted room and took in every detail.

Trefoyle put the lantern down on a shelf and turned to the man who had interfered with them. "Is't a fight ye want, mon?"

Kilmeny knew the folly of attempting argument or appeal to their sense of right. Straight to business he cut. "I'm not hunting one. But I reckon this is up to me. I'll take you one at a time—unless you'd rather try it two to one and make sure."

His sneer stung. Peale tore off his coat with an angry roar.

"By Goad, I'm good enough for you."

Head down like a bull, he rushed at his foe. Jack sidestepped and lashed out at him as he shot past. Peale went down heavily, but scrambled awkwardly to his feet and flung himself forward again. This time Kilmeny met him fairly with a straight left, tilted back the shaggy head, and crossed with the right to the point of the jaw.

As the fellow went to the floor the second time Jack was struck heavily on the side of his face and knocked from his feet upon the body of the Cornishman. Even as he fell Kilmeny knew that Trefoye had broken faith. He rolled over quickly, so that the latter, throwing himself heavily on top of him, kned his partner instead of Jack.

His great hands gripped the young man as he wriggled away. By sheer strength they dragged him back. Kilmeny wrapped his legs around Trefoye to turn over. He heard a groan and guessed the reason. The muscular legs clenched tighter the man above him, moved slowly up and down those of his foe. With a cry of pain the Cornishman flung himself to one side and tore loose. His trouser legs were ripped from thigh to calf and blood streamed down the limb. The sharp rowels of Kilmeny's spurs had sunk into the flesh and saved their owner.

Jack staggered to his feet half dazed. Peale was slowly rising, his murderous eyes fixed on the young man. The instinct of self-preservation sent the latter across the room to a pile of steel drills. As the two men followed he stooped, caught up one of the heavy bars, and thrust with a short-arm movement for Trefoye's head. The man threw out his hands and keeled over like a stuck pig.

Kilmeny threw away his drill and fought it out with Peale. They might have been compared to a rapier and a two-handed broadsword. Jack was more than a skilled boxer. He was a cool punishing fighter, one who could give as well as take. Once Peale cornered him, bent evidently on closing and

crushing his ribs with a terrific bear hug. It would have been worth a dozen lessons from a boxing master to see how the young man fought him back with jabs and uppercuts long enough to duck under the giant's arm to safety.

The wild swinging blows of the Cornishman landed heavily from time to time, but his opponent's elbow or forearm often broke the force. The lighter man was slippery as an eel, as hard to hit as a Corbett. Meanwhile, he was cutting his foe to ribbons, slashing at him with swift drives that carried the full force of one hundred seventy-five pounds, sending home damaging blows to the body that played the mischief with his wind. The big miner's face was a projection map with wheals for mountains and with rivers represented by red trickles of blood.

Quartering round the room they came again to the drills. Peale, panting and desperate, stooped for one of them. As he rose unsteadily Kilmeny closed, threw him hard, and fell on top. Jack beat savagely the swollen upturned face with short arm jolts until the fellow relaxed his hold with a moan.

"Doan't 'ee kill me, mon. I've had enough," he grunted.

Kilmeny sprang to his feet, caught up the bar of steel, and poked the prostrate man in the ribs with it.

"Get up," he ordered. "You're a pair of cowardly brutes. Can't be decent to a couple of helpless women in your power. Can't play fair in a fight with a man half the size of one of you. Get up, I say, and throw a dipperful of water in Trefoye's face. He's not dead by a long shot, though he deserves to be."

Peale clambered to his feet in sulky submission and did as he was told. Slowly Trefoye's eyelids flickered open.

"What be wrong wi' un?" he asked, trying to sit up.

"You got what was coming to you. Is it enough, or do you want more?"

"Did 'ee hit me, lad. Fegs, it's enough. I give you best."

"Then get up. We'll go back to the house for blankets and fuel. You'll sleep to-night with the horses in the tunnel."

The two girls shivering in the hot room heard the footsteps of the returning men as they crunched the snow. Moya sat opposite the door, white to the

lips, her hand resting on the table and holding the revolver. Joyce had sunk down on the bed and had covered her face with her hands.

A cheerful voice called to them from outside.

"All right. Everything settled. Let us in, please."

Moya flew to the door and unbolted it. The Cornishmen came in first, and after them Kilmeny. At sight of the ravages of war Joyce gave a little cry of amazement. The big miners were covered with blood. They had the cowed hangdog look of thoroughly beaten men. Jack's face too was a sight, but he still walked springily.

He gave curt commands and the others obeyed him without a word. Almost the first thing he did was to step to the table and fling the whisky bottle through the door into the storm.

"We'll not need that," he said.

One of the miners gathered up their extra blankets while the other took a load of firewood.

As soon as they had gone Joyce cried breathlessly, "You fought them."

Jack looked at her and his eyes softened. All men answered to the appeal of her beauty. "We had a little argument. They couldn't see it my way. But they're satisfied now."

Moya bit her lower lip. Her eyes were shining with tears. A queer emotion welled up in her heart. But it was Joyce who put their thanks into words.

"You saved us. You're the bravest man I ever saw," she cried.

A deeper color rose to the embarrassed face of the young man. "I expect you didn't need any saving to speak of. The boys got too ambitious. That's about all." He was thinking that she was the most beautiful creature he had ever set eyes upon and thanking his lucky stars that he had come along in the nick of time.

"You can say that, Mr. Kilmeny, but we know," she answered softly.

"All right. Have it your own way, Miss Seldon," he returned with a smile.

"You'll let us doctor your wounds, won't you?" Moya asked shyly.

He laughed like a boy. "You're making me ashamed. I haven't any wounds. I ought to have washed the blood off before I came in, but I didn't have a chance. All I need is a basin of water and a towel."

The girl ran to get them for him. He protested, laughing, but was none the less pleased while they hovered about him.

"Such a dirty towel. Don't you suppose there's a clean one somewhere," Joyce said with a little *moue* of disgust as she handed it to him.

He shook his head. "It's like the one in 'The Virginian'—been too popular."

Moya gave him the scarf that had been around her head while she was riding. "Take this. No.... I want you to use it ... please."

After he had dried his face Jack explained their disposition for the night.

"We'll stay in the tunnel. You'll be alone here—and quite safe. No need to be in the least nervous. Make yourselves comfortable till morning if you can."

"And you—do you mean that you're going back ... to those men?" Moya asked.

"They're quite tame—ready to eat out of my hand. Don't worry about me."

"But I don't want you to go. I'm afraid to be alone. Stay here with us, Mr. Kilmeny. I don't care about sleeping," Joyce begged.

"There's nothing to be afraid of—and you need your sleep. I'll not be far away. You couldn't be safer in Goldbanks. I'll be on guard all night, you know," he reassured.

It escaped him for the moment that Joyce was thinking about her own safety, while Moya was anxious about his, but later he was to remember it.

He had not been gone ten minutes before Joyce was sound asleep. She trusted him and she trusted Moya, and for her that was enough. All her life she had relied on somebody else to bear the brunt of her troubles. But the girl with the powdered freckles beneath the dusky eyes carried her own burdens. She too had implicit confidence in the champion who had come out of the storm to help them and had taken his life in hand to do it. Her heart went out to him with all the passionate ardor of generous youth. She had never met such a man, so strong, so masterful, and yet so boyish.

Her brain was far too active for slumber. She sat before the stove and went over the adventures of the past two hours. How strange that they had met him again in this dramatic fashion. Perhaps he lived at Goldbanks now and they would see more of him. She hoped so mightily, even though there persisted in her mind a picture of his blue-gray eyes paying homage to Joyce.

CHAPTER XIII

SHOT TO THE CORE WITH SUNLIGHT

The storm had blown itself out before morning. A white world sparkled with flashes of sunlight when Moya opened the door of the cabin and gazed out. Looking down into the peaceful valley below, it was hard to believe that death had called to them so loudly only a few hours earlier.

Kilmeny emerged from the shaft-house and called a cheerful good-morning across to her.

"How did you sleep?" he shouted as he crunched across the snow toward her.

"Not so very well. Joyce slept for both of us."

Their smiles met. They had been comrades in the determination to shield her from whatever difficulties the situation might hold.

"I'm glad. Is she quite herself this morning? Last night she was very tired and a good deal alarmed."

"Yes. After you came Joyce did not worry any more. She knew you would see that everything came right."

The color crept into his bronzed face. "Did she say so?"

"Yes. But it was not what she said. I could tell."

"I'm glad I could do what I did."

The eyes that looked at him were luminous. Something sweet and mocking glowed in them inscrutably. He knew her gallant soul approved him, and his

heart lifted with gladness. The beauty of her companion fascinated him, but he divined in this Irish girl the fine thread of loyalty that lifted her character out of the commonplace. Her slender, vivid personality breathed a vigor of the spirit wholly engaging.

Joyce joined her friend in the doorway. With her cheeks still flushed from sleep and her hair a little disheveled, she reminded Jack of a beautiful crumpled rose leaf. Since her charm was less an expression of an inner quality, she needed more than Moya the adventitious aids of dress.

The young woman's smile came out warmly at sight of Kilmeny. It was her custom always to appropriate the available man. Toward this bronzed young fellow with the splendid throat sloping into muscular shoulders she felt very kindly this morning. He had stood between her and trouble. He was so patently an admirer of Joyce Seldon. And on his own merits the virility and good looks of him drew her admiration. At sight of the bruises on his face her heart beat a little fast with pleasurable excitement. He had fought for her like a man. She did not care if he was a workingman. His name was Kilmeny. He was a gentleman by birth, worth a dozen Verinders.

"Mr. Kilmeny, how can we ever thank you?"

He looked at her and nodded gayly. "Forget it, Miss Seldon. I couldn't have done less."

"Or more," she added softly, her lovely eyes in his.

No change showed in the lean brown face of the man, but his blood moved faster. It was impossible to miss the appeal of sex that escaped at every graceful movement of the soft sensuous body, that glowed from the deep still eyes in an electric current flashing straight to his veins. He would have loved to touch the soft flushed cheek, the crisp amber hair clouding the convolutions of the little ears. His eyes were an index of the man, bold and possessive and unwavering. They announced him a dynamic American, one who walked the way of the strong and fought for his share of the spoils. But when she looked at him they softened. Something fine and tender transfigured the face and wiped out its sardonic recklessness.

"The pressing question before the house is breakfast. There are bacon and flour and coffee here. Shall I make a batch of biscuits and offer you pot luck? Or do you prefer to wait till we can get to Goldbanks?"

"What do you think?" Moya asked.

"I think whatever you think. We'll not reach town much before noon. If you can rough it for a meal I should advise trying out the new cook. It really depends on how hungry you are."

"I'm hungry enough to eat my boots," the Irish girl announced promptly.

"So am I. Let's stay—if our hosts won't object," Joyce added.

"I'm quite sure they won't," Kilmeny replied dryly. "All right. A camp breakfast it is."

"I'm going to help you," Moya told him.

"Of course. You'd better wash the dishes as soon as we get hot water. They're probably pretty grimy."

He stepped into the cabin and took off his coat. Moya rolled up her sleeves to the elbows of her plump dimpled arms. Miss Seldon hovered about helplessly and wanted to know what she could do.

The miner had not "batched" in the hills for years without having learned how to cook. His biscuits came to the table hot and flaky, his bacon was done to a turn. Even the chicory coffee tasted delicious to the hungry guests.

With her milk-white skin, her vivid crimson lips so exquisitely turned, and the superb vitality of her youth, Joyce bloomed in the sordid hut like a flower in a rubbage heap. To her bronzed *vis-a-vis* it seemed that the world this morning was shimmering romance. Never before had he enjoyed a breakfast half as much. He and Miss Seldon did most of the talking, while Moya listened, the star flash in her eyes and the whimsical little smile on her lips.

Joyce was as gay as a lark. She chattered with the childish artlessness that at times veiled her sophistication. Jack was given to understand that she loved to be natural and simple, that she detested the shams of social convention to which she was made to conform. Her big lovely eyes were wistful in their earnestness as they met his. It was not wholly a pose with her. For the moment she meant all she said. A delightful excitement fluttered her pulses. She was playing the game she liked best, moving forward to the first skirmishes of that sex war which was meat and drink to her vanity. The man

attracted her as few men ever had. That nothing could come of it beyond the satisfaction of the hour did not mitigate her zest for the battle.

They were still at breakfast when one of the Cornishmen pushed open the door and looked in. He stood looking down on them sullenly without speaking.

"Want to see me, Peale?" asked Kilmeny.

"Did I say I wanted to see 'ee?" demanded the other roughly.

"Better come in and shut the door. The air's chilly."

The battered face of his companion loomed over the shoulder of Peale. To Kilmeny it was plain that they had come with the idea of making themselves disagreeable. Very likely they had agreed to force their company upon the young women for breakfast. But the sight of their dainty grace, together with Jack's cheerful invitation, was too much for their audacity. Peale grumbled something inaudible and turned away, slamming the door as he went.

The young miner laughed softly. If he had shown any unwillingness they would have pushed their way in. His urbanity had disarmed them.

"They're not really bad men, you know—just think they are," he explained casually.

"I'm afraid of them. I don't trust them," Joyce shuddered.

"Well, I trust them while they're under my eye. The trouble with men of that stripe is that they're yellow. A game man gives you a fighting chance, but fellows of this sort hit while you're not looking. But you needn't worry. They're real tame citizens this morning."

"Yes, they looked tame," Moya answered dryly. "So tame I'm sure they'd like to crucify you."

"I daresay they would, but in this world a man can't get everything he would like. I've wanted two or three pleasures myself that I didn't get."

His gaze happened to turn toward Joyce as he was speaking. He had been thinking of nothing definite, but at the meeting of their eyes something flashed into birth and passed from one to the other like an electric current. Jack knew now something that he wanted, but he did not admit that he

could not get it. If she cared for him—and what else had her eyes told him in the golden glow of that electric moment?—a hundred Verinders and Lady Farquhar could not keep them apart.

His heart sang jubilantly. He rose abruptly and left the room because he was afraid he could not veil his feeling.

Joyce smiled happily. "Where is he going?" she asked innocently.

Moya looked at her and then turned her eyes away. She had understood the significance of what she had seen and a door in her heart that had been open for weeks clanged shut.

"I don't know, unless to get the horses," she said quietly.

A few minutes later he returned, leading the animals. From the door of the shaft-house the Cornishmen watched them mount and ride away. The men smoked in sullen silence.



THEY RODE THROUGH A WORLD SHOT TO THE
CORE WITH SUNLIGHT. THE SNOW SPARKLED
AND GLEAMED WITH IT. P. 177

Before they had ridden a hundred yards Joyce was in gay talk with Kilmeny. She had forgotten the very existence of the miners. But Moya did not forget. She had seen the expression of their faces as the horses had passed. If a chance ever offered itself they would have their revenge.

It was a day winnowed from a lifetime of ordinary ones. They rode through a world shot to the core with sunlight. The snow sparkled and gleamed with it. The foliage of the cottonwoods, which already had shaken much of their white coat to the ground, reflected it in greens and golds and russets merged to a note of perfect harmony by the Great Artist. Though the crispness of

early winter was in the air, their nostrils drew in the fragrance of October, the faint wafted perfume of dying summer.

Beneath a sky of perfect blue they pushed along the shoulder of the hill, avoiding the draw into which snow had drifted deep. Life stormed in their veins, glowed in their flushed cheeks, rang in the care-free laughter of at least two of them. Jack broke trail, turning often in the saddle with a lithe twist of his lean muscular body, to suggest a word of caution at the bad places. Always then he discovered the deep violet eyes of Joyce Seldon with their smoldering fire. To let himself dwell upon her loveliness of fine-textured satiny skin, set off by the abundant crown of lustrous bronze hair, was to know again a quickened pulse of delight.

When he spoke it was with the languid drawl of the Western plainsman. In humor he feigned to conceal his passion, but Joyce knew him to be alertly conscious of her every word, every turn of her pliant body.

They reached the road, where two could ride abreast. Sometimes he was with the one, again with the other. Moya, who had not much to say this morning, made it easy for him to be with Joyce. She did not need to be told that he was under the allure of that young woman's beauty; and not alone of her beauty, but of that provocative stimulating something that can be defined only as the drag of sex. All men responded to it when Joyce chose to exert herself, many when she did not.

Once he turned to point out to Moya some snow-covered mounds above the road.

"Graves of a dozen mule-skinners killed by Indians nearly thirty years ago. My father was the only one of the party that escaped."

Half a mile from town they met two men on horseback and exchanged news. All Goldbanks had been searching for them through the night. The Farquhar party were wild with anxiety about them.

Kilmeny gave prompt quiet orders. "Get back to town, boys, and tell Lady Farquhar that it's all right. We'll be along in a few minutes."

The news of their safety spread as by magic. Men and women and children poured into the streets to welcome them. It was as much as Kilmeny could do to keep back the cheering mob long enough to reach the hotel. Verinder, Lady Jim, and India came down the steps to meet them, Captain Kilmeny

and Lord Farquhar both being away at the head of search parties. India and Lady Farquhar broke down without shame and cried as they embraced the returned wanderers.

"We thought ... we thought...." India could not finish in words, but Moya knew what she meant.

"It was very nearly that way, dear, but everything is all right now," her friend smiled through a film of tears.

"It was Moya saved us—and afterward Mr. Kilmeny," Joyce explained between sobs.

The crowd below cheered again and Moya borrowed India's handkerchief to wave. It touched her to see how glad these people were to know they had been rescued.

Lady Farquhar thanked Kilmeny with a gulp in her throat. "We'll want to hear all about it and to get a chance to thank you properly. Will you come to dinner this evening? Joyce and Moya should be rested by then."

Jack accepted promptly. "I'll be very glad to come."

CHAPTER XIV

"PROVE IT!... PROVE IT!"

Sam Bleyer, superintendent of the big Verinder mines, had been up to see his chief at the hotel and was passing the private sitting-room of the Farquhar party when a voice hailed him. He bowed inclusively to Lady Farquhar, Miss Seldon, and Miss Dwight.

"You called me?"

"I did. Are you in a very great hurry?" Joyce flashed her most coquettish smile at him.

"You are never to be in a hurry when Miss Seldon wants you, Bleyer," announced Verinder, following the superintendent into the room.

Bleyer flushed. He was not "a lady's man," as he would have phrased it, but there was an arresting loveliness about Joyce that held the eye.

"You hear my orders, Miss Seldon," he said.

"Awfully good of you, Mr. Verinder," Joyce acknowledged with a swift slant smile toward the mine owner. "Just now I want Mr. Bleyer to be an information bureau."

"Anything I can do," murmured Bleyer.

He was a thin little man with a face as wrinkled as a contour map of South America. Thick glasses rested on a Roman nose in front of nearsighted eyes. Frequently he peered over these in an ineffective manner that suggested a lost puppy in search of a friend. But in spite of his appearance

Bleyer was a force in Goldbanks. He knew his business and gave his whole energies to it.

"We're all so interested in Mr. Kilmeny. Tell us *all* about him, please."

"That's a rather large order, isn't it?" The wrinkles in his leathery face broke into a smile. "What in particular do you want to know?"

"Everything. What does he do? How does he live? How long has he been here?"

"He has been around here about five years. He has a lease in a mine." There was a flinty dryness in the manner of the superintendent that neither Joyce nor Moya missed.

"And he makes his living by it?"

Above his spectacles the eyes of Bleyer gleamed resentfully. "You'll have to ask Mr. Kilmeny how he makes his living. I don't know."

"You're keeping something from us. I believe you do know, Mr. Bleyer." With a swift turn of her supple body Joyce appealed to Verinder. "Make him tell us, please."

Moya did not lift the starlike eyes that were so troubled from the face of Bleyer. She knew the man implied something discreditable to Kilmeny. The look that had flashed between him and Verinder told her so much. Red signals of defiance blazed on both cheeks. Whatever it was, she did not intend to believe him.

Verinder disclosed a proper reluctance. "Bleyer says he doesn't know."

"Oh, he *says*! I want him to tell what he thinks."

"You won't like it," the mine owner warned.

"I'll be the best judge of that." Joyce swung upon Bleyer. "You hear, sir. You're to tell me what you mean."

"I don't mean anything." He paused, then looked straight at Joyce with a visible harshness. "I'll tell you what the common gossip is if you want to know, Miss Seldon. They say he is a highgrader."

"And what is a highgrader?" demanded Moya.

"A highgrader is one who steals rich ore from the mine where he works," answered Verinder smugly.

Moya, eyes hot and shining, flashed her challenge at him. "I don't believe it—not a word of it, so far as Mr. Kilmeny is concerned."

"Afraid that doesn't change the facts, Miss Dwight. It's a matter of general knowledge." Beneath Verinder's bland manner there lurked a substratum of triumph.

"General fiddlesticks! Don't believe it, Joyce," cried Moya stormily. "He doesn't even work as a miner. He owns his own lease."

"He used to work in the mines, even if he doesn't now. There are stories _____"

"Ridiculous to think it of Mr. Kilmeny," exploded Moya. "We've done nothing but insult him ever since we've known him. First he was a highwayman. Now he is a thief. Anything else, Mr. Verinder?"

"Everybody knows it," retorted Verinder sulkily.

"Then prove it. Put him in prison. Aren't there any laws in the state? If everybody knows it, why isn't he arrested?" the Irish girl flamed.

"Moya," chided Lady Farquhar gently.

Her ward turned upon Lady Jim a flushed face stirred by anger to a vivid charm. "Can't you see how absurd it is? He owns his own lease. Mr. Bleyer admits it. Is he robbing himself, then?"

The muscles stood out on the cheeks of the superintendent like cords. He stuck doggedly to his guns. "I didn't say he stole the ore himself. The charge is that he buys it from the men who do take it. His lease is an excuse. Of course he pretends to get the ore there."

"It's the common talk of the camp," snapped Verinder contemptuously. "The man doesn't even keep it under decent cover."

"Then prove it ... prove it! That ought to be easy—since everybody knows it." Moya's voice was low, but her scornful passion lashed the Englishman as with a whip.

"By Jove, that's just what I'm going to do. I'm going to put our friend behind the bars for a few years," the smug little man cried triumphantly.

The red spots on Moya's cheeks burned. The flashing eyes of the girl defied her discarded lover.

"If you can," she amended with quiet anger.

The soft laugh of Joyce saved for the moment the situation. "Dear me, aren't we getting a little excited? Mr. Bleyer, tell me more. How does a—a highgrader, didn't you call him?—how does he get a chance to steal the ore?"

"He picks out the best pieces while he is working—the nuggets that are going to run a high per cent. of gold—and pockets them. At night he carries them away."

"But—haven't you any policemen here? Why don't you stop them and search them?"

"The miners' union is too strong. There would be a strike if we tried it. But it has got to come to that soon. The companies will have to join hands for a finish fight. They can't have men hoisted up from their work with a hundred dollars' worth of ore stowed away on them."

"Is it as bad as that, Mr. Bleyer?" asked Lady Farquhar in surprise.

"Sometimes they take two or three hundred dollars' worth at once."

"They don't all steal, do they?" demanded Moya with an edge of sarcasm in her clear voice.

Bleyer laughed grimly. "I'd like to know the names of even a few that don't. I haven't been introduced to them."

"One hundred per cent. dishonest," murmured Moya without conviction.

"I don't guarantee the figures, Miss Dwight." The superintendent added grudgingly: "They don't look at it that way. Bits of highgrade ore are their perquisite, they pretend to think."

Verinder broke in. "They say your friend Kilmeny took ore to the value of two thousand dollars from the Never Quit on one occasion. It ran to that amount by actual smelter test, the story goes. I've always rather doubted it."

"Why—since he is so dishonest?" Moya flung at him.

"Don't think a man could carry away so much at one time. What d'ye think, Bleyer?"

"Depends on how highgrade ore the mine carries. At Cripple Creek we found nearly four thousand on a man once. He was loaded down like a freight car—looked like the fat boy in 'Pickwick Papers.'"

"Should think he'd bulge out with angles where the rock projected," Lady Farquhar suggested.

"The men have it down to a system there. We used to search them as they left work. They carry the ore in all sorts of unexpected places, such as the shoulder padding of their coats, their mouths, their ears, and in slings scattered over the body. The ore is pounded so that it does not bulge."

"Perhaps I'm doing Mr. Kilmeny an injustice, then. Very likely he did get away with two thousand at one time," Verinder jeered with an unpleasant laugh.

"Yes, let's think the worst of everybody that we can, Mr. Verinder," came Moya's quick scornful retort.

The Cræsus of Goldbanks stood warming himself with his back to the grate, as smug and dapper a little man as could be found within a day's journey.

"Very good, Miss Dwight. Have it your own way. I'm not a bally prophet, you know, but I'll go this far. Your little tin hero is riding for a fall. It's all very well for him to do the romantic and that sort of piffle, by Jove, but when you scrape the paint off he's just a receiver of stolen property and a common agitator. Don't take my word for it. Ask Bleyer." Without looking at him he gave a little jerk of the head toward his superintendent. "Who is the most undesirable citizen here, Bleyer? Who makes all the trouble for the companies?"

Bleyer shook his head. "I can't back my opinion with proof."

"You know what people say. Whom do the men rely on to back them whenever they have trouble with us? Out with it."

"Kilmeny is their king pin—the most influential man in camp."

"Of course he is. Anybody could tell to look at him that he is a leader. Does it follow he must be a criminal?" Moya demanded abruptly.

The superintendent smiled. He understood what was behind that irritation. "You're a good friend, Miss Dwight."

"It's absurd that I am. He did nothing for Joyce and me—except fight for us and see that we were sheltered and fed and brought home safely. Why shouldn't we sit still and let his reputation be torn to tatters?"

Blücher bore down upon the field of Waterloo. "Of course we're 'for' Mr. Kilmeny, as you Yankees say. I don't care whether he is a highgrader or not. He's a gentleman—and very interesting." Joyce nodded decisively, tilting a saucy chin toward Verinder. "We're *for* him, aren't we, Moya?"

Lady Farquhar smiled and let her embroidery drop to the table as she rose. "I like him myself. There's something about him that's very attractive. I do hope you are wrong, Mr. Bleyer. He does not look like an anarchist and a thief."

"That is not the way he would define himself. In this community highgrading isn't looked on as theft. Last year our sheriff was suspected of buying ore from miners and shipping it to the smelters. Public opinion does not greatly condemn the practice." Bleyer, bowing as he spoke, excused himself and withdrew.

Verinder appealed to Lady Farquhar. The indignation of the newly rich sat heavily upon him. With all his little soul he disliked Jack Kilmeny. Since the man had done so signal a service for Joyce, jealousy gnawed at his heart.

"Of course we've got to be decent to the man, I suppose. He had a big slice of luck in getting the chance to help Miss Seldon and Miss Dwight. And I don't forget that he is a cousin to our friends. If it wasn't for that I'd say to mail him a check and wipe the slate clean. But of course——"

"You'd never dare," breathed Moya tensely. "I won't have him insulted."

"Of course not, under the circumstances. No need to get volcanic, Miss Dwight. I merely suggested what I'd like to do. Now the burden is off my shoulders. I have given you the facts."

"You've given us only suspicions, Mr. Verinder. I don't think it would be fair to assume them correct," the chaperone answered.

But Moya knew that Verinder had dropped his seed in fruitful soil. Lady Farquhar would not forget. Jack Kilmeny's welcome would be something less than cordial henceforth.

CHAPTER XV

A HIGHGRADER—IN PRINCIPLE

In spite of the warm defense she had made of Kilmeny, the heart of Moya was troubled. She knew him to be reckless. The boundaries of ethical conduct were not the same for him as for Lord Farquhar, for instance. He had told her as much in those summer days by the Gunnison when they were first adventuring forth to friendship. His views on property and on the struggle between capital and labor were radical. Could it be that they carried him as far as this, that he would take ore to which others had title?

The strange phase of the situation was that nobody in Goldbanks seemed to give any consideration to the moral issue. If rumor were true, the district attorney and a good many of the business men of the town were engaged in disposing of this ore for the miners on a percentage basis. Between the miners and the operating companies was war. If a workman could get the better of the owners by taking ore that was a point to his credit. Even Verinder and Bleyer at bottom regarded the matter as a question of strength and not as one of equity.

Moya was still in process of thinking herself and life out. It was to her an amazing thing that a whole community should so lose its sense of values as to encourage even tacitly what was virtually theft. She did not want to pass judgment upon Goldbanks, for she distrusted her horizon as narrow. But surely right was right and wrong wrong. Without a stab of pain she could not think of Jack Kilmeny as engaged in this illicit traffic.

In her heart she was afraid. Bleyer was a man to be trusted, and in effect he had said that her friend was a highgrader. Even to admit a doubt hurt her

conscience as a disloyalty, but her gropings brought no certainty of his innocence. It would be in keeping with the man's character, as she read it, not to let fear of the consequences hold him from any course upon which he was determined. Had he not once warned her in his whimsical smiling way that she would have to make "a heap of allowances" for him if she were to remain his friend? Was it this to which he had referred when he had told her he was likely to disappoint her, that a man must live by the code of his fellows and judge right and wrong by the circumstances? Explicitly he had given her to understand that his standards of honesty would not square with hers, since he lived in a rough mining camp where questions had two sides and were not to be determined by abstract rule.

As for Joyce, the charges against Kilmeny did not disturb her in the least. He might be all they said of him and more; so long as he interested her that was enough. Just now her head was full of the young man. In the world of her daydreams many suitors floated nebulously. Past and present she had been wooed by a sufficient number. But of them all not one had moved her pulses as this impossible youth of the unmapped desert West had done. Queer errant impulses tugged at her well-disciplined mind and stormed the creed of worldliness with which she had fenced her heart.

A stroll to view the sunset had been arranged by the young people up what was known as Son-of-a-Gun Hill. Moya walked of course with Captain Kilmeny, her betrothed. Joyce saw to it that Verinder was paired with India, Jack Kilmeny falling to her lot. Since India knew that her escort was eager to get with Miss Seldon, she punished his impatience by loitering far behind the others.

During the past few days Jack had pushed his tentative suit boldly but lightly. He understood that Joyce was flirting with him, but he divined that there had been moments when the tide of her emotion had swept the young woman from her feet. She was a coquette, of course, but when his eyes fell like a plummet into hers they sounded depths beneath the surface foam. At such times the beat of the surf sounded in his blood. The spell of sex, with all its fire and passion, drew him to this lovely creature so prodigal of allure.

The leading couples stood for a moment's breathing space near the summit. Beneath them the squalid little town huddled in the draw and ran sprawling

up the hillsides. Shaft-houses and dumps disfigured even the business street.

Joyce gave a laughing little shudder. "Isn't it a horrid little hole?"

Jack looked at her in surprise, but it was Moya that answered.

"Oh, I don't think so, Joyce. Of course it's not pretty, but—doesn't it seem to stand for something big and—well, indomitable? Think of all the miles of tunnels and stopes, of all the work that has gone into making them." She stopped to laugh at her own enthusiasm before she added: "Goldbanks stands to me for the hope in the human heart that rises in spite of everything. It is the product of an idea."

Miss Seldon gave a little lift to her superb shoulders. "You're incurably romantic, Moya. It's only a scramble for money, after all."

"Don't know about that, Miss Seldon," disagreed Captain Kilmeny. "Of course it's gold they all want. But gold stands for any number of good things, tangible and abstract—success, you know, and home, and love, and kiddies, the better development of the race—all that sort of thing."

"Is that what it means to the highgraders too?" Joyce let her smiling eyes rest with innocent impudence in those of the miner.

Kilmeny showed no sign of discomfiture. His gaze met hers fully and steadily. "Something of that sort, I suppose."

"Just what *is* a highgrader?"

Moya held her breath. The debonair lightness of the question could not rob it of its significance. Nobody but Joyce would have dared such a home thrust.

Jack laughed dryly. "A highgrader is a miner who saves the company for which he works the trouble of having valuable ore smelted."

"But doesn't the ore belong to the company?"

"There's a difference of opinion about that. Legally it does, morally it doesn't—not all of it. The man who risks his life and the support of his family by working underground is entitled to a share of the profit, isn't he?"

"He gets his wages, doesn't he?"

"Enough to live on—if he doesn't want to live too high. But is that all he is entitled to? Your friend"—he waved a hand toward Verinder, puffing up the trail a hundred yards below—"draws millions of dollars in dividends from the work of these men. What does he do to earn it?"

"You're a socialist," charged Joyce gayly. "Or is it an anarchist that believes such dreadful things?"

"Mr. Kilmeny doesn't quite believe all he says," suggested Moya quietly.

"Don't I?" Behind Jack's quizzical smile there was a hint of earnestness. "I believe that Dobyans Verinder is a parasite in Goldbanks. He gobbles up the product of others' toil."

Joyce flashed at him a swift retort. "Then if you believe that, you ought to be a highgrader yourself."

"Joyce," reproved Moya, aghast.

"I mean, of course, in principle," her friend amended, blushing slightly at her own audacity.

Her impudence amused the miner. "Perhaps I am—in principle."

"But only in principle," she murmured, tilting a radiant challenge at him.

"Exactly—in principle," he agreed. There was humor in his saturnine face.

Joyce ventured one daring step further. "But of course in practice——"

"You should have been a lawyer, Miss Seldon," he countered. "If you were, my reply would be that by advice of counsel I must decline to answer."

"Oh, by advice of counsel! Dear me, that sounds dreadfully legal, doesn't it, Moya? Isn't that what criminals say when——?"

"——When they don't want to give themselves away. I believe it is," he tossed back with the same lightness. "Before I make confession I shall want to know whether you are on my side—or Verinder's."

Under the steady look of his bold, possessive eyes the long silken lashes fell to the soft cheeks. Joyce understood the unvoiced demand that lay behind the obvious one. He had thrown down the gage of battle. Was she for Verinder or for him? If he could have offered her one-half the advantages of his rival, her answer would not have been in doubt. But she knew she dared

not marry a poor man, no matter how wildly his presence could set her pulses flying or how great her longing for him. Not the least intention of any romantic absurdity was in her mind. When the time came for choice she would go to Verinder and his millions. But she did not intend to let Jack Kilmeny go yet.

She lifted to him a face flushed and excited, answering apparently his words and not his thoughts. "I haven't decided yet. How can I tell till I hear what you have to say for yourself?"

"You couldn't find a more charming sister confessor for your sins," the captain told his cousin.

"I'll do my best," Joyce promised. Then, with a flash of friendly malice: "But I haven't had the experience of Moya. She is just perfect in the rôle. I know, because she hears all mine."

Moya flushed resentfully. She did not intend to set up for a prude, but she certainly did not mean to treat highgrading as if it were a joke. If Jack Kilmeny was innocent, why did he not indignantly deny the charge?

"Afraid I'll have to be excused," she said, a little stiffly.

"Miss Dwight doesn't approve of me," explained the miner. "If I confessed to her she would probably turn me over to the sheriff."

The girl's quick eyes flashed into his. "I don't approve of taking ore that doesn't belong to one—if that's what you mean, Mr. Kilmeny."

Jack liked the flare of temper in her. She was very human in her impulses. At bottom, too, he respected the integrity of mind that refused to compromise with what she thought was wrong.

But no admission of this showed in his strong brown face. His mordant eyes mocked her while he went into a whimsical argument to show that highgrading was really a virtue, since it tended to keep the rich from growing richer and the poor poorer. He wanted to know by what moral right Verinder owned the Mollie Gibson and the Never Quit any more than he did.

The mine owner, puffing from the exertions of the last bit of ascent, exclaimed indignantly: "Own 'em, by Jove! Doesn't a Johnny own what he buys and pays for?"

"You don't suppose that when God or Nature or the First Cause created that ore vein a million years ago he had Dobyans Verinder in mind as the owner," derided Kilmeny.

"That's all anarchistic rot, you know. Those mines are my property, at least a commanding interest. They're mine because I bought the shares. Government is founded on a respect for property rights."

"So I've observed," retorted Jack dryly. "I'd back that opinion, too, if I owned half of Goldbanks."

"I suppose Mr. Kilmeny's highgrading friends are superior to law. It isn't necessary for them to abide by the rules society has found best for its protection," Moya suggested.

The engaging smile of the accused rested upon Miss Dwight. "I met you and your friends in a motor car yesterday. I'll bet that speedometer said twenty-five miles, but the town ordinance puts the speed limit at fifteen. What about that?"

"You know that's different. No moral question was involved. But when it comes to taking what belongs to another—well, a thief is a thief."

"Right as a rivet, Miss Dwight. But you're begging the question. *Does* that ore belong to Dobyans Verinder any more than it does to—well, to Jack Kilmeny, say for the sake of argument? I go down there and risk my life blasting it out. He——"

"But you don't," interrupted Moya.

"Not to-day perhaps—or yesterday. But I did last year and the year before that. I've brought up in my arms the bodies of men torn to pieces and carried them to their wives and kiddies. How about those women and children? Haven't they earned an interest in the mine? Isn't their moral claim greater than that of Mr. Verinder, who sits in London and draws the dividends?"

"They are pensioned, aren't they?"

"They are not," returned Jack curtly. "The mine owners of Goldbanks don't believe in encouraging negligence. If these workmen hadn't taken chances they probably would not have been killed, you see. But if they didn't take

chances none of the men could earn a living for their families. It is plain how very much to blame they are."

Moya looked across the summits of the hills into the brilliant sunset that lay like a wonderful canvas in the crotch of the peaks. A troubled little frown creased her forehead. For the first time there had come home to her the injustice of the social system under which she and her friends thrived. No adequate answer came to her. Verinder and Joyce joined in argument against the young miner, but Moya did not hear what they said.

She was unusually silent on the way home. Once she looked up and asked Captain Kilmeny a question.

"After all, two wrongs don't make a right, do they?"

"No, dear girl. Life's full of injustice. I dare say some of the men I lead are better than Ned Kilmeny, but I've got to forget that and sit tight in the seat that's been dealt me by the cards. If Jack is trying to justify highgrading, he hasn't a leg to stand on."

She sighed. "You don't think, do you, that——?"

He answered her broken sentence. "Don't know. He doesn't play the game by the same rules we do, but my judgment is that the gossip about him has no basis of fact."

The girl he loved gave him one grateful look and fell again into silence. She wished she felt more sure. Only that morning she had read an editorial in one of the local papers warning the men that the operators were determined to suppress highgrading at any cost, even if some of the more flagrant offenders had to be sent to the penitentiary. That such a fate could befall Jack Kilmeny was unthinkable. Yet what more likely than that the managers should choose him for an example if they could prove him guilty?

The dusk had fallen over the hills and the lights were glimmering out from the town below through the growing darkness. Captain Kilmeny walked beside his slim, tall, worshipful sweetheart with a heavy heart. She was his promised bride. That she would keep faith he did not doubt. But the progress that he made in winning her love was so little that he seemed to himself to be marking time. The shadow of his vagabond cousin still lay between them.

CHAPTER XVI

ONE MAID—TWO MEN

Jack saw to it that he and Joyce followed the others down the trail at a very leisurely pace. The early night of the Rockies was already cutting them off from the rest of the world. Captain Kilmeny and his betrothed could be seen as shadows growing every minute more tenuous. India and her escort were already lost in the descending darkness.

It was the first time that the Goldbanks miner had ever been alone with Miss Seldon. He meant to make the most of his chance. Her loveliness sang its way through his alert, masterful eyes into the blood of the man. Where else under heaven could a woman be found with such a glory of amber extravagance for hair, with such exquisitely turned scarlet lips in so fine-textured colorless a skin of satin? She moved with the lightness of perfect health, the long, graceful lines of her limbs breaking into new curves at every step. Sinuous and supple, she was exquisitely feminine to the finger tips.

They talked little, and that irrelevantly. In both of them the tide of emotion ran full. Each was drawn by the subtle irresistible magnet of sex attraction. When their eyes met it was but for an instant. A shyness, delirious and delightful, ran like a golden thread through the excitement which burned their blood.

"We ... must hurry." Joyce breathed deep, as if she had been running.

"Why must we?" he demanded. "This is my hour. I claim it."

"But ... they're getting ahead of us."

"Let them." He gave her his hand to help her down a steep place in the trail. Their fingers laced, palm clinging to palm.

"You ... mustn't," she protested.

"Mustn't I?"

"No-o."

The note of faintness was in her voice. Courage flooded him in triumphant waves. A moment and his arms were about her, the velvet of her cheek against his. She lay still for an instant, pulses throbbing wildly. But when his lips found hers the woman in her awoke. In an ecstasy of tenderness her arms crept around his neck, and she clung to him. A distant sea surf roared in her ears. For the first time in her life passion had drowned coquetry.

They spoke in kisses, in caresses, in little murmured nothings, as lovers will till the end of time. Something sweet and turbulent swelled in her bosom, an emotion new and inexplicable. For the first time in many experiences of the sex duel she was afraid of herself, of the strength of this impassioned feeling that was sweeping her. She disengaged herself from his embrace and stood back.

Beneath the quick probe of his eyes a faint tremor passed through her body. The long lashes fell to the hot cheeks and curtained lambent windows of light.

"What are we doing?" she cried softly.

"Doing? I'm making love to you, sweetheart, and you're telling me you love me for it," he answered, capturing her hands.

"Yes, but ... I don't want you to ... make love to me ... that way."

"You do." He laughed aloud, and with a swift motion drew her to him again.

"We belong, you witch."

His ardent kisses smothered her and drew the color into her lovely face. She yearned toward him, faint with a sweet, exquisite longing. Was this love then? Had it at last trapped her in spite of her cool wariness? She did not know. All she was sure of was that she wanted to be in his strong arms and to feel forever this champagne leap of the blood.

* * * * *

With the excuse that she must dress for dinner, Joyce went at once to her room and locked the door. Discarding the walking suit she was wearing, she slipped into a negligee gown and seated herself before the glass. She liked, while thinking things over, to look at herself in the mirror. The picture that she saw always evoked pleasant fugitive memories. It was so now. Never had her beauty seemed so radiant and vital, so much an inspiration of the spirit in her. Joyce could have kissed the parted scarlet lips and the glowing pansy eyes reflected back to her. It was good to be young and lovely, to know that men's hearts leaped because of her, especially that of the untamed desert son who had made love to her so masterfully.

How had he dared? She was a rare imperious queen of hearts. No man before had ever ravished kisses from her in such turbulent fashion. When she thought of the abandon with which she had given herself to his lips and his embrace, the dye deepened on her cheeks. What was this shameless longing that had carried her to him as one looking down from a high tower is drawn to throw himself over the edge? He had trampled under foot the defenses that had availed against many who had a hundred times his advantages to offer.

It was of herself, not him, that she was afraid. She had *wanted* his kisses. She had rejoiced in that queer, exultant stir of the blood when his eyes stabbed fathoms deep into hers. What was the matter with her? Always she had felt a good-natured contempt for girls who threw away substantial advantages for what they called love. After steering a course as steady as a mariner's compass for years was she going to play the fool at last? Was she going to marry a pauper, a workingman, one accused of crime, merely because of the ridiculous emotion he excited in her?

The idea was of course absurd. The most obvious point of the situation to her was that she dared not marry him. In her sober senses she would not want to do such a ruinous thing. Already she was beginning to escape from the thrill of his physical presence. He had taken the future for granted, and during that mad quarter of an hour she had let him. Carried away by his impetuosity and her own desire, she had consented to his preposterous hopes. But of a certainty the idea was absurd. Joyce Seldon was the last woman in the world to make a poor man's wife.

To-morrow she must have a serious talk with him and set the matter on a proper footing. She must not let herself be swept away by any quixotic sentiment. The trouble was that she liked him so well. When they met, her good resolutions would be likely to melt in the air. She would safeguard herself from her weakness by telling him during a ride that had been planned. With her friends a few yards in front of them there could be no danger of yielding to her febrile foolishness.

Or perhaps it would be better to wait. It was now only ten days till the time set for leaving. She might write him her decision. It would be sweet to hold him as long as she could....

A knock at the door aroused her from reverie. She let Fisher in and made preparations to have her hair dressed. This was always one of the important duties of the day. India and Moya might scamp such things on the plea that they were thousands of miles from civilization, but Joyce knew what was due her lovely body and saw that the service was paid rigorously. She chose to wear to-night a black gown that set off wonderfully the soft beauty of her face and the grace of her figure. Jack Kilmeny was to be there later for bridge, and before he came she had to dazzle and placate Verinder, who had been for several days very sulky at having to play second fiddle.

When Joyce sailed down the corridor to the parlor which adjoined the private dining-room of the party, she caught a glimpse of Verinder turning a corner of the passage toward his room. Lady Farquhar was alone in the parlor.

"Didn't I see Mr. Verinder going out?" asked Joyce, sinking indolently into the easiest chair and reaching for a magazine.

"Yes. At least he was here." After a moment Lady Farquhar added quietly, "He leaves to-morrow."

Joyce looked up quickly. "Leaves where?"

"Goldbanks. He is starting for London."

"But.... What about the reorganization of the companies? I thought...."

"He has changed his plans. James is to have his proxies and to arrange the consolidation. Mr. Verinder is anxious to get away at once."

After an instant's consideration Joyce laughed scornfully. She was dismayed by this sudden move, but did not intend to show it. "Isn't this rather ... precipitous? We're all going in a few days. Why can't he wait?"

Her chaperone looked at Joyce as she answered. "Urgent business, he says."

"Urgent fiddlesticks!" Joyce stifled a manufactured yawn. "I dare say we bore him as much as he does us. Wish we were all back in grimy old London."

"It won't be long now." Lady Jim answered with a smile at the other suggestion. "No, I don't think business calls him, and I don't think he is bored."

Joyce understood the significance of the retort. Verinder at last had revolted against being played with fast and loose. He was going because of her violent flirtation with Jack Kilmeny. This was his declaration of independence.

Miss Seldon was alarmed. She had not for a minute intended to let the millionaire escape. The very possibility of it frightened her. It had not occurred to her that the little man had spirit enough to resent her course so effectively. With the prospect of losing it in sight, his great wealth loomed up to dwarf the desire of the hour. She blamed herself because in the excitement of her affair with Kilmeny she had for the first time in her life let herself forget real values.

But Joyce was too cool a hand to waste time in repining so long as there was a chance to repair the damage. Was the lost prize beyond recovery? Two points were in her favor. Verinder had not yet gone, and he was very much infatuated with her. No doubt his vanity was in arms. He would be shy of any advances. His intention was to beat a retreat in sulky dignity, and he would not respond to any of the signals which in the past had always brought him to heel. It all rested on the fortuity of her getting five minutes alone with him. Granted this, she would have a chance. There are ways given to women whereby men of his type can be placated. She would have to flatter him by abasing herself, by throwing herself upon his mercy. But since this must be done, she was prepared to pay the price.

It appeared that Dobyans Verinder did not intend to give her an opportunity. From the soup to the walnuts the topic of conversation had to do with the

impending departure of the mine owner. Joyce was prepared to be very kind to him, but he did not for an instant let his eyes dwell in hers. Behind the curtain of her dark silken lashes she was alertly conscious of the man without appearing to be so. He meant to snub her, to leave without seeing her alone. That was to be her punishment for having cut too deep into his self-esteem. He was going to jilt her.

During dinner and during that subsequent half hour while the ladies waited for the men to rejoin them, Joyce was in a tremor of anxiety. But she carried herself with an indifference that was superb. She had taken a chair at the far end of the long parlor close to a French window opening upon a porch. Apparently she was idly interested in a new novel, but never had she been more watchful. If she had a chance to play her hand she would win; if the luck broke against her she would lose.

Most of her friends had mothers to maneuver for them. Joyce had none, but she was not one to let that stand in her way. Already she had made her first move by asking Lord Farquhar in a whisper not to linger long over the cigars. He had nodded silently, and she knew he would keep his word. If Jack would only stay away until she could see Verinder....

She called the mine owner to her the instant that the men reappeared. He looked across the room sullenly and appeared for one dubious moment to hesitate. But before he could frame an excuse she had spoken again.

"I want you to see this ridiculous illustration. It is the most amusing...."

Without any hesitation she had summoned him before them all. He could not rudely refuse her the ordinary civilities that pass current in society. Sulkily he moved to her side.

She held up the book to him. No illustration met the eyes of the surprised man. Joyce was pointing to a sentence in the story heavily underscored by a pencil.

"Why are you so cruel to me?"

His chin dropped with amazement. Then slowly an angry flush rose to his face. His jaw set firmly as he looked at her.

"Yes, it's certainly ridiculous ... and amusing," he said aloud.

"There's another, too," she went on quickly, recovering the book.

Her fingers turned a page or two swiftly. On the margin was a penciled note.

"I must see you alone, Dobyans. I must."

She lifted to him a face flushed and eager, from which wounded eyes filmy with tears appealed to him. Her shyness, her diffidence, the childlike call upon his chivalry were wholly charming. She was a distractingly pretty woman, and she had thrown herself upon his mercy. Verinder began insensibly to soften, but he would not give up his grievance.

"It's amusing, too—and unnecessary, I think," he said.

The long lashes fluttered tremulously to her cheeks. It seemed to him that she was on the verge of unconsciousness, that the pent emotion was going to prove too much for her.

"I—I think the story calls for it," she answered, a little brokenly.

He retorted, still carrying on the conversation that was to mean one thing to the others in case they heard and another to them. "Depends on the point of view, I suppose. The story is plain enough—doesn't need any more to carry its meaning."

He was standing between her and the rest of the party. Joyce laid an appealing hand on his coat sleeve. Tears brimmed over from the soft eyes. She bit her lip and turned her head away. If ever a woman confessed love without words Joyce was doing it now. Verinder's inflammable heart began to quicken.

"Where?" he asked grudgingly, lowering his voice.

A glow of triumphant relief swept through her. She had won. But the very nearness of her defeat tempered pride to an emotion still related to gratitude. The warm eyes that met his were alive with thanks. She moved her head slightly toward the window.

In another moment they stood outside, alone in the darkness. The night was chill and she shivered at the change from the warm room. Verinder stepped back into the parlor, stripped from the piano the small Navajo rug that draped it, and rejoined Joyce on the porch. He wrapped it about her shoulders.

She nodded thanks and led him to the end of the porch. For a few moments she leaned on the railing and watched the street lights. Then, abruptly, she shot her question at him.

"Why are you going away?"

Stiff as a poker, he made answer. "Business in London, Miss Seldon. Sorry to leave and all that, but——"

She cut him off sharply. "I want the truth. What have I done that you should ... treat me so?"

Anger stirred in him again. "Did I say you had done anything?"

"But you think I'm to blame. You know you do."

"Do I?" His vanity and suspicion made him wary, though he knew she was trying to win him back. He told himself that he had been made a fool of long enough.

"Yes, you do ... and it's all your fault." She broke down and turned half from him. Deep sobs began to rack her body.

"I'd like to know how it's my fault," he demanded resentfully. "Am I to blame because you broke your engagement to walk with me and went with that thief Kilmeny?"

"Yes." The word fell from her lips so low that he almost doubted his ears.

"What? By Jove, that's rich!"

Her luminous eyes fell full into his, then dropped. "If ... if you can't see ——"

"See what? I see you threw me overboard for him. I see you've been flirting a mile a minute with the beggar and playing fast and loose with me. I'm hanged if I stand it."

"Oh, Dobyans! Don't you see? I ... I ... You made me."

"Made you?"

She was standing in profile toward him. He could see the quiver of her lip and the shadows beneath her eyes. Already he felt the lift of the big wave that was to float him to success.

"I ... have no mother."

"Don't take the point."

She spoke as a troubled child, as if to the breezes of the night. "I have to be careful. You know how people talk. Could I let them say that I ... ran after you?" The last words were almost in a whisper.

"Do you mean...?"

"Oh, couldn't you see? How blind men are!"

The little man, moved to his soul because this proud beauty was so deeply in love with him, took her in his arms and kissed her.

A little shudder went through her blood. It had not been two hours since Jack Kilmeny's kisses had sent a song electrically into her veins. But she trod down the momentary nausea with the resolute will that had always been hers. Verinder had paid for the right to caress her. He had offered his millions for the privilege. She too must pay the price for what she received.

"We must go in," she told him presently. "They will wonder."

"They won't wonder long, by Jove," he replied, a surge of triumph in his voice.

Joyce looked at him quickly. "You're not going to tell them to-night?"

He nodded. "To-night, my beauty."

"Oh, no. Please not to-night. Let's ... keep it to ourselves for a few days, dear." The last word was a trifle belated, but that might be because she was not used to it.

Verinder shot a look of quick suspicion at her. "I'm going to tell them to-night—as soon as we get back into the room."

"But ... surely it's for me to say that, Dobyans. I want to keep our little secret for awhile." She caught with her hands the lapels of his dinner jacket and looked pleadingly at him.

"No—to-night." He had a good deal of the obstinacy characteristic of many stupid men, but this decision was based on shrewd sense. He held the upper hand. So long as they were in the neighborhood of Jack Kilmeny he intended to keep it.

"Even though I want to wait?"

"Why do you want to wait?" he demanded sullenly. "Because of that fellow Kilmeny?"

She knew that she had gone as far as she dared. "How absurd. Of course not. Tell them if you like, but—it's the first favor I've asked of you since _____"

Her voice faltered and broke. It held a note of exquisite pathos. Verinder felt like a brute, but he did not intend to give way.

"You haven't any real reason, Joyce."

"Isn't it a reason that ... I want to keep our engagement just to ourselves for a few days? It's our secret—yours and mine—and I don't want everybody staring at us just yet, Dobyans. Don't you understand?"

"Different here," he answered jauntily. "I want to shout it from the house-top." He interrupted himself to caress her again and to kiss the little pink ear that alone was within reach. "I'll make it up to you a hundred times, but I'm jolly well set on telling them to-night, dear."

She gave up with a shrug, not because she wanted to yield but because she must. Her face was turned away from him, so that he did not see the steely look in her eyes and the hard set of the mouth. She was thinking of Jack Kilmeny. What would he say or do when he was told? Surely he would protect her. He would not give her away. If he were a gentleman, he couldn't betray a woman. But how far would the code of her world govern him? He was primeval man. Would the savagery in him break bounds?

Within five minutes she found out. Jack Kilmeny, in evening dress, was jesting in animated talk with India when the engaged couple reëntered the room. He turned, the smile still on his face, to greet Joyce as she came forward beside Verinder. The little man was strutting pompously toward Lady Farquhar, the arm of the young woman tucked under his.

The eyes of Joyce went straight to Kilmeny in appeal for charity. In them he read both fear and shame, as well as a hint of defiant justification.

Even before the mine owner spoke everybody in the room knew what had happened on the veranda.

"Congratulate me, Lady Farquhar. Miss Seldon has promised to be my wife," Verinder sang out chirpily.

There was a chorus of ejaculations, of excited voices. Joyce disappeared into the arms of her friends, while Farquhar and Captain Kilmeny shook hands with the beaming millionaire and congratulated him. Jack's hands were filled with sheet music, but he nodded across to his successful rival.

"You're a lucky man to have won so true a heart, Mr. Verinder," he said composedly.

Joyce heard the words and caught the hidden irony. Her heart was in her throat. Did he mean to tell more?

Presently it came his turn to wish her joy. Jack looked straight at her. There was a hard smile on his sardonic face.

"I believe the right man has won you, Miss Seldon. All marriages aren't made in Heaven, but—— I've been hoping Mr. Verinder would lose out because he wasn't good enough for you. But I've changed my mind. He's just the man for you. Hope you'll always love him as much as you do now."

Joyce felt the color beat into her cheeks. She knew now that Kilmeny was not going to betray her, but she knew too that he understood and despised her.

CHAPTER XVII

A WARNING

Joyce, a lover of luxury, usually had a roll and coffee in bed as a substitute for breakfast. Sometimes she varied this by appearing late at the table and putting the attendants to unnecessary trouble. This she always paid for with murmurs of apology and sweet smiles of thanks.

On the second morning after the announcement of her engagement to Dobyans Verinder she came down to find the dining-room empty except for the omnibus.

She opened wide eyes of surprise. "Dear me! Am I late?"

"Yes'm."

She glanced at the watch on her wrist. "How inconsiderate of me! I didn't realize the time. Would you mind calling a waiter?"

Meanwhile Joyce began on her grape fruit. Almost simultaneously a sound of voices reached her. Men were coming into the parlor that adjoined the breakfast room.

The high-pitched voice of her affianced lover was the first she recognized. "——to-night! Sure he said to-night?"

Joyce judged that the rough tones of the answer came from a workingman. "That's right. To-night, Bell said. He was to bring his wagon round to Kilmeny's at eleven and they were going to haul the ore to Utah Junction."

A third speaker, evidently Bleyer, the superintendent, cut in quietly. "Bell said it was to be a big shipment, didn't he?"

"Yep. Worth sixty or seventy thousand, he figured."

"Was Bell drunk?"

"I wouldn't say drunk. He had been drinking a good deal. Talkative like. He let it out as a secret, y'understand."

"Anyone there beside you?"

"A miner by the name of Peale."

"Know the man?"

It was Verinder that asked the question and Bleyer that answered.

"Yes. A bad lot. One of those that insulted the young ladies."

"Anyhow, he won't warn Kilmeny."

"Not after the mauling that young man gave him. He's still carrying the scars," Bleyer replied with a low laugh. He added briskly, after a moment, "What do you expect to get out of this, Rollins?"

The workman seemed to answer with some embarrassment. "Thought you might give me that lease in the Mollie Gibson I spoke to you about, Mr. Bleyer."

"It's yours—if this comes out as you say, my man. I'd give more than that to call the turn on Mr. Highgrader Kilmeny," Verinder promised.

"And, o' course, you won't give it away that I told."

"Certainly not."

The arrival of a waiter eliminated Joyce as a listener, for the first thing the man did was to close the door between the parlor and the dining-room.

But she had heard enough to know that Jack Kilmeny was in danger of falling into a trap that was being set for him. Verinder had him at last, just as he had promised that he would get him. No doubt they would have witnesses and would send him to prison as they had threatened.

No more than forty-eight hours earlier Joyce would have been on Kilmeny's side instantly. Now her feelings were mixed. It was still impossible for her to think of him without a flare of passion. She was jealous and resentful because she had lost him, but deeper than these lay the anger born of his

scornful surrender of her. It was as if his eyes for the first time had seen the real woman stripped of the glamour lent by her beauty. His contemptuous withdrawal from the field had cut like a knife thrust. She wanted to pay him with usury for his cool, hard disdain. And she had the chance. All she had to do was to be silent and he would fall a victim to his own folly.

There was a hard glitter in the eyes of the young woman. Perhaps Mr. Highgrader Kilmeny, as Verinder had called him, would not be so prodigal of contempt for other people when he stood in the criminal dock. He had been brutally unkind to her. Was she to blame because he was too poor to support her properly? He ought to thank her for having the good sense not to tie herself like a millstone about his neck. They could not live on love just because for the moment passion had swept them from their feet. Instead of being angry at her, he should sympathize with her for being the victim of a pressure which had driven her to a disagreeable duty.

Her simmering anger received a fillip from an accidental meeting with Kilmeny, the first since the night of her engagement. Joyce and Moya were coming out of a stationer's when they came face to face with the miner.

The eyes of the young man visibly hardened. He shook hands with them both and exchanged the usual inane greetings as to the weather. It was just as they were parting that he sent his barbed shot into Joyce.

"I mustn't keep you longer, Miss Seldon. One can guess how keen you must be to get back to Verinder. Love's young dream, and that sort of thing, eh?"

The jeer that ran through his masked insolence brought the angry color to the cheeks of Joyce. She bit her lip to keep back tears of vexation, but it was not until she was in her room with Moya that the need for a confidant overflowed into speech.

"Did you ever hear anything so hateful? He made love to me on the hill.... I let him.... He knows I ... am fond of him. I told him that I loved him. And now...."

Moya stared at her in amaze. "Do you mean that you let Mr. Kilmeny make love to you an hour or two before you became engaged to Mr. Verinder?"

"For Heaven's sake, don't be a prude, Moya," Joyce snapped irritably. "I told you I was fond of him, didn't I? How could I help his kissing me ... or help liking to have him? He ought to be glad. Instead, he insults me." Miss

Seldon's self-pity reached the acute stage of sobs. "I was in love with him. Why is he so hard?"

"Perhaps he thinks that since he is in love with you and you with him that gives him some claim," Moya suggested dryly.

"Of course that's what he thinks. But it's absurd. I'm not going to marry Dobyans Verinder because I want to. He knows that as well as you do. Why does he blame me, then? Goodness knows, it's hard enough to marry the man without having my friends misunderstand."

Moya asked an unnecessary question. "Why do you marry him, then?"

"You know perfectly well," flashed Joyce petulantly. "I'm taking him because I must."

"Like a bad-tasting dose of medicine?"

Her friend nodded. "I *can't* let him go. I just *can't*. Jack Kilmeny ought to see that."

"Oh, he sees it, but you can't blame him for being bitter."

At the recollection of his impudence anger flared up in Joyce.

"Let him be as bitter as he pleases, then. I happen to know something he would give a good deal to learn. Mr. Jack Kilmeny is going to get into trouble this very night. They've laid a plot——"

She stopped, warned by the tense stillness of Moya.

"Yes?" asked the Irish girl.

"Oh, well! It doesn't matter."

"Who has laid a plot?"

"I've no business to tell. I just happened to overhear something."

"What did you overhear?"

"Nothing much."

"I want to know just what you heard."

Against the quiet steadfast determination of this girl Joyce had no chance. A spirit that did not know defeat inhabited the slender body.

Bit by bit Moya forced out of her the snatch of conversation she had overheard while at breakfast.

"It's a secret. You're not to tell anyone," Joyce protested.

Her friend drummed on the arm of the chair with the tips of her fingers. She was greatly troubled at what she had learned. She was a young woman, singularly stanch to her friends, and certainly she owed something to Verinder. The whole party were his guests at Goldbanks. He had brought them in a private car and taken care of them munificently. There were times when Moya disliked him a good deal, but that would not justify an act of treachery. If she warned Jack Kilmeny—and Moya did not pretend to herself for an instant that she was not going to do this—she would have to make confession to Verinder later. This would be humiliating, doubly so because she knew the man believed she was in love with the Goldbanks miner.

In her heart the Irish girl did not doubt that Jack was guilty, but this would not prevent her from saving him if she could. There came to her a swift vision of two helpless girls in a cabin with drinking ruffians, of the entry of a man into the picture, of his fight against odds to save her and Joyce from insult. Beside this abstract justice became a pale and misty virtue.

"Of course you'll not tell anyone," Joyce repeated.

Moya brought her gaze back from the window. "I shall tell Mr. Kilmeny."

"But it isn't your secret. You have no right to."

"Have you forgotten that night in the cabin?" asked Moya in a low, clear voice. "If you have, I haven't."

"I don't care," Joyce answered petulantly. "He's so hard. Why can't he be nice about this? Why can't he understand—instead of sneering at me? It's a good deal harder for me than for him. Think of fifty years of Dobyans Verinder."

"Would you care to write Mr. Kilmeny a note? I'll take it to him if you like," Moya suggested gently.

Joyce considered. "No, I couldn't put it on paper. But—you might tell him."

"I don't think I could quite do that."

"If it came up right; just show him how I'm placed."

"Perhaps. Shall I tell him that you asked me to warn him?"

Joyce nodded, eyes shining. She was a young woman capable of changing her mind in the snap of a finger. Dainty and exquisite as apple blossoms, she was like a young plant with delicate tendrils forever reaching out. Love she must have and ever more of it. To admiration she was sensitive in every fiber. Whenever she thought of Jack Kilmeny's contempt tears scorched her eyes.

It was like Moya that she carried her warning immediately and directly. Kilmeny was not easy to find. He had been seen entering the office of a lawyer, but had left before she arrived. The attorney understood Jack to say that he was going to an assayer's office, and the young woman learned there that he had not been seen yet by the assayer. From here she walked toward his boarding house, thinking that she might catch him at lunch.

A quick step on the boardwalk behind her caught the girl's attention. Almost at the same moment a voice hailed her.

"Whither away, Miss Dwight?"

She turned, heart beating fast. "I was looking for you, Mr. Kilmeny."

"And you've found me. What luck—for Jack Kilmeny!" His friendly smile—the same one that had claimed comradeship on the Gunnison—beamed upon her with its hint of irony.

A miner with a dinner bucket was coming toward them. Moya spoke quickly.

"I want to see you ... alone. I've something important to tell you."

His cool eyes searched her face alertly. "Come up with me to the old Pandora dump."

They took a side street that ran up the hill, presently came to the end of it, and stopped at the foot of a trail leading to the abandoned shaft-house.

The girl fired her news at him point blank. "Mr. Verinder has found out what you mean to do to-night and you are to be trapped."

"What I mean to do?" he repeated.

"About the ore—shipping it or something. I don't know exactly—somebody was drinking and talked, I think."

Moya, watching Kilmeny's face, saw only the slightest change. The eyes seemed to harden and narrow the least in the world.

"Tell me all you know about it."

She repeated what Joyce had overheard, adding that her friend had asked her to tell him.

The faintest ironic smile touched his face. "Will you thank Miss Seldon for me, both for this and many other favors?"

"You don't understand Joyce. You're not fair to her," Moya said impulsively.

"Perhaps not." A sudden warmth kindled in his eyes. "But I know who my real friends are. I'm fair to them, neighbor."

The color beat into her face, but she continued loyally. "May I ... assume you have a kindly interest in Joyce?"

"I'll listen to anything you care to tell me. I owe my friend, Miss Dwight, that much."

"She told me ... a little about you and her. Be fair to her. Remember how she has been brought up. All her life it has been drilled into her that she must make a good match. It's a shameful thing. I hate it. But ... what can a girl like Joyce do?"

"You justify her?"

"I understand her. A decision was forced on her. She had no time to choose. And—if you'll forgive my saying so—I think Joyce did wisely, since she is what she is."

"Of course she did," he answered bitterly.

"Think of her. She doesn't love him, but she sacrifices her feeling to what she considers her duty."

"Shall we substitute ambition for duty?"

"If you like. Her position is not a happy one, but she must smile and be gay and hide her heartache. You can afford to be generous, Mr. Kilmeny."

"I've been a fool," he admitted dryly. "The turn that things have taken is the best possible one for me. But I'm not quite prepared to thank Miss Seldon yet for having awakened me."

She saw that his vanity was stung more than his heart. His infatuation for her had been of the senses. The young woman shifted to another issue.

"You'll be careful to-night, won't you?"

"Very. Mr. Verinder will have to wait for his coup, thanks to you."

"You mean...?" The question hung fire on her lips.

"Go on, neighbor."

"No. It was something I had no business to ask." The cheeks beneath the dusky eyes held each a patch of color burning through the tan.

"Then I'll say it for you. You were going to ask if they would really have caught me with the goods. Wasn't that it?"

She nodded, looking straight at him with the poise of lithe, slim youth he knew so well. Her very breathing seemed for the moment suspended while she waited, tremulous lips apart, for his answer.

"Yes."

"You mean that ... you are a highgrader?"

"Yes."

"I ... was afraid so."

His eyes would not release her. "You made excuses for Miss Seldon. Can you find any for me?"

"You are a man. You are strong. It is different with you."

"My sin is beyond the pale, I suppose?"

"How do I know? I'm only a girl. I've never seen anything of real life. Can I judge you?"

"But you do."

The troubled virginal sweetness of the girl went to his soul. She was his friend, and her heart ached because of his wrongdoing.

"I can't make myself think wrong is right."

"You think the profits from these mines should all go to Verinder and his friends, that none should belong to the men who do the work?"

"I don't know.... That doesn't seem fair.... But I'm not wise enough to know how to make that right. The law is the law. I can't go back of that."

"Can't you? I can. Who makes the laws?" He asked it almost harshly.

"The people, I suppose."

"Nothing of the kind. The operators control the legislatures and put through whatever bills they please. I went to the legislative assembly once and we forced through an eight hour law for underground workers. The state Supreme Court, puppets of capital, declared the statute unconstitutional. The whole machinery of government is owned by our masters. What can we do?"

"I don't know."

"Neither do I—except what I am doing. It is against the law, all right, but I try to see that the workmen get some of the profits they earn."

"Would the operators—what would they do if they proved you guilty of highgrading?"

"It is hard to prove. Ore can't easily be identified."

"But if they did?" she persisted.

"I'd go over the road quick as their courts could send me." A sardonic flicker of amusement moved him to add: "Would you obey the Scriptural injunction and visit me in prison, Miss Dwight?"

"I wouldn't be here. We're going back to England next week."

"But if you were. Would your friendship stand the test?"

Once again she answered, "I don't know," her heart beating wildly as her glance fell away from his.

"I shan't have to try you out this time, neighbor. I'm not going to the pen if I can help it."

"Are you sure of that? The mine owners are quite determined to punish some of the highgraders. Suppose I hadn't come to you to-day. What then?"

He smiled down upon her with the easy recklessness that distinguished him. "I don't think it would have run quite to a prison sentence. The burden of proof lies on the accuser. Because I am in possession of rich ore, it does not follow that I did not come by it legitimately. Ore can't be sworn to like bric-a-brac. I may have shipped this in from South Africa, so far as the law knows. Bleyer knows that. I figure he would have played his hand in the Goldbanks way."

"And how would that be?"

"He would forget the law too, just as we've done on our side. A posse of men would have fallen on me maybe after I had got out of town, and they would have taken that ore from me. They would have been masked so that I could not swear to them."

"Why, that is highway robbery."

He laughed. "We don't use such big words out here, ma'am. Just a hold-up—a perfectly legitimate one, from Bleyer's viewpoint—and it would have left me broke."

"Broke!"

He nodded. "Dead broke. I've got twenty thousand dollars invested in that ore—every cent I've got in the world."

"You paid that to the miners for it?"

"We pay fifty per cent. of what is coming to the men as soon as a rough assay is made, the other fifty after we get the smelter returns. That wagon load of ore is worth—unless I miss my guess badly—about sixty thousand dollars."

"Dear me. So much as that?" She could not quite keep a note of sarcasm out of her voice. "And have you it in a safety deposit vault?"

His cool gaze took her in quietly. He was willing to bet his last dollar on her loyalty, and it was like him to back his judgment in one wild throw. "Not exactly. It is lying in a pile of hay in my barn, all sacked up ready for shipment."

"Waiting there for anybody that wants it," she suggested.

"For anybody that wants it worse than I do," he corrected, the fighting gleam in his eyes.

"I've a right to ask one thing of you—that there will be no bloodshed to-night because of what I have told you."

"There will be none of my seeking," he replied grimly.

"No. That's not enough. You must find a way to avoid it."

"By handing over my hard-earned dishonest profits to the virtuous Verinder?" he asked dryly.

"I don't care how. But I won't have on my shoulders ... murder."

"That's a right hard word, neighbor," he said, falling again into the Western drawl he sometimes used as a mark of his friendship for her. "But have it your own way. I'll not even tote a gat."

"Thank you." She gave him a brisk little nod, suddenly choked up in her throat, and turned to go.

Jack fell into step beside her. "Have I lost my little friend—the one who used to come to me in my dreams and whisper with a lisp that I wasn't a 'stwanger'?" he asked, very gently.

She swallowed twice and walked on without looking at him. But every nerve of her was conscious of his stimulating presence. Since the inner man found expression in that lithe body with the undulating flow of well-packed muscles, in the spare head set so finely on the perfect shoulders, in the steady eyes so frank and self-reliant, surely he was not unworthy the friendship of any woman. But he had just confessed himself a thief. What right had he to ask or she to give so much?

Her hand went out in an impetuous little gesture of despair. "How do I know? You are doing wrong, but ... Oh, why do you do such things?"

"It's in my blood not to let prudence stop me when I've made up my mind to a thing. My father was that way. I'm trying in a rough way to right an injustice—and I like the excitement—and I daresay I like the loot too," he finished with a reckless laugh.

"I wish I could show you how wrong you are," she cried in a low voice.

"You can't. I'll go my own way. But you are still going to let me come and visit you in your dreams, aren't you?"

The glow in her quick live eyes was not a reflection of the sun. She felt the color flood her cheeks in waves. She dared not look at him, but she was poignantly aware that his gaze was fixed on her, that it seemed to bore to the soul and read the hidden secret there. A queer lightheadedness affected her. It was as if her body might float away into space. She loved him. Whatever he was, the man held her heart in the hollow of his careless, reckless hand. To him she would always deny it—or would have if he had thought enough of her to ask—but she knew the truth about herself from many a passionate hour of despair.

Dry as a whisper came her answer, in a voice which lacked the nonchalance she tried to give it. "I daresay I'll be as friendly ... as you deserve."

"You've got to be a heap more friendly than that, partner."

They had come back to the boardwalk which marked the parting of the ways for them. She had won control of herself again and offered him a steady hand.

"I suppose we'll not see each other again.... Good-by."

He was suddenly conscious that he desired very greatly her regard and her approval.

"Is that all you have to say? Are you going to leave me like this?"

"What more is there to be said?" She asked it quietly, with the calm courage that had its birth in hopelessness.

"This much, at least. I don't release you from ... the old tie that used to bind us. We're still going to be dream friends. I haven't forgotten little Moya, who kissed me one night on the deck of the *Victorian*."

"She was a baby at the time," answered the girl.

He had not released her hand. Now, as he looked straight into the sweet face with eyes like troubled stars, it came to him on a flood of light that he had made a fatal mistake.

He dropped her fingers abruptly. "Good-by."

His crisp footfalls seemed to print themselves on a heart of lead. How could she know that he carried away with him a vision of sweet youth that was to endure!

CHAPTER XVIII

TWO AMBUSHES

The clock at the new Verinder Building showed ten minutes past eleven as Jack Kilmeny took the Utah Junction road out of Goldbanks with his loaded ore wagon. It was a night of scudding clouds, through which gleamed occasionally a fugitive moon. The mountain road was steep and narrow, but both the driver and the mules were used to its every turn and curve. In early days the highgrader had driven a stage along it many a night when he could not have seen the ears of the bronchos.

His destination was the Jack Pot, a mine three miles from town, where intermittently for months he had been raising worthless rock in the hope of striking the extension of the Mollie Gibson vein. It was not quite true, as Bleyer had intimated, that his lease was merely a blind to cover ore thefts, though undoubtedly he used it for that purpose incidentally.

Bleyer had guessed shrewdly that Kilmeny would drive out to the Jack Pot, put up in the deserted bunk-house till morning, and then haul the ore down to the junction to ship to the smelter on the presumption that it had been taken from the leased property. This was exactly what Jack had intended to do. Apparently his purpose was unchanged. He wound steadily up the hill trail, keeping the animals at a steady pull, except for breathing spells. The miner had been a mule skinner in his time, just as he had tried his hand at a dozen other occupations. In the still night the crack of his whip sounded clear as a shot when it hissed above the flanks of the leaders without touching them.

He ran into the expected ambush a half mile from the mine, at a point where the road dipped down a wooded slope to a sandy wash.

"Hands up!" ordered a sharp voice.

A horseman loomed up in the darkness beside the wagon. A second appeared from the brush. Other figures emerged dimly from the void.

Jack gave his mules the whip and the heavy wagon plowed into the deep sand. Before the wheels had made two revolutions the leaders were stopped. Other men swarmed up the side of the wagon, dragged the driver from his seat, and flung him to the ground.

Even though his face was buried in the sand and two men were spread over his body, the captive was enjoying himself.

"This is no way to treat a man's anatomy—most unladylike conduct I ever saw," he protested.

He was sharply advised to shut up.

After the pressure on his neck was a little relieved, Jack twisted round enough to see that his captors were all masked.

"What is this game, boys—a hold-up?" he asked.

"Yes. A hold-up of a hold-up," answered one.

Three of the men busied themselves moving the ore sacks from his wagon to another that had been driven out of the brush. A fourth, whom he judged to be Bleyer, was directing operations, while the fifth menaced him with a revolver shoved against the small of his back.

The situation would have been a serious one—if it had not happened to be amusing instead. Kilmeny wanted to laugh at the bustling energy of the men, but restrained himself out of respect for what was expected of him.

"I'll have the law on you fellows," he threatened, living up to the situation. "You'd look fine behind the bars, Bleyer."

"All those sacks transferred yet, Tim?" barked the superintendent.

"Yep."

"Good. Hit the trail."

The wagon passed out of the draw toward Goldbanks. For some minutes the sound of the wheels grinding against the disintegrated granite of the roadbed came back to Jack and the two guards who remained with him.

"Hope this will be a lesson to you," said the superintendent presently. "Better take warning. Next time you'll go to the pen sure."

"Wait till I get you into court, Bleyer."

"What'll you do there?" jeered the other man. "You'd have a heluvatime swearing to him and making it stick. You're sewed up tight this time, Jack."

"Am I? Bet you a new hat that by this time to-morrow night you fellows won't be cracking your lips laughing."

"Take you. Just order the hat left at Goldstein's for the man who calls for it."

For an hour by the superintendent's watch Kilmeny was held under guard. Then, after warning the highgrader not to return to town before daybreak, the two men mounted and rode swiftly away. Jack was alone with his mules and his empty wagon.

He restrained himself no longer. Mirth pealed in rich laughter from his throat, doubled him up, shook him until he had to hang on to a wagon wheel for support. At last he wiped tears from his eyes, climbed into the wagon, and continued on the way to the Jack Pot. At intervals his whoop of gayety rang out boyishly on the night breeze. Again he whistled cheerfully. He was in the best of humor with himself and the world. For he had played a pretty good joke on Bleyer and Verinder, one they would appreciate at its full within a day or two. He would have given a good deal to be present when they made a certain discovery. Would Moya smile when Verinder told her how the tables had been turned? Or would she think it merely another instance of his depravity?

The road wound up and down over scarred hillsides and through gorges which cut into the range like sword clefts. From one of these it crept up a stiff slope toward the Jack Pot. One hundred and fifty yards from the mine Jack drew up to give the mules a rest.

His lips framed themselves to whistle the first bars of a popular song, but the sound died stillborn. Sharply through the clear night air rang a rifle shot.

Jack did not hear it. A bolt of jagged lightning seared through his brain. The limp hands of the driver fell away from the reins and he fell to the ground, crumpling as a dry leaf that is crushed in the palm.

From the shadow of the bunk-house two men stole into the moonlight heavily like awkward beasts of prey. They crept stealthily forward, rifles in hand, never once lifting their eyes from the huddled mass beside the wagon.

The first looked stolidly down upon the white face and kicked the body with his heavy boot.

"By Goad, Dave, us be quits wi' Jack Kilmeny."

The other—it was Peale, the Cornish miner—had stepped on a spoke of the wheel and pulled himself up so that he could look down into the bed of the wagon. Now he broke out with an oath.

"The wagon's empty."

"What!" Trefoye straightened instantly, then ran to see for himself. For a moment he could not speak for the rage that surged up in him. "The dommed robber has made fool of us'n," he cried savagely.

In their fury they were like barbarians, cursing impotently the man lying with a white face shining in the moonlight. They had expected to pay a debt of vengeance and to win a fortune at the same stroke. The latter they had missed. The disappointment of their loss stripped them to stark primeval savagery. It was some time before they could exult in their revenge.

"He'll interfere wi' us no more—not this side o' hell anyway," Peale cried.

"Not he. An' we'll put him in a fine grave where he'll lie safe."

They threw the body into the wagon and climbed to the seat. Peale drove along an unused road that deflected from the one running to the Jack Pot.

CHAPTER XIX

MR. VERINDER IS TREATED TO A SURPRISE

The morning after the seizing of the ore Verinder came to breakfast in a mood so jubilant that he could not long keep to himself the cause of his exultation. Kilmeny and Farquhar were away on a hunting trip, and none of the ladies except Moya was yet up. He was especially eager to tell his news to her, because she had always been such an open defender of the highgrader. She gave him his opening very promptly, for she was anxious to know what had occurred.

"Has some distant connection passed away and left you a fortune, Mr. Verinder? Or have you merely found a new gold mine since I saw you last?" she asked.

"By Jove, you're a good guesser, Miss Dwight. I found a gold mine last night. Wonder if you could think where."

Her heart beat faster. "You're so pleased about it I fancy the quartz must have been sacked up for you ready for the smelter," she said carelessly.

Verinder flashed a quick look at her. "Eh, what? How's that?"

Moya opened her lips to confess what she had done, but the arrival of a waiter delayed this. Before he had left, Lady Farquhar entered and the girl's chance was temporarily gone.

"I was just telling Miss Dwight that we've found another gold mine, Lady Farquhar—and of all places in the world located in the bed of a wagon."

"In the bed of a wagon! How could that be?"

"Fact, 'pon my word! High-grade ore too, we fancy; but we'll know more about that when we hear from the assayer."

The matron intercepted the look of triumph—it was almost a jeer—that the mine owner flung toward Miss Dwight. She did not understand what he was talking about, but she saw that Moya did.

"If you'd tell us just what happened we'd be able to congratulate you more intelligently," the latter suggested, masking her anxiety.

"Jove, I wish I could—like to tell you the whole story. We pulled off a ripping surprise on one of your friends. But—the deuce of it is I'm sworn to secrecy. We played the highgraders' game and stepped a bit outside the law for once. Let it go at this, that the fellow had to swallow a big dose of his own medicine."

Moya pushed one more question home. "Nobody hurt, I suppose?"

"Only his feelings and his pocketbook. But I fancy one highgrader has learned that Dobyans Verinder knows his way about a bit, you know."

The subject filled Moya's thoughts all day. Had Kilmeny after all failed to take advantage of her warning? Or had his opponents proved too shrewd for him? From what Verinder had told her she surmised that Jack had tried to reach the railroad with his ore and been intercepted. But why had he not changed his plans after her talk with him? Surely he was not the kind of man to walk like a lamb into a trap baited for him.

Late in the afternoon Moya, dressed in riding costume, was waiting on the hotel porch for India and her brother when she saw Verinder coming down the street. That he was in a sulky ill humor was apparent.

"Lord Farquhar and Captain Kilmeny came back a couple of hours ago," she said by way of engaging him in talk.

"Any luck?" he asked morosely and with obvious indifference.

"A deer apiece and a bear for the captain."

"That fellow Kilmeny outwitted us, after all," he broke out abruptly. "We've been had, by Jove! Must have been what Bleyer calls a plant."

"I don't understand."

"The rock we took from him was refuse stuff—not worth a dollar."

The girl's eyes gleamed. "Your gold mine was salted, then."

"Not even salted. He had gathered the stuff from some old dump."

"He must have profited by my warning, after all," Moya said quietly.

The little man's eyes narrowed. "Eh? How's that? Did you say your warning?"

In spite of herself she felt a sense of error at having played the traitor to her host. "Sorry. I didn't like to do it, but——"

"What is it you did?" he asked bluntly.

"I told Mr. Kilmeny that his plan was discovered."

"You—told him." He subdued his anger for the moment. "If it isn't asking too much—how did you know anything about it?"

She felt herself flushing with shame, but she answered lightly enough. "You shouldn't discuss secrets so near the breakfast-room, Mr. Verinder."

"I see. You listened ... and then you ran to your friend, the highgrader, with the news. That was good of you, Miss Dwight. I appreciate it—under the circumstances."

She knew he referred to the fact that she was his guest. To hear him put into words his interpretation of the thing she had done, with implications of voice and manner that were hateful, moved her to a disgust that included both him and herself.

"Thank you, Mr. Verinder—for all the kind things you mean and can't say."

She turned on her heel and walked to the end of the veranda. After a moment's thought he followed her.

"Have I said a word too much, Miss Dwight? You did listen to a private conversation you weren't meant to hear, didn't you? And you ran to your friend with it? If I'm wrong, please correct me."

"I daresay you're right. We'll let it go at that, if you please."

Verinder was irritated. Clearly in the right, he had allowed her to put him in the wrong.

"I'll withdraw listened, Miss Dwight. Shall we substitute overheard?"

Her angry eyes flashed into his cold, hard ones. "What would you expect me to do? You know what he did for Joyce and me. And he is Captain Kilmeny's cousin. Could I let him go to prison without giving even a warning?"

"Evidently not. So you sacrifice me for him."

"You think I wasn't justified?"

"You'll have to settle that with your conscience," he said coldly. "Don't think *I* would have been justified in your place."

"You would have let him go to prison—the man who had fought for you against odds?"

"Does that alter the fact that he is a thief?" Verinder demanded angrily.

"It alters my relation to the fact—and it ought to alter yours. He did a great service to the woman you are engaged to marry. Does that mean nothing to you?"

"The fellow was playing off his own bat, wasn't he? I don't see I owe him anything," the mine owner sulkily answered. "Truth is, I'm about fed up with him. He's a bad lot. That's the long and short of him. I don't deny he's a well-plucked daredevil. What of it? This town is full of them. There was no question of his going to prison. I intended only to get back some of the ore he and his friends have stolen from me."

"I didn't know that."

"Would it have made any difference if you had?"

She considered. "I'm not sure."

Captain Kilmeny and India emerged from the hotel and bore down upon them.

"All ready, Moya," cried India.

"Ready here." Moya knew that it must be plain to both Captain Kilmeny and his sister that they had interrupted a disagreement of some sort. Characteristically, she took the bull by the horns. "Mr. Verinder and I are

through quarreling. At least I'm through. Are you?" she asked the mine owner with a laugh.

"Didn't know I'd been quarreling, Miss Dwight," Verinder replied stiffly.

"You haven't. I've been doing it all." She turned lightly to her betrothed. "They didn't send up the pinto, Ned. Hope he hasn't really gone lame."

Verinder had been put out of the picture. He turned and walked into the lobby of the hotel, suddenly resolved to make a complaint to Lady Farquhar about the way Moya Dwight had interfered with his plans. He would show that young lady whether she could treat him so outrageously without getting the wiggling she deserved.

Lady Farquhar listened with a contempt she was careful to veil. It was not according to the code that a man should run with the tale of his injuries to a young woman's chaperon. Yet she sympathized with him even while she defended Moya. No doubt if Captain Kilmeny had been at hand his fiancée would have taken the matter to him for decision. In his absence she had probably felt that it was incumbent on her to save his cousin from trouble.

The mine owner received Lady Farquhar's explanations in skeptical silence. In his opinion, Moya's interest in Jack Kilmeny had nothing to do with the relationship between that scamp and the captain. He would have liked to say so flatly, but he felt it safer to let his manner convey the innuendo. In her heart Lady Farquhar was of the same belief. She resolved to have a serious talk with Moya before night.

CHAPTER XX

COLTER TAKES A HAND

Moya combed her long rippling hair while Lady Farquhar laid down the law that hedges a young woman from the satisfaction of her generous impulses. For the most part the girl listened in silence, a flush burning through each of her dusky cheeks. There was nothing to be said that would avail. She might defend the thing she had done, but not the feelings that had inspired her action.

"It is all very well to be independent within limits, my dear, but young women of our class are subject to the penalties that go with our privileges. When I was a girl I rebelled but had to obey. So must you." Lady Farquhar interrupted herself to admire the vivid rebel she was admonishing. "What wonderful hair you have—so long and thick and wavy. It must take a great deal of care."

"Yes," Moya admitted absently.

She did not resent the rebuke Lady Jim had come to give her while she was undressing. No doubt she deserved it. She had been unmaidenly, and all for love of this light-hearted vagabond who did not care the turn of a hand for her. All day her thoughts had been in chaotic ferment. At times she lashed herself with the whip of her own scorn because she cared for a self-confessed thief, for a man who lived outside the law and was not ashamed of it. Again it was the knowledge of her unwanted love that flayed her, or of the injustice to her betrothed in so passionate a feeling for another man. With all her strong young will she fought against this devouring flame that possessed her—and she knew that she fought in vain.

In the shipwreck of her self-respect she clung to one spar. Soon they would be on their way back to that well-ordered world where she would be entirely in the groove of convention. Her engagement to Captain Kilmeny would be announced. Surely among the many distractions of London she would forget this debonair scamp who had bewitched her.

"You should have come to me—or to India for that matter. She is his cousin and is in a different position from you. Don't you see that, my dear?" Lady Farquhar asked gently.

And again Moya said "Yes" wearily.

"James and I understand you—how impulsive you are—and how generous. But Mr. Kilmeny—and Mr. Verinder—what do you suppose they think?"

"I don't care what Mr. Verinder thinks." And Moya began to coil her hair loosely for the night.

"But that's just it—a girl *must* care. She can't afford to allow anyone an opportunity to think unpleasant things about her. She has to guard her reputation very jealously."

"And I suppose I've been playing ducks and drakes with mine," Moya said, pushing home a hairpin.

"I don't say that, dear. What I say is that Mr. Kilmeny may misunderstand your interest in him."

"He may think I'm in love with him. Is that it?" flashed the girl.

"He might. Give a man's vanity the least chance and——"

A reckless impulse to hurt herself—the same which leads a man to grind on an aching tooth in heady rage—swept Moya like a flame.

"Then he would think the truth," she interrupted. "What's the use of denying it? I ... I'm in love with him."

"Moya." Lady Farquhar's protest came in a horrified gasp.

The young woman turned her slim body in the chair with supple grace so as to face her chaperon. Beneath the dark eyes spots of color burned through the tan.

"It's true. I've cared ... ever since we met him."

"And he—has he ever made love to you?"

"Never. He's thought only of Joyce. That's what makes it more shameful."

Lady Farquhar took a moment to absorb the unwelcome news. "I never dreamed it was as bad as this. Of course I knew he interested you a good deal, but——"

Moya could not keep scorn of herself out of her voice. "But you didn't think I was so lost to decency as to throw myself at his head. You see I am."

"Nonsense," cut in her chaperon with sharp common sense. "You're not the first girl that has fancied a man who won't do. It's imagination—a good deal of it. Make yourself forget him. That's all you can do."

"I can't do that. I've tried," confessed Moya miserably.

"Then try again—and again—and still again. Remember that you are engaged to a man worth a dozen of him. Call your pride to help you."

"It seems that I have none. I've told myself forty times that he's a highgrader and that doesn't help."

Her friend was alarmed. "You don't mean that you would marry a man who is a—a man who steals ore."

"No. I wouldn't marry him ... even if he wanted me—which he doesn't. I haven't fallen that far."

"Glad to hear you say that," answered Lady Farquhar with a sigh of relief. She took the girl in her arms and patted one of the shoulders over which the hair cascaded. "My dear, it's hard. You're intense and emotional. But you've got to—to buck up, as James says. You're brave—and you're strong-willed. Make a winning fight."

"What about ... Ned?"

"Does he suspect?"

"I don't know. Sometimes I think he does. But you know how generous he is. He never says anything, or avoids the subject of his cousin in any way." She added, after an instant: "Ned knows that I don't ... love him—that is, in one way. He says he is ready to wait till that comes."

"Ned Kilmeny is a man out of a million."

Moya nodded. "Yes. That's why this is so unfair to him. What ought I to do? Shall I break the engagement? That's what I want to do, but it will hurt him a good deal."

"Wait. Give yourself and him a chance. In a few days we'll be started home."

"That's what I've been telling myself. Everything here reminds me of—*him*. It will be different then, I try to think. But—down in my heart I don't think it will."

"And I know it will," the matron told her promptly. "Time, my dear, heals all our woes. Youth has great recuperative power. In a year you will wonder how he ever cast such a spell over you."

Moya heard the last belated reveler pass down the corridor to his room before she fell asleep. When she awoke it was to see a long shaft of early sunshine across the bed.

She rose, took her bath, and dressed for walking. Her desire drew the steps of the young woman away from the busy street toward the suburb. She walked, as always, with the elastic resilience of unfettered youth. But the weight that had been at her heart for two days—since she had learned from Jack Kilmeny's lips that he was a highgrader—was still tied there too securely to be shaken away by the wonder of the glorious newborn day.

Returning to the hotel, she met a man on the porch whose face stirred instantly a fugitive memory. He came to her at once, a big leather-skinned man with the weatherbeaten look of the West.

"Aren't you the Miss Dwight I've heard Jack Kilmeny mention?"

"Yes. This is Mr. Colter, isn't it?"

He nodded, watching her with hard narrowed eyes. "Something's wrong. Can you tell me what it is? Jack's mules—two of them, anyhow—came back to the barn during the night with bits of broken harness still attached to them. Looks like there had been a runaway and the wagon had come to grief. The keeper of the livery stable says Bell took the wagon around to Jack's place and left it with him. He was seen driving out of town soon after. He has not been seen since."

Her heart flew to alarm. "You mean ... you think he has been hurt?"

"Don't know. He's not in town. That's a cinch. I've raked Goldbanks with a toothcomb. Where is he?"

"Couldn't he be at his mine?"

"I sent a boy out there. He's not at the Jack Pot."

"What is it that you think? Tell me," she cried softly.

"You're his friend, aren't you?"

"Yes."

"There's some talk around town that he was held up by Bleyer. I came up here to see him or Verinder. Foul play of some kind, that's my guess."

"But—you surely don't think that Mr. Bleyer or Mr. Verinder would ... hurt him."

The look of dogged resolution on the man's granite face did not soften. "They'll have to show me—and by God! if they did——"

Her mind flew with consternation to the attack upon Kilmeny that had been made by Bleyer. But Verinder had told her nobody had been hurt. Could they have taken the highgrader prisoner? Were they holding him for some purpose?

"Mr. Verinder gets up about this time usually," she said.

"I'm waiting for him. He said he would be down at once."

"Will you tell me anything you find out, please? I'll be on the veranda upstairs."

Colter joined her a quarter of an hour later. "I saw both Bleyer and Verinder. They've got something up their sleeve, but I don't think they know where Jack is or what has become of him. They pretended to think I was trying to put one over on them."

"What will you do now?"

"I'll go out to the Jack Pot myself. I've reason to believe he intended to go there."

"If you find out anything——"

"Yes, I'll let you know."

Moya went directly from Colter to Bleyer. The superintendent entered a curt denial to her implied charge.

"Miss Dwight, I don't know what you do or do not know. I see someone has been blabbing. But I'll just say this. When I last saw Jack Kilmeny he was as sound as I am this minute. I haven't the least idea where he is. You don't need to worry about him at all. When he wants to turn up he'll be on deck right side up. Don't ask me what his play is, for I don't know. It may be to get me and Verinder in bad with the miners. Just be sure of one thing: he's grandstanding."

She was amazingly relieved. "I'm so glad. I thought perhaps——"

"——that Mr. Verinder and I had murdered him. Thanks for your good opinion of us, but really we didn't," he retorted in his dryest manner.

She laughed. "I did think perhaps you knew where he was."

"Well, I don't—and I don't want to," he snapped. "The less I see of him the better I'll be satisfied."

The superintendent of the Verinder properties had found a note addressed to him in one of the sacks of quartz taken from Kilmeny. The message, genial to the point of impudence, had hoped he had enjoyed his little experience as a hold-up. To Bleyer, always a serious-minded man, this levity had added insult to injury. Just now the very mention of the highgrader's name was a red rag to his temper. It was bad enough to be bested without being jeered at by the man who had set a trap for him.

It was well on toward evening before Colter paid his promised visit to Miss Dwight. She found him waiting for her upon her return from a ride with Captain Kilmeny, Verinder, and Joyce.

Moya, as soon as she had dismounted, walked straight to him.

"What have you found out, Mr. Colter?"

"Not much. It rained during the night and wiped out the tracks of wagon wheels. Don't know how far Jack got or where he went, but the remains of the wagon are lying at the bottom of a gulch about two miles from the Jack Pot."

"How did it get there?"

"I wish you could tell me that. Couldn't have been a runaway or the mules would have gone over the edge of the road too." He stepped forward quickly as Verinder was about to pass into the hotel. "I want to have a talk with you."

The little man adjusted his monocle. "Ye-es. What about, my man?"

"About Jack Kilmeny. Where is he? What do you know? I'm going to find out if I have to tear it from your throat."

Verinder was no coward, but he was a product of our modern super-civilization. He glanced around hastily. The captain had followed Joyce into the lobby. Moya and he were alone on the piazza, with this big savage who looked quite capable of carrying out his threat.

"Don't talk demned nonsense," the mine owner retorted, flushing angrily.

Colter did not answer in words. The strong muscular fingers of his left hand closed on the right arm of Verinder just below the shoulder with a pressure excruciatingly painful. Dobyans found himself moving automatically toward the end of the porch. He had to clench his teeth to keep from crying out.

"Let me alone, you brute," he gasped.

Colter paid no attention until his victim was backed against the rail in a corner. Then he released the millionaire he was manhandling.

"You're going to tell me everything you know. Get that into your head. Or, by God, I'll wring your neck for you."

The Englishman had never before been confronted with such a situation. He was a citizen of a country where wealth hedges a man from such assaults. The color ebbed from his face, then came back with a rush.

"Go to the devil, you big bully," he flung out sharply.

Moya, taken by surprise at Colter's abrupt desertion of her, had watched with amazement the subsequent flare-up. Now she crossed the porch toward them.

"What are you doing, Mr. Colter?"

"None of your funeral, ma'am," the miner answered bluntly, not for a moment lifting his hard eyes from Verinder. "Better unload what you know. I've had a talk with Quint Saladay. I know all he knows, that Bleyer and you and him with two other lads held up Jack and took his ore away. The three of them left you and Bleyer guarding Jack. What did you do with him?"

"It's a bally lie. I didn't stay with Bleyer to guard him."

"That's right. You didn't. You came back with the others. But you know what Bleyer did. Out with it."

"I don't admit a word of what you say," said Verinder doggedly.

Colter had trapped him into a half admission, but he did not intend to say any more.

Moya spoke, a little timidly. "Wait a minute please, Mr. Colter. Let me talk with Mr. Verinder alone. I think he'll tell me what you want to know."

Jack's friend looked at her with sharp suspicion. Was she trying to make a dupe of him? Her candid glance denied it.

"All right. Talk to him all you like, but you'll do your talking here," he agreed curtly before he turned on his heel and walked away a few steps.

"You must tell him what he wants to know, Mr. Verinder," urged the young woman in a low voice. "Something has happened to his friend. We must help clear it up."

"I'm not responsible for what has happened to his friend. What do you want me to do? Peach on Bleyer, is that it?"

"No. Send for him and tell Mr. Colter the truth."

"I'll see him hanged and quartered first," he replied angrily.

"If you don't, I'll tell what I know. There's a life at stake," Moya cried, a trace of agitation in her voice.

"Fiddlesticks!" he shrugged. "The fellow's full of tricks. He worked one on us the other night. I'm hanged if I let him play me again."

"You must. I'll tell Captain Kilmeny and Lord Farquhar. I'll not let it rest this way. The matter is serious."

"I'm not going to be bullied into saying a word. That's the long and short of it," he repeated in disgust. "Let Bleyer tell the fellow if he wants to. I'll have nothing to do with it. We're not responsible for what has happened—if anything has."

"Then I'll go and get Mr. Bleyer."

"Just as you please. I'd see this ruffian at Halifax first, if you ask *me*." The angry color flushed his face again as he thought of the insult to which he had been subjected.

To Colter Moya explained her purpose. He nodded agreement without words.

After two or three attempts she got the superintendent on the telephone at the Mollie Gibson mine and arranged with him that he was to come to the hotel at once. A few minutes later he drove up in his car.

Moya put the case to him.

Bleyer turned to his employer. "You want me to tell Colter what I know?"

"I don't care a turn of my hand whether you tell the fellow or not," drawled Verinder, ignoring the presence of Colter.

The superintendent peered at Moya in his nearsighted fashion over the glasses on his nose. "Can't see that it matters much, Miss Dwight. I'm not worrying a bit about Jack Kilmeny, but, if Colter and you are, I'm willing to tell what I know on condition that you keep the facts to yourselves."

"I'll keep quiet if you haven't injured Jack in any way," Colter amended.

"We haven't. He was sound as a new dollar when I left him Tuesday night. Want to hear the particulars?"

"That's what I'm here for," snapped Colter.

Bleyer told the whole story so far as he knew it.

CHAPTER XXI

SPIRIT RAPPING?

Farquhar and Captain Kilmeny left next day for another short hunting trip. The captain had offered to give it up, but Moya had urged upon him that it would not be fair to disappoint his companion. He had gone reluctantly, because he saw that his fiancée was worried. His own opinion was that his cousin Jack had disappeared for reasons of his own.

Colter did not relax in his search. But as the days passed hope almost died within him. Jack had plenty of enemies, as an aggressive fighter in a new country always must have. His friend's fear was that some of them had decoyed Kilmeny to his death. The suspicions of the miner centered upon Peale and Trefoye, both because Jack had so recently had trouble with them and because they knew beforehand of his intention to remove the ore. But he could find no evidence upon which to base his feeling, though he and Curly, in company with a deputy sheriff, had put the Cornishmen through a grilling examination.

It had been understood that the young women should take a trip through the Never Quit before they left Goldbanks, but for one reason or another this had been postponed until after the captain and Farquhar had started on their final hunting expedition. The second afternoon after their departure was the one decided upon for the little adventure.

Verinder, with the extravagance that went hand in hand with an occasional astonishing parsimony, had ordered oilskin suits and waterproof boots made especially for his guests. A room was reserved for the young ladies at the

mine, equipped for this one occasion to serve as a boudoir where they might dress in comfort.

The mine owner's guests donned, with a good deal of hilarious merriment, the short skirts, the boots, and the rubber helmets. The costumes could not have been called becoming, but they were eminently suited for the wet damp tunnels of the Never Quit.

After they had entered the cage it was a little terrifying to be shot so rapidly down into the blackness of the mine.

"Don't be afraid. It's quite safe," Bleyer told them cheerfully.

At the tenth level the elevator stopped and they emerged into an open space.

"We're going to follow this drift," explained the superintendent.

They seated themselves in ore cars and were wheeled into a cavern lighted at intervals by electric bulbs. Presently the cars slowed down and the occupants descended.

"This way," ordered Bleyer.

They followed in single file into a hot, damp tunnel, which dripped moisture in big drops from the roof upon a rough, uneven floor of stone and dirt where pools of water had occasionally gathered. The darkness increased as they moved forward, driven back by the candles of the men for a space scarce farther than they could reach with outstretched hands.

Moya, bringing up the rear, could hear Bleyer explain the workings to those at his heel. He talked of stopes, drifts, tunnels, wage scales, shifts, highgrade ore, and other subjects that were as Greek to Joyce and India. The atmosphere was oppressively close and warm, and the oilskins that Moya wore seemed to weigh heavily upon her. She became aware with some annoyance at herself that a faintness was stealing over her brain and a mistiness over her eyes. To steady herself she stopped, catching at the rough wall for support. The others, unaware that she was not following, moved on. With a half articulate little cry she sank to the ground.

When she came to herself the lights had disappeared. She was alone in the most profound darkness she had ever known. It seemed to press upon her so ponderably as almost to be tangible. The girl was frightened. Her imagination began to conjure all sorts of dangers. Of cave-ins and

explosions she had heard and read a good deal. Anything was possible in this thousand-foot deep grave. In a frightened, ineffective little voice she cried out to her friends.

Instantly there came an answer—a faint tapping on the wall almost at her ear. She listened breathlessly, and caught again that faint far tap—tap—tap—tap—tap—tap—tap—tap. Instinctively her hand went out, groping along the wall until it fell upon a pipe. Even as she touched this the sound came again, and along with it the faintest of vibrations. She knew that somebody at a distance was hitting the pipe with a piece of quartz or metal.

Stooping, she found a bit of broken rock. Three times she tapped the pipe. An answer came at once.

Tap—tap—tap—tap—tap—tap—tap!

She tried two knocks. Again the response of seven taps sounded. Four blows brought still seven. Why always seven? She did not know, but she was greatly comforted to know that her friends were in communication with her. After all she was not alone.

A light glimmered at the end of the tunnel and moved slowly toward her. Bleyer's voice called her name. Presently the whole party was about her with sympathetic questions and explanations.

She made light of her fainting attack, but Verinder insisted on getting her back to the upper air in spite of her protests. He had discovered that Joyce was quite ready to return to the sunlight, now that her curiosity was satisfied. A very little of anything that was unpleasant went a long way with Miss Seldon, and there was something about this underground tomb that reminded her strongly of an immense grave.

At dinner Verinder referred to the attack of vertigo. "Feel quite fit again, Miss Dwight?"

"Quite, thank you." Moya was a little irritated at the reference, because she was ashamed of having given way to physical weakness. "It was nothing. I was a goose. That's all."

Bleyer, a guest for the evening, defended the young woman from her own scorn. "It often takes people that way the first time, what with the heat and

the closeness. I once knew a champion pugilist to keel over while he was going through a mine."

"Were you afraid when you found yourself alone?" Joyce asked.

"I was until you tapped."

India looked puzzled. "Tapped. What do you mean?"

"On the pipe."

"What pipe?"

"The one that ran through the tunnel."

Miss Kilmeny shook her head. "I didn't see anybody tap. Perhaps one of us touched it by chance."

"No. That couldn't be. The tap came seven times together, and after I had answered it seven times more."

"Seven times?" asked Bleyer quickly.

"Yes—seven. But, if you didn't tap, who did?"

"Sure it wasn't imagination?" Verinder suggested.

"Imagination! I tell you it was repeated again and again," Moya said impatiently.

"Spirit rapping," surmised Joyce lightly. "It doesn't matter, anyhow, since it served its work of comforting Moya."

"It might have been some of the workmen," Lady Farquhar guessed.

"Must have been," agreed Bleyer. "And yet—we're not working that end of the mine now. The men had no business there. Odd that it was seven raps. That is a call for help. It means danger."

A bell of warning began to toll in Moya's heart. It rang as yet no clear message to her brain, but the premonition of something sinister and deadly sent a sinking sensation through her.

Verinder sat up with renewed interest. "I say, you know—spirit rapping. Weren't you telling me, Bleyer, that there was a big accident there some years ago? Perhaps the ghosts of some of the lost miners were sending a message to their wives. Eh, what?"

"The accident was in the Golden Nugget, an adjoining mine. The property was pretty well worked out and has never been opened since the disaster."

The color had ebbed from Moya's lips. She was a sane young woman not given to nerves. But she had worried a great deal over the disappearance of Jack Kilmeny. This, coming on top of it, shook her composure. For she was fighting with the dread that the spirit of the man she loved had been trying to talk with her.

Joyce chattered gayly. "How weird! Moya, you must write an account of your experience for the Society for Psychical Research. Put me in it, please."

"Of course, it must have been some of the men, but I don't see——"

Moya interrupted the superintendent sharply. An intuition, like a flash of light, had illumined her brain. "Where does that pipe run, Mr. Bleyer?"

"Don't know. Maps of the workings at the office would show."

"Will you please find out?"

"Glad to look it up for you, Miss Dwight. I'm a little curious myself."

"I mean now—at once."

He glanced at her in quick surprise. Was she asking him to leave the dinner table to do it? Lady Farquhar saw how colorless Moya was and came to the rescue.

"My dear, you are a little unstrung, aren't you?" she said gently. "I think we might find something more cheerful to talk about. We always have the weather."

Moya rose, trembling. "No. I know now who called for help. It was Jack Kilmeny."

Verinder was the first to break the strained silence. "But that's nonsense, you know."

"It's the truth. He was calling for help."

"Where from? What would he be doing down in a mine?"

"I don't know.... Yes, I do, too," Moya corrected herself, voice breaking under the stress of her emotion. "He has been put down there to die."

"To die." Joyce echoed the words in a frightened whisper.

Dobyans laughed. "This is absurd. Who under heaven would put him there?"

A second flash of light burned in upon the girl. "That man, Peale—and the other ruffian. They knew about the shipment just as you did. They waylaid him ... and buried him in some old mine." Moya faced them tensely, a slim wraith of a girl with dark eyes that blazed. She had forgotten all about conventions, all about what they would think of her. The one thing she saw was Jack Kilmeny in peril, calling for help.

But Lady Farquhar remembered what Moya did not. It was her duty to defend her charge against the errant impulses of the heart, to screen them from the callous eyes of an unsympathetic world.

"You jump to conclusions, my dear. Sit down and we'll talk it over."

"No. He called for help. I'm going to take it to him."

Again Verinder laughed unpleasantly. Moya did not at that moment know the man was in existence. One sure purpose flooded her whole being. She was going to save her lover.

India wavered. She, too, had lost color. "But—you're only guessing, dear."

"You'll find it's true. We must follow that pipe and rescue him. To-night."

"Didn't know you were subject to nerve attacks, Miss Dwight," derided Verinder uneasily.

Moya put her hands in front of her eyes as if to shut out the picture of what she saw. "He's been there for five days ... starving, maybe." She shuddered.

"You're only guessing, Miss Dwight. What facts have you to back it?" Bleyer asked.

"We must start at once—this very hour." Moya had recovered herself and spoke with quiet decision. "But first we must find where the pipe leads."

Bleyer answered the appeal in Lady Farquhar's eyes by rising. He believed it to be a piece of hysterical folly, just as she did. But some instinct of chivalry in him responded to the call made upon him. He was going, not to

save Kilmeny from an imaginary death, but to protect the girl that loved him from showing all the world where her heart was.

"I'll be back inside of an hour—just as soon as I can trace that pipe for you, Miss Dwight," he said.

"After all, Moya may be right," India added, to back her friend.

"It's just possible," Bleyer conceded.

CHAPTER XXII

THE ACID TEST

Jack Kilmeny opened his eyes to find himself in darkness utter and complete except for a pinpoint of light gleaming from far above. His head was whirling and throbbing painfully. Something warm and moist dropped into his eyes, and when he put his hand up to investigate the cause he knew it must be blood from a wound.

Faintly the sound of voices and of harsh laughter drifted down to him. Presently this died away. The stillness was almost uncanny.

"Something laid me out, I reckon. Must have been a bad whack." His finger found a ridge above the temple which had been plowed through the thick curly hair. "Looks as though a glancing bullet hit me. Golden luck it didn't finish the job."

He moved. A sharp pain shot through his lower right leg. Trying to rise, he slipped down at once from a badly sprained ankle. Every muscle in his body ached, as if he had been jarred by a hard fall.

"Better have a look around first," he told himself.

Groping in his pocket, he found a match case and struck a light. What he saw made him shudder. From the ledge upon which he lay fell away a gulf, the bottom of which could be only guessed. His eyes, becoming accustomed to the darkness, made out that he was in some sort of shaft, thirty feet or more below the surface. Rotten from age, the timberings had slipped and become jammed. Upon some of these he was resting. The sprained ankle, by preventing him from moving, had saved him from plunging down the well.

He held out a silver dollar and dropped it. From the time the coin took to strike Jack judged he was a hundred feet from the bottom.

The flare of a second match showed him a wall ladder leading down, but unfortunately it did not extend above him except in rotting fragments. What had happened he could guess. Supposing him to be dead, his enemies had dropped the body down this deserted shaft. Not for a moment did he doubt who they were. The voices had been unmistakably Cornish, and even without that evidence he would have guessed Peale and his partner as the guilty ones.

Since he could not go up he went down, moving warily so as not to jar loose the timbers upon which he lay. Every rung of the ladder he tested with great care before he put his weight upon it. Each step of the journey down sent a throb of pain from the ricked ankle, even though he rested his weight on his hands while he lowered himself. From the last rung—it was by actual count the one hundred forty-third—he stepped to the ground.

Another match showed him a drift running from the foot of the shaft. Along this he dragged himself slowly, uncertain of direction but determined to find out what possibility of escape his prison offered. For two hundred yards the tunnel led forward and brought him up sharply at an *impasse*. A cave-in blocked farther advance.

"Check," Jack told himself aloud grimly.

He knew now that his situation was a very serious one, for he had been flung alive into a grave that offered only a slight prospect of escape. He was without food, effectually cut off from the surface of the earth, and none but those who had assaulted him knew that he was buried.

The alternatives that lay before him were plain. He might climb the ladder again to the timber ledge and keep calling for help, or he might attempt to dig a way over the cave-in with his hands and his pocketknife, trusting that the tunnel led to another shaft. The former was a chance pure and simple, and a slender one at that. It was not likely that anybody would pass the mouth of a deserted shaft far up in the hills at this season of the year. But it was quite within the probabilities that the tunnel led to some of the workings of a live property. Many miles of underground drifts were connected by intercepting stopes of adjoining mines. If he could force a

way through the cave-in there might be safety beyond. To go moling into such a place without timbering would be a dangerous business, but the crisis was one that justified any risk.

He took stock of his assets. Fortunately he had bought at a lunch counter a ham sandwich to stay his appetite during the night trip. This was still in his pocket, badly mashed but still edible. Five cigars were in the case he carried and upon his person all told he found eleven matches. A little trickle of water ran through the tunnel and gave assurance that he would not die of thirst. His pocketknife was a serviceable one and he had plenty of physical strength.

Jack decided that he would eat half of the sandwich that day and reserve the rest for the second one. His cigars were precious luxuries to be indulged in once every twenty-four hours after he had knocked off work.

He attacked the cave-in with the cool energy that characterized him. Out of a piece of board he fashioned a kind of shovel with his knife. Bits of broken timbering lay at the foot of the shaft. These he dragged into the tunnel for fuel to feed a small fire which he built to give light for the work. All through the night and till noon the following day he dug among the fallen rocks and dirt, cleaning this *débris* away after he had loosened it with his bare hands.

The impact of the fall when he had been thrown down the shaft had jarred him greatly. With the slightest movement of the body his back and shoulders ached, sending shoots of pain in protest to his brain. The sprained ankle he had bound tightly in a wet handkerchief, but every time his weight rested on that leg he had to grit his teeth. But it was not in him to quit. He stuck to his job till he had done the shift set himself.

At noon he crawled back to the foot of the shaft. He was fagged to exhaustion. For half an hour he lay stretched on his back with every muscle relaxed.

Presently he cut from his coat the pocket that contained the sandwich and divided the mash of ham and bread into two parts. One of these he ate. The other he returned to the coat.

Favoring his ricked ankle as best he could, Jack climbed the wall ladder to the ledge upon which he had found himself lying the previous night. Five

minutes' examination of the walls showed him that there was no chance to reach the top of the shaft unaided. He tested the jammed timbers to make sure they were secure before he put his weight upon them. During the next six hours he called aloud every few minutes to attract the attention of anyone who might chance to be passing near.

Toward evening he treated himself to his first cigar, making the most of the comfort that it gave him. When the stub grew short he held it on the small blade of his knife so as not to miss a puff. What was left he wrapped in a pocket handkerchief for later use.

As the stars began to come out in the little patch of blue sky he could see just above his prison Jack lowered himself again to the foot of the shaft. Here he lay down a second time and within five minutes had fallen into a deep sleep.

About midnight he awakened and was aware at once of a ravenous hunger. He was still resolute to win a way out, though the knowledge pressed on him that his chances were slender at the best. Till morning he worked without a moment's rest. The fever in his ankle and the pain of the sprain had increased, but he could not afford to pay any attention to them. Blood from his scarred, torn hands ran down his wrists. Every muscle in his abused body ached. Still he stabbed with his knife into the earth that filled the tunnel and still he pulled great rocks back with his shovel. All his life he had fought for his own hand. He would not let himself believe fate had played so scurvy a trick as to lock him alive into a tomb closed so tightly that he could not pry a way out.

When his watch told him it was eight o'clock he staggered to the shaft again and lay down on his back to rest. Before climbing to the platform above he finished the sandwich. He was very hungry and could have eaten enough for two men had he been given the opportunity. Again for hours he called every few minutes at the top of his voice.

In his vest pocket were a pencil and a notebook used for keeping the accounts of the highgraders with whom he did business. To pass the time he set down the story of the crime which had brought him here and his efforts to free himself.

After darkness fell he let himself down to the foot of the shaft and slept. Either from hunger or from fever in his ankle he slept brokenly. He was conscious of a little delirium in his waking spells, but the coming of midnight found him master of himself, though a trifle lightheaded.

It was impossible to work as steadily as he had done during the two previous nights. Hunger and pain and toil were doing their best to wear out his strength. His limbs moved laggardly. Once he fell asleep in the midst of his labor. He dreamed of Moya, and after he awakened—as he presently did with a start—she seemed so near that it would scarce have surprised him if in the darkness his hands had come in contact with the soft flesh of her vivid face. Nor did it strike him as at all odd that it was Moya and not Joyce who was visiting him when he was in prison. Sometimes she came to him as the little girl of the *Victorian*, but more often the face he saw was the mocking one of the young woman, in which gayety overran the tender sadness of the big, dusky eyes beneath which tiny freckles had been sprinkled. More than once he clearly heard her whisper courage to him.

Next day the notes in his diary were more fragmentary.

"Broke my rule and smoked two cigars to-day. Just finished my fourth. Leaves one more. I drink a great deal. It helps me to forget I'm hungry. Find a cigar goes farther if I smoke it in sections. I chew the stubs while I'm working.

"Have tunneled in about seventeen feet. No sign that I'm near the end of the cave-in. There's a lot of hell in being buried alive.

"Think I'm losing my voice from shouting so much when I'm in the shaft. Gave it up to-day and let little Moya call for me. She's a trump. Wish she'd stay here all the time and not keep coming and going."

The jottings on the fourth day show the increase of the delirium. Sometimes his mind appears to be quite clear, then it wanders to queer fancies.

"Last cigar gone. Got sick from eating the stub. Violent retchings. Kept falling asleep while working. Twenty-nine feet done—surely reach the end to-morrow.... Another cave-in just after I crawled out from my tunnel. All my work wiped out. Moya, the little devil, laughed and said it served a highgrader right....

"Have telegraphed for help. Can't manage alone. Couldn't make it up the shaft and had to give up the climb. Ordered a big breakfast at the Silver Dollar—steak and mushrooms and hot cakes. The telegraph wires run through pipe along floor of tunnel. Why don't the operator stay on his job? I tap my signals and get no answer."

He began to talk to himself in a rambling sort of way. Sometimes he would try to justify himself for highgrading in jerky half-coherent phrases, sometimes he argued with Peale that he had better let him out. But even in his delirious condition he stuck to his work in the tunnel, though he was scarce able to drag himself about.

As the sickness grew on him, the lightheaded intervals became more frequent. In one of these it occurred to him that he had struck high grade ore and he filled his pockets with samples taken from the cave-in. He spent a good deal of time explaining to Moya patiently over and over again that the business of highgrading was justified by the conditions under which the miners lived. There was no sequence to his thoughts. They came in flashes without logical connection. It became, for instance, a firm obsession that the pipe running through the tunnel was a telegraph wire by means of which he could communicate with the outside world if the operator would only stay on duty. But his interest in the matter was intermittent.

It is suggestive of his condition that when Moya's answer came to his seven taps he took it quite as a matter of course.

"The son of a Greaser is back on the job at last," he said aloud without the least excitement. "Now, I'll get that breakfast I ordered."

He crawled back to the foot of the shaft in a childish, absurd confidence that the food he craved would soon be sent down to him. While he waited, Jack fell into light sleep where he lost himself in fancies that voiced themselves in incoherent snatches of talk.

CHAPTER XXIII

CAPTAIN KILMENY RETIRES

A voice calling his name from the top of the shaft brought Jack Kilmeny back to consciousness. He answered.

A shout of joy boomed down to him in Colter's heavy bass. He could hear, too, the sweet troubled tones of a woman.

"Hurry, please, hurry.... Thank God, we're in time."

"Got that breakfast with you, little neighbor," Jack called up weakly. He did not need to be told that Moya Dwight was above, and, since she was there, of course she had brought him the breakfast that he had ordered from the Silver Dollar.

"Get back into the tunnel, Jack," Colter presently shouted.

"What for?"

"We're lowering someone to you. The timberings are rotten and they might fall on you. Get back."

"All right."

Five minutes later the rescuer reached the foot of the shaft. He stood for a moment with a miner's lamp lifted above his head and peered into the gloom.

"Where away, Jack?"

The man was Ned Kilmeny. He and Lord Farquhar had returned to the hotel just after dinner. The captain had insisted—all the more because there was

some danger in it—that he should be the man lowered to the aid of his cousin.

"Bring that breakfast?" Jack snapped, testily.

"Yes, old man. It's waiting up above. Brought some soup down with me."

"I ordered it two hours ago. What's been keeping you? I'm going to complain of the service."

The captain saw at once that Jack was lightheaded and he humored him.

"Yes, I would. Now drink this soup."

The imprisoned man drained the bucket to the last drop.

Ned loosened the rope from his own body and fastened it about that of his cousin. He gave the signal and Jack was hauled very carefully to the surface in such a way as not to collide with the jammed timbers near the top. Colter and Bleyer lifted the highgrader over the edge of the well, where he collapsed at once into the arms of his friend.

Moya, a flask in her hand, stooped over the sick man where he lay on the grass. Her fine face was full of poignant sympathy.

Kilmeny's mind was quite clear now. The man was gaunt as a famished wolf. Bitten deep into his face were the lines that showed how closely he had shaved death. But in his eye was the gay inextinguishable gleam of the thoroughbred.

"Ain't I the quitter, Miss Dwight? Keeling over just like a sick baby."

The young woman choked over her answer. "You mustn't talk yet. Drink this, please."

He drank, and later he ate sparingly of the food she had hastily gathered from the dinner table and brought with her. In jerky little sentences he sketched his adventure, mingling fiction with fact as the fever grew on him again.

Bleyer, himself a game man, could not withhold his admiration after he had heard Captain Kilmeny's story of what he had found below. The two, with Moya, were riding behind the wagon in which the rescued man lay.

"Think of the pluck of the fellow—boring away at that cave-in when any minute a million tons of rock and dirt might tumble down and crush the life out of him. That's a big enough thing. But add to it his game leg and his wound and starvation on top of that. I'll give it to him for the gamest fellow that ever went down into a mine."

"That's not all," the captain added quietly. "He must have tunneled in about twenty-five feet when the roof caved again. Clean bowled out as he was, Jack tackled the job a second time."

Moya could not think of what had taken place without a film coming over her eyes and a sob choking her throat. A vagabond and worse he might be, but Jack Kilmeny held her love beyond recall. It was useless to remind herself that he was unworthy. None the less, she gloried in the splendid courage of the man. It flooded her veins joyously even while her heart was full to overflowing with tender pity for his sufferings. Whatever else he might be, Jack Kilmeny was every inch a man. He had in him the dynamic spark that brought him smiling in his weakness from the presence of the tragedy that had almost engulfed him.

There was a little discussion between Colter and Captain Kilmeny as to which of them should take care of the invalid. The captain urged that he would get better care at the hotel, where Lady Farquhar and India could look after him. Colter referred the matter to Jack.

"I'm not going to burden Lady Farquhar or India. Colter can look out for me," the sick man said.

"It's no trouble. India won't be satisfied unless you come to the hotel," Moya said in a low voice.

He looked at her, was about to decline, and changed his mind. The appeal in her eyes was too potent.

"I'm in the hands of my friends. Settle it any way you like, Miss Dwight. Do whatever you want with me, except put me back in that hell."

After a doctor had seen Jack and taken care of his ankle, after the trained nurse had arrived and been put in charge of the sick room, Captain Kilmeny made a report to Moya and his sister.

"He's gone to sleep already. The doctor says he'll probably be as well as ever in a week, thanks to you, Moya."

"Thanks to you, Ned," she amended.

"He sent to you this record of how he spent his time down there—said it might amuse you."

The Captain looked straight at her as he spoke.

"I'll read it."

"Do. You'll find something on the last page that will interest you. Now, I'm going to say good-night. It's time little girls were in bed."

He kissed his sister and Moya, rather to the surprise of the latter, for Captain Kilmeny never insisted upon the rights of a lover. There was something on his face she did not quite understand. It was as if he were saying good-by instead of good-night.

She understood it presently. Ned had written a note and pinned it to the last page of the little book. She read it twice, and then again in tears. It told her that the soldier had read truly the secret her anxiety had flaunted in the face of all her friends.

"It's no go, dear girl. You've done your best, but you don't love me. You never will. Afraid there's no way left but for me to release you. So you're free again, little sweetheart.

"I know you won't misunderstand. Never in my life have I cared for you so much as I do to-night. But caring isn't enough. I've had my chance and couldn't win out. May you have good hunting wherever you go."

The note was signed "Ned."

Her betrothed had played the game like the gentleman he was to a losing finish. She knew he would not whimper or complain, that he would meet her to-morrow cheerfully and easily, hiding even from her the wound in his heart. He was a better man than his cousin. She could not deny to herself that his gallantry had a finer edge. His sense of right was better developed and his courage quite as steady. Ned Kilmeny had won his V. C. before he was twenty-five. He had carried to a successful issue one of the most

delicate diplomatic missions of recent years. Everybody conceded that he had a future. If Jack had never appeared on her horizon she would have married Ned and been to him a loving wife. But the harum-scarum cousin had made this impossible.

Why? Why had her roving heart gone out to this attractive scamp who did not want her love or care for it? She did not know. The thing was as unexplainable as it was inescapable. All the training of her life had shaped her to other ends. Lady Farquhar would explain it as a glamour cast by a foolish girl's fancy. But Moya knew the tide of feeling which raced through her was born not of fancy but of the true romance.

CHAPTER XXIV

TWO IN A BUCKET

Jack heard the story of his rescue from India. He surprised her alone in the breakfast room by hobbling in one morning after the rest had gone.

She popped a question directly at him. "Did the doctor say you could get up?"

"Didn't ask him," he answered with a laugh, and dropped into a seat across the table.

Shaven and dressed in a clean freshly pressed suit, he looked a different man from the haggard grimy vagabond Captain Kilmeny had brought back with him three days earlier. The eyes were still rather sunken and the face a bit drawn, but otherwise he was his very competent and debonair self. His "Good mornin', India," was as cheery and matter of fact as if those five days of horror had never existed.

"Don't believe it will hurt you." Her bright eyes were warm in their approval of him. "You look a lot fitter than you did even yesterday. It's awfully jolly to see you around again, Cousin Jack."

"I'm enjoying it myself," he conceded. "Anything of importance in that covered dish over there?"

"Tell me all about it," she ordered, handing him the bacon. Then, with a shudder, she added: "Must have been rather awful down there."

"Bad enough," he admitted lightly.

"Tell me." She leaned forward, chin in hand.

"What's the use? Those fellows put me down. Your brother took me up. That's all."

"It isn't all. Ned says it is perfectly marvelous the way you dug that tunnel and escaped from being crushed, and then dug it again after it had caved."

"Couldn't lie down and quit, could I? A man in the hole I was can't pick and choose." He smiled lazily at her and took a muffin from a plate handed him by the waiter. "My turn to ask questions. I want the full story of how you guessed I was in the west shaft of the Golden Nugget."

"Haven't you heard? It was Moya guessed it—from the tapping on the pipe, you know."

"So I've been told. Now let's have the particulars." His eyes went arrow-straight into hers and rested there.

India told him. She knew that Ned would make a safer husband for Moya than this forceful adventurer. It was quite likely to be on the cards that he cared nothing for her friend. Indeed, his desperate flirtation with Joyce indicated as much. Moreover, Moya would not marry a man whom she could not respect, one who made his living by dishonest practices. But in spite of all these objections Miss Kilmeny told her cousin how Moya had fought for his life against ridicule and unbelief, regardless of what any of them might think of her.

He made one comment when she had finished. "So I have to thank Moya Dwight for my life."

"Moya alone. They laughed at her, but she wouldn't give up. I never saw anybody so stubborn. There's something splendid in her. She didn't care what any of us thought. The one thing in her mind was that she was going to save you. So Mr. Bleyer had to get up from dinner and find out from the maps where that pipe went. He traced it to the old west shaft of the Golden Nugget."

"And what *did* you think?" he asked, watching her steadily.

"I admired her pluck tremendously."

"Did Verinder—and Bleyer—and Lady Farquhar?"

"How do I know what they thought?" flamed the girl. "If Mr. Verinder is cad enough——" She stopped, recalling certain obligations she was under to that gentleman.

"Why did she do it?"

She flashed a look of feminine scorn at him. "You'll have to ask Moya that—if you want to know."

He nodded his head slowly. "That's just what I'm going to do."

"You'll have more time to talk with her—now that Joyce is engaged and daren't flirt with you," his cousin suggested maliciously.

Though he tried to carry this off with a laugh, the color mounted to his face. "I've been several kinds of an idiot in my time."

"Don't you dare try any nonsense with Moya," her friend cried, a little fiercely.

"No," he agreed.

"She's not Joyce."

He had an answer for that. "I'd marry her to-morrow if she'd take me."

"You mean you...?"

"Yes. From the first day I met her again. And I didn't know it till I was down in that hell hole. Shall I tell you something?" He put his arms on the table and leaned toward her with shining eyes. "She was with me down there most of the time. Any time I stopped to listen I could hear her whisper courage in that low, sweet voice of hers."

"You know about her and Ned?"

"Yes."

"He's a better man than you are, Jack."

"Yes."

"But you won't let him have her."

"No, by God, not unless she loves him."

"She would have loved him if it hadn't been for you."

"You mean she loves me?"

"She won't marry you. She can't."

"Why not? Because I don't belong to her social set?"

"No. That would be reason enough for Joyce or me, but I don't think it would stop Moya."

"You mean—highgrading?"

"Yes."

Joyce interrupted further confidences by making her usual late appearance for breakfast. At sight of Kilmeny her eyes brightened. Life always became more interesting for her when a possible man was present. Instantly she came forward with a touch of reluctant eagerness that was very effective.

"I'm glad to see you up again—so glad, Mr. Kilmeny."

In the pretty breakfast gown which displayed her soft curves and the ripe roundness of throat and arm she made a picture wholly charming. If Jack was overpowered he gave no sign of it.

"Glad to meet you, Miss Seldon."

Her eyes rained sweet pity on him, a tenderness potent enough to disturb the serenity of any young man not in armor.

"We—we've been so worried about you."

He laughed, genially and without resentment. "Awfully good of you. Shall I ring for the waiter?"

India rose. "I'm going riding with Ned and Moya," she explained.

Alone with the Westerner, Joyce felt her blood begin to quicken.

"Are you quite ... recovered?" she asked.

Their eyes met. In his there was a faint cynical smile of amusement.

"Quite."

She understood the double meaning in his words. Her lashes fell to the soft cheeks, then lifted again. "I thought perhaps there might be ... that you might still be...."

He shook his head vigorously. "It was only a dream. I can laugh at it now—and at myself for taking it seriously."

Joyce bit her lip with vexation. There was something not quite decent in so prompt a recovery from her charms. He did not appear to hold even any resentment.

Nor did he. Kilmeny had been brought too near the grim realities to hold any petty pique. He found this young woman still charming, but his admiration was tintured with amusement. No longer did his imagination play upon her personality. He focused it upon the girl who had fought for his life against the ridicule and the suspicions of her friends. It was impossible for him to escape the allure of her fine sweet courage so gallantly expressed in every look and motion.

But Moya let him severely alone. Her pride was suffering because she had showed to all her little world too keen an interest in him. In her anxiety to repudiate any claim he might think she felt she had upon him the girl was scornfully indifferent to his advances. Almost rudely she rejected his gratitude.

"The man does not owe me anything. Can't he see that honors are easy?" she said impatiently to Lady Farquhar.

Jack Kilmeny was no quitter. He set that lean jaw of his and would not accept repulse. In four days now the Farquhar party was going to leave Goldbanks and he made the most of his time.

Moya never saw him coming toward her without having her pulses stirred, but her look met his always quietly and steadily. Not once did she give him a chance to see her alone. Even Lady Farquhar, who had been a severe critic of her vagaries, commended now her discretion. Jack rebelled against it in vain. He could not find a chance to speak. It was characteristic of him that he made one.

By shrewd maneuvering he arranged an expedition to the Silent Sam mine. The property itself was of no particular interest. The attractive feature was a descent in ore buckets from the shaft-house, perched far up on the edge of a precipitous cliff, to the mill in the valley below. This was made by means of heavy cables to which the buckets were suspended. After Jack had

explained how the men rode back and forth by this means between the mill and the mine India was seized with the inspiration he had hoped for.

"Let's go down in the buckets, dear people."

Lady Farquhar protested and was overruled by a chorus of votes. The miner assured her that it was entirely safe. Reluctantly she gave permission for her flock to make the trip if they desired.

They rode on horseback to the mill. Jack paired with India, making no attempt to ride beside Moya, who brought up the rear with the captain. The Westerner, answering the questions of his cousin, was at his debonair best. Occasionally there drifted back to the couple in the rear fragmentary snatches of his talk. He was telling of the time he had been a mule skinner in New Mexico, of how he had ridden mail near Deming, and of frontier days at Tombstone. Casual anecdotes were sprinkled through his explanations to liven them. He spoke in the slurring drawl of the Southwest, which went so well with the brown lean face beneath the pinched-in felt hat and the well-packed vigor of the man.

"And what is 'bucking a sample'?" India wanted to know after one of his stories.

"You just pound some rock up and mix it to get a sample. Once when I was drag-driver of a herd in a round-up...."

Moya heard no more. She turned her attention resolutely to her companion and tried to detach her mind from the man in front. She might as well have tried to keep her heart from beating.

After they had arrived at the mill Jack quietly took charge of the disposition of the party. Verinder and Joyce were sent up in the first bucket. When this was halfway up to the mine the cable stopped to let another couple enter a bucket. Joyce, fifty feet up in the air, waved her hand to those below.

"You next, India," ordered her cousin.

The young woman stepped into the bucket. "I'm 'fraid," she announced promptly.

"No need to be. Captain, your turn."

The eyes of the two men met. Ned Kilmeny guessed instantly that the other had arranged this so as to get a few minutes alone with Moya. He took a place beside his sister immediately.

The cable did not stop again until the second pair of passengers had reached the mine.

Moya, followed by Jack, stepped into the basket, which began to rise steadily as it moved across the valley.

Kilmeny did not lose a minute.

"Why don't you let me see you alone? Why do you run away from me?" he demanded.

Little patches of color burned beneath the shadows of her eyes. A sound as of a distant surf began to beat in her ears.

"What nonsense! Why should I run from you?" she asked, meeting with difficulty the attack of his masterful gaze.

"Because you're afraid to let me tell you that I love you," he charged.

"Thought it was Joyce you ... fancied," she retorted quietly, her pulse hammering.

"So it was. I fancied her. I love you. I'm asking you to marry me."

"You don't have to ask me to marry you because you exaggerate the service I did you."

"I ask you because I love you."

"Thank you very much for the compliment. Sorry I must decline." She did not dare look at him. Her eyes were fixed on the mill far below.

"Why must you—since you love me?"

The telltale pink stained her cheeks. "You take that for granted, do you?"

"It's true, I believe. How can I make love to you as other men do? Lady Farquhar won't let me see you alone—even if you were willing to give me a chance. In two days you are going out of my life. I must speak the truth ... bluntly. I love you. It has been that way with me ever since you came into my life again, little Moya. But I was blind and didn't see it till ... till I was alone in the mine with death."

"I ... am sorry."

"That is not enough. I'm going to have the truth. You saved my life. What for? It is yours ... if you will take it."

She looked straight at him. "I can't marry you."

"Why can't you? Can you say that you don't love me?"

In the full-charged silence that followed a stifling emotion raced through her blood. The excitement in her set a pulse beating in her throat. Womanlike, she evaded the issue.

"The cable has stopped. What has happened?"

"Nothing has happened. It has stopped because I arranged with the engineer at the hoist to have it stop. When I give the signal it will start again."

"But...."

He brushed aside her futile protest. "I'm going to have this out with you. Dare you tell me that you don't love me, Moya?"

He forced her to meet his eyes, and in that moment she felt weak and faint. The throb of passion beat tumultuously against her will.

"Please ... be generous. What will they think? Let us start," she begged.

"They will think something is wrong with the machinery. But it doesn't matter in the least what they think. It's my last chance, and I'll not give it up. You've got to answer me."

The point where the bucket had stopped was a hundred feet above the ground below. She looked down, and shuddered.

"It's so far down ... please."

"Then don't look down. Look at me, Moya. It won't take you a moment to answer me."

"I have. I said I couldn't marry you."

"Tell me that you don't love me and I'll give the signal."

"I ... don't."

"Look straight at me and say it."

She tried to look at him and repeat it, but her eyes betrayed the secret she was fighting to keep from him. The long lashes fell to the hot cheeks an instant too late.

His hand found hers. "My little Irish wild rose, all sweetness and thorns," he murmured.

Above the tumult of her heart she heard her voice say, as if it were that of a stranger, "It's no use ... I can't ... marry you."

"Because I'm a highgrader?"

She nodded.

"Do you think I'm worse than other men? Down in the bottom of your heart do you believe that?"

She smiled wanly. "Other men are not ... making love to me."

"Am I nothing but a thief to you?"

"I have told you that you are the man I ... love. Isn't that a good deal?"

The desire of her, pure as a flame, swept through him. "It's the greatest thing that ever came into my life. Do you think I'm going to let it end there? I'm going to fight for our happiness. I'm going to beat down the things that come between us."

"You can't. It's too late," she cried wistfully.

"It's never too late for love so long as we're both alive."

"Not for love, but...."

"You've got to see this as I see it, sweetheart. I'm a man—primitive, if you like. I've done wild and evil things—plenty of them. What of that? I slough them off and trample them down. The heart of me is clean, isn't it?"

"Yes."

To look at him was enough to clear away all doubt. He had the faults that go with full-blooded elemental life, but at bottom this virile American was sound.

"Well! Isn't that enough?"

The little movement of her hands toward him seemed to beg for pity. "Jack! I can't help it. Maybe I'm a little prig, but ... mustn't we guide our lives by principle and not by impulse?"

"Do I guide mine by impulse?"

"Don't you?" She hurried on to contradict, or at least to modify, her reluctant charge. "Oh, I know you are a great influence here. You're known all over the state. Men follow you wherever you lead. Why should I criticize you—I, who have done nothing all my life but lean on others?"

"Go ahead. When I ask you to marry me I invite your criticism."

"I have to take little steps and to keep in well-worn paths. I can't make laws for myself as you do. Those that have been made may be wrong, but I must obey them."

"Why? Why should you? If they're wrong, fight against them."

"I can't argue with you ... dear. But I know what I think right. I *want* to think as you do. Oh, you don't know how I long to throw my Puritan conscience overboard and just trust your judgment. I ... admire you tremendously. But I can't give in ... I can't."

The muscles stood out on his lean cheeks as he set his teeth. "You've got to, Moya. Our love has been foreordained. Do you think it is for nothing that we met again after all these years? You're mine—the one woman in the world I want and am going to have."

She shook her head sadly. "No ... no!"

"Is it the money I have made highgrading? Is that what stands between us? If I were able to come to you without a dollar but with clean hands—would you marry me then?"

He leaned toward her, eager, ardent, passionate, the color in his cheeks burning to a dull brick tint beneath the tan. Body and soul she swayed toward him. All her vital love of life, of things beautiful and good and true, fused in a crescendo of emotion.

"My dear ... my dear, I'm only a girl—and I love you." Somehow her hands were buried in the strong grip of his. "But ... I can't live on the profits of

what I think is wrong. If it weren't for that ... Jack, I'd marry you if you were a pauper—and thank God for the chance."

He faced her doggedly. "I'm not a pauper. I've fought for my share of the spoils. You've been brought up in a hot-house. Out in the world a man wins because he's strong. Do you think it's all been play with me? By God, no! I've ridden night herd in a blizzard when the temperature was below zero. I've done my shift on the twelfth level of the Never Quit many a month. I've mushed in Alaska and fought against Castro in Venezuela. Do you think I'm going to give up my stake now I've won it at last?"

She looked at him tremulously. "I don't ask you to give it up. You'll have to decide that for yourself."

"Don't you see I *can't* give it up? If I do, I lose you. How can I take care of you without money?"

"I'd do my best, Jack."

"You don't understand. It would be for years—until I had made another start. I wouldn't let you give up everything unless I had something to offer. I wouldn't consider it."

"Isn't that putting pride before love, Jack? You know I have a little money of my own. We could live—in very decent poverty. I would love to feel that we were fighting ... together. We both know you'll win in the end. Wouldn't it be fine to work out your success in partnership? Dear, I'd *rather* marry you while you're still a poor man."

For a moment the vision of it tempted him, but he put the dream away. "No. It won't do. Of course I'm going to win out in the end, but it might take a dozen years to set me on Easy street. For a woman brought up as you have been poverty is hell."

"Then you think I'm only a doll," she flashed. "You want to put me back in that hot-house you mentioned. I'm just an ornament to dress up and look at and play with."

"I think you're a little tinder-box," he said, smiling ruefully.

"Don't you see how it is with me, Jack? I've always craved life. I've wanted to take hold of it with both hands and without gloves. But they would never

let me. I've got my chance now ... if you really love me more than you do your pride and your money. I want to live close to the people—as you do."

"What did that suit cost you?" he asked abruptly.

"Don't remember. Twenty-five pounds, maybe. Why?"

"One hundred twenty dollars, say. And you need dozens of dresses in a season. I'll make a guess that it takes five thousand a year to clothe you. That is nearly twice as much as I'll earn altogether next year if I throw away my stake."

She waved his argument aside. "Stupid boy! I have dresses enough to last me for five years—if you'll let me be that poor man's wife. I can make them over myself later and still be the best dressed woman in camp."

From above came Captain Kilmeny's shout. "We telephoned down. The engineer has the trouble arranged."

The cable began to move.

"When shall I see you alone again, Moya?" Jack demanded.

"I don't know."

"I'm going to see you. We've got to fight this out. I'll not let Lady Farquhar keep me from seeing you alone. It's serious business."

"Yes," she admitted. "I'll tell Lady Jim. But ... there's no use in letting you think I'll give up. I can't."

"You've got to give up. That's all there is to it." His jaw was set like a vise.

The party above fell upon them as they landed.

"Were you frightened, Moya?" exclaimed Joyce above the chorus of questions.

"Just for a moment." Moya did not look at Jack. "Mr. Kilmeny told me it would be all right."

Jack's eyes danced. "I told her we would work out of the difficulty if she would trust me."

Moya blushed. It happened that Captain Kilmeny was looking directly at her when his cousin spoke.

CHAPTER XXV

HOMING HEARTS

Jack Kilmeny had not been brought up in the dry sunbaked West for nothing. The winds of the Rockies had entered into his character as well as into his physique. He was a willful man, with a good deal of granite in his make-up. A fighter from his youth, he did not find it easy to yield the point upon which he differed from Moya. There was in her so much of impulsive generosity that he had expected to overpower her scruples. But she stood like a rock planted in the soil.

It came to him as he walked home after a long fight with her that in his heart he did not want her to yield. She was the Moya Dwight he loved because she would not compromise with her conviction. Yet, though he wanted her to stand firm, he hated the thought of giving way himself. It galled his pride that he must come to her without a penny, knowing that she had the means to keep them both modestly. Nor could he, without a pang, think of surrendering the twenty-eight thousand dollars he had fought for and won. He was no visionary. The value of money he understood perfectly. It stood for power, place, honor, the things that were worth having. Given what he had, Jack knew he could double it in Goldbanks within the year. There were legitimate opportunities for investment that were bound to make rich returns. But without a dollar he would be like Samson shorn of his locks.

All through the night he was joined in battle with himself, but when at early dawn he stood on the top of Son-of-a-Gun hill and faced a sky faintly pink with the warning of a coming sun his decision had been made.

On his way back he met Moya and Miss Seldon. Joyce pounced upon him with a grievance.

"You haven't told me yet how much you're going to give for the new hospital, Mr. Kilmeny. You know we're leaving to-morrow, and you'll have to decide at once. Be generous, please. You said yourself it was a good cause."

He nodded agreement. "The most worthy charity I know. I've often wondered why some Andrew Carnegie didn't set the fashion of endowing hospitals by wholesale. They ought to be free to all poor folks out of health. When a man is losing his wages and his family is scrimping he ought not to be facing a thirty-dollar-a-week hospital charge. Yes, I'm for the new hospital, Miss Seldon."

"How strong are you for it?" Joyce asked, laughing at her newly acquired American slang. "Mr. Verinder has promised to give me two dollars for every one I can raise among my other friends. So don't be a—a——"

"A tightwad," supplied Moya with a smile. She could do a little in the native slang herself.

Jack went into his pocket for a checkbook and a fountain pen. He wrote for a few seconds, tore the check from the stub, and handed it to Joyce.

That young woman gasped.

"Why—you don't really mean—it's for twenty-eight thousand two hundred and fourteen dollars," she cried.

"And seventeen cents. Please don't forget that," he added.

"But—what on earth do you mean?"

Jack was looking at Moya, and she at him with shining eyes in which joy swam.

"It's a little thank offering, Miss Seldon."

"Because you were rescued from the mine, I suppose. Still...."

"Because I'm engaged to be married to the best woman in the world," he corrected.

Joyce whirled upon Moya with instant divination. "You little wretch, and you never told me."

If Miss Dwight had not known it herself till this moment she gave no sign to that effect. "We're telling you now, dear," she explained.

"How long have you been engaged? Was it yesterday in the bucket?"

Jack laughed. "Nothing so romantic. We've been engaged a little less than half a minute. You get the first chance to wish Moya joy on having won so great a catch. She's marrying a pauper, you know."

"I think we're very rich," differed his sweetheart shyly.

Joyce looked from one to the other suspiciously. "I haven't a notion what either of you mean, but I know I'm going to hang on to this check, Mr. Millionaire Pauper."

Imps of mischief sparkled in the highgrader's eyes. "Don't forget that Verinder has to write one for twice as much."

Miss Seldon could not help laughing. "I'll see to that. He's not a welcher, but ... I wonder how he'll look when I tell him."

"You ought to tell him as soon as you can," Jack hinted boldly.

"Oh, ought I? Did you say you had been engaged less than a minute, Mr. Kilmeny? How much will you give me to go down now and tell him?"

"I've nothing left to give—except my gratitude."

"You're the first man who ever was so ungallant as to tell me he would be grateful to have me leave him."

"I'm the first who ever proposed to another girl in your presence. The circumstance is unusual," he flung back gayly.

"I didn't hear you propose. All you did was to announce it," she replied saucily.

"That's true too," admitted Kilmeny. "Well, I'm going to propose now if it isn't too late. You may stay if you like."

"Thanks, no." Joyce kissed her friend. "I hope you'll be very happy, dear. I ... I believe you will."

Moya choked on her words. "I know I shall, Joy."

Miss Seldon looked at Jack with an expression in which embarrassment and audacity were blended. "I've always rather liked your pauper," she confided aloud to Moya.

Her confidences had their limits. She omitted to mention what had just popped into her mind, that within the fortnight he had proposed to her too on the same spot.

Jack bowed with exaggerated deference when she shook hands with him. He was just now riding the seventh wave of happiness and felt friendly to the whole world.

"Thanks very much. You're a good scout, Joyce."

"Good gracious! What may that be? Some more of your American slang, I suppose." She broke away from persiflage to add seriously: "You're right about one thing, though. You've got the best girl in the world. Be good to her, Jack Kilmeny."

With that she turned and walked down the hill.

The other two walked up.

"I'm so proud of you, Jack, boy," whispered one of them.

He laughed happily. "I'm proud of myself. I've done the best day's work I ever did for myself when I won Moya Dwight."

"You know what I mean, Jack. What other man would have thrown away a small fortune—all he had—just for me?"

"I can name one other," suggested Kilmeny.

"Ned! But he's a saint."

"And I'm a sinner," her lover replied blithely.

"You're the sinner I love, then."

They had reached a clump of firs. Without knowing how it happened she found herself in his arms. There were both tears and laughter in her eyes as her lips turned slowly to meet his.

"The first time since we were kiddies on the *Victorian*, sweetheart," he told her.

"Yes, it's true. I loved you then. I love you now.... Jack, boy, I'm just the happiest girl alive."

A mist-like veil of old rose hung above the mountain tops. Hand in hand they watched the rising sun pierce through it and flood the crotches of the hills with God's splendid canvases. It was a part of love's egoism that all this glory of the young day seemed an accompaniment to the song of joy that pulsed through them.

Later they came to earth and babbled the nonsense that is the highest wisdom of lovers. They built air castles and lived in them, seeing life through a poetic ambient as a long summer day in which they should ride and work and play together.

At last she remembered Lady Farquhar and began to laugh.

"We must go down and tell her at once, Jack."

He agreed. "Yes, let's go back and have it out. If you like you may go to your room and I'll tackle her alone."

"I'd rather go with you."

He delighted in her answer.

Farquhar was taking an early morning stroll, arm in arm with Lady Jim, when he caught sight of them.

"Look, Di!"

Both of the lovers knew how to walk. Lady Farquhar, watching them, thought she had never seen as fine a pair of untamed human beings. In his step was the fine free swing of the hillman, and the young woman breasted the slope lightly as a faun.

The Englishman chuckled. "You're beaten, Di. The highwayman wins."

"Nonsense," she retorted sharply, but with anxiety manifest in her frown.

"Fact, just the same. He's coming to tell us he means to take our little girl to his robber den."

"I believe you'd actually let him," she said scornfully.

"Even you can't stop him. It's written in the books. Not sure I'd interfere if I could. For a middle-aged Pharisee with the gout I'm incurably romantic. It's the child's one great chance for happiness. But I wish to the deuce he wasn't a highgrader."

"She shan't sacrifice herself if I can prevent it," Lady Farquhar insisted stanchly.

"I 'member a girl who sacrificed herself for a line lieutenant without a shilling to call his own," he soliloquized aloud. "Would have him, and did, by Jove! Three deaths made him Lord Farquhar later, but she married the penniless subaltern."

"I've always been glad I did." She squeezed his arm fondly. "But this is different, James."

Kilmeny and Moya stopped. The young man doffed his gray felt hat and bowed.

"Mornin', Lady Farquhar—Lord Farquhar. We've come to ask your permission for our marriage."

"Mornin', rebels. Fancy I'll have to refuse it," cut back Farquhar, eyes twinkling. For this bold directness pleased and amused him.

"That would distress us extremely," answered Kilmeny with a genial smile.

"But would not affect your plans, I understand you to mean."

"You catch the idea exactly, sir."

Lady Farquhar entered the conversation. "Are you planning to go to prison with him, Moya, when he is convicted of highgrading?" she asked pleasantly.

Moya told in three sentences of what her lover had done. The Englishman wrung Kilmeny's hand cordially.

"By Jove, you reform thoroughly when you go about it. Don't think I'd have enjoyed writing that check for Miss Joyce. Leaves you strapped, does it?"

"Dead broke," came the very cheerful reply.

"But of course Moya has some money," said Lady Farquhar quietly.

The Westerner winced. "Wish she hadn't. It's the only thing I have to forgive her."

Farquhar lifted his eyebrows. "Di," he remonstrated.

His wife came to time with a frank apology. "That was downright nasty of me, Mr. Kilmeny. I withdraw it. None the less, I think Moya would be throwing herself away. Do you realize what you are proposing? She's been used to the best ever since she was born. Have you the means to supply her needs? Or are you considering a Phyllida and Corydon idyll in a cottage?"

"It will have to be something of that sort at first. I've told her all this too, Lady Farquhar."

"What does that matter if we love each other?" Moya asked.

"You'll find it matters a good deal," said Lady Jim dryly. "When poverty comes in love is likely to wink out any day. Of course I realize that yours is of a quality quite unusual. It always is, my dear. Every lover has thought that since time began."

"We'll have to take our fighting chance of that," Jack replied.

Moya, her eyes shining, nodded agreement. No great gain can be won without risk. She knew there was a chance that she might not find happiness in her love. But where it called her she must follow—to a larger life certainly, to joy and to sorrow, to the fuller experiences that must come to every woman who fulfills her destiny.

A voice hailed Jack. Colter was hurrying up the street, plainly excited. Kilmeny moved a few steps toward him.

Lady Jim took advantage of his absence to attack Moya from another angle. "My dear, I wish I could show you how much depends on a similarity of tastes, of habits, of standards. Matrimony means more than love. It means adjustment."

"I've thought of that too. But ... when you love enough that doesn't help the adjustment?" asked the girl naïvely.

She had appealed to Farquhar. That gentleman came to her assistance. "It does."

"This isn't a matter to be decided merely by personal preference," urged the older woman. "There may be—consequences."

The color beat into the face of the young woman in a wave, but her eyes held steadily to those of Lady Farquhar.

"I ... hope so."

"Bravo, Moya!" applauded her guardian, clapping his hands softly.

"Don't you think they—the consequences—deserve a better chance than you will give them?"

"I'll answer that, Di," spoke up Farquhar. "When a girl chooses for the father of her children a man who is clean and strong and virile, and on top of that her lover, she is giving them the best possible chance in life."

Moya's gratitude shone through the eyes that met those of her guardian.

Kilmeny swung back to the group he had left. "I've good news, friends. This is my lucky day. You remember that when I was rescued from the Golden Nugget my pockets were full of ore samples I had picked up as I was tunneling."

"Yes ... picked them up while you were delirious, didn't you?" Farquhar replied.

"Must have, I reckon. Well, you know how miners are always having pieces of quartz assayed. Colter took these to the man we employ. He's just learned that it is high-grade stuff."

"You've made a strike?"

"Looks like it. Colter wasn't taking any chances, anyhow. He hiked right around to the owners of the mine and signed up a five-year lease in his name and mine."

Farquhar shook hands with him cordially. "Hope you make a fortune, Kilmeny."

Moya's chaperon, facing the inevitable, capitulated as graceful as she could. After all, the girl might have done worse. The man she had chosen was well born, good looking, forceful, and a leader in his community. If this

fortunate strike was going to leave him well off, clearly she must make the best of him.

"You're a lucky man. I hope you know you don't deserve a girl like Moya," she told him as she shook hands.

"I know it, all right. Can you tell me who does?" he flung back, with a gay insouciant smile.

At that moment Ned Kilmeny stepped out upon the hotel porch. Lady Jim nodded toward him.

"Perhaps," his cousin conceded. "But in this little old world a man doesn't get what he deserves."

"I see he doesn't. Ned is a better man than you."

"Yes," he admitted.

Captain Kilmeny, coming down the porch steps, saw in a flash what had happened. He came forward with the even stride and impassive face that seldom deserted him. In two sentences Lady Farquhar told him the facts.

"You lucky dog," he said to his cousin as their hands gripped.

Jack had never liked him better than in this moment when he was giving up so cheerfully the thing he wanted most in the world.

"It isn't always the best man that wins, captain. I take off my hat to the better men who have tried and failed. Perhaps it may be a comfort to them to know that I'm the man that needs her most."

The captain turned to Moya. "So you've found that good hunting already," he said to her in a low voice.

"Yes, I think I have ... I'm sure of it, Ned." Her eyes were full of tender sympathy for him. She wished she could tell him how much she admired his fine spirit.

"God keep you happy," he said wistfully.

Jack joined them and slipped Moya's arm into his. "Amen to that, captain. And since Jack Kilmeny has been appointed deputy on the job I'm going to see your wish comes true."

Moya looked at her lover and smiled.

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